

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

**CMI DISTRIBUTION INC.'S OPENING BRIEF IN SUPPORT OF ITS CLAIMS
AGAINST LAS FREIGHT SYSTEM LTD.**

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I. SUMMARY OF ARGUMENT

CMI Distribution, Inc. ("CMI") asserts violations of the Shipping Act of 1984; 46 U.S.C. §§ 40101 *et seq.* ("Shipping Act") against LAS Freight System Ltd. ("LAS Freight") based upon, *inter alia*, its deceptive, unfair, and fraudulent billing practices and its charging of freight and associated rates not in compliance with the rates, charges, classifications, rules, and practices contained in a tariff published in accordance with the Shipping Act and Federal Maritime Commission ("Commission") regulations.

The evidence in the record reflects that, although LAS Freight is a foreign-based registered non-vessel operating common carrier ("NVOCC") with a published tariff, LAS Freight through its agent, Service by Air Inc. ("SBA"), engaged in deceptive and fraudulent conduct in regard to its billing practices. LAS Freight charged CMI hundreds of thousands of dollars in "demurrage" that had no legitimate basis. LAS Freight does not have a demurrage or detention rule in its tariff. Thus, the charges assessed were not set forth in any published tariff, as is required pursuant to the Shipping Act. Further, LAS Freight charged CMI for hundreds of thousands of dollars in demurrage charges despite the fact that no demurrage was actually owed. In some instances, CMI was charged for extended periods for use of ocean carriers' containers, when in fact the containers had been returned to the carrier before any charges whatsoever had accrued.

Acting through its agent, SBA, LAS Freight issued invoices that failed to itemize the basis for the charges and the time period for which the "demurrage" was allegedly assessed. This practice was not only unfair and unreasonable, it was deceptive and fraudulent as it permitted LAS Freight, through its agent, SBA, to assert that the charges being assessed were simply pass through costs from the steamship line when in fact discovery revealed that markups

were being imposed in many instances of 300 percent and in at least one instance of over 780 percent. Acting through its agent, SBA, LAS Freight regularly billed CMI \$300 per day for what it incorrectly termed “demurrage” when the most that could be assessed for such charges – assuming any charges could be lawfully assessed at all absent a tariff in place allowing such pass throughs – under the VOCC’s applicable tariffs was \$100 or in rare cases a maximum of \$195 per day.

Acting through its agent, SBA, LAS Freight compounded its deceptive and unfair practices by exercising purported carrier’s liens and refusing to release cargo in its possession based upon CMI’s alleged failure to pay charges on unrelated shipments. Specifically, SBA demanded payment of approximately \$267,000 in alleged demurrage charges before it would release CMI containers despite the fact that the suppliers of the cargo in those containers had been paid in full and despite the fact that there were no outstanding freight, demurrage or other ancillary charges owing on the containers SBA refused to release. In holding those containers for ransom, SBA violated the Shipping Act. The egregious nature of this ransom demand is compounded by the fact that some of the unrelated demurrage charges for which payment was demanded were fraudulent because the containers at issue had immediately been returned to the steamship line and thus no demurrage or detention could have been owing.

II. PROPOSED STATEMENT OF FACTS

CMI’s proposed Statement of Facts is incorporated by reference.¹

III. ARGUMENT

CMI’s Complaint asserts Shipping Act violations based upon LAS Freight having, *inter alia*: 1) assessed charges against CMI not in compliance with the rates, charges, classifications,

¹ Although CMI filed a proposed Statement of Facts in support of its Brief against LAS Freight, it also incorporates by reference its Statement of Facts as to SBA to avoid burdening the Commission with unnecessary and duplicative pleadings.

rules, and practices contained in a tariff in violation of 46 U.S.C. §41104(1),(2); 2) failed to observe just and reasonable practices in violation of 46 U.S.C. §41102(c) by charging CMI for storage and demurrage on the shipments at issue without providing notice of such charges on shipping documentation, bills of lading or published tariffs; 3) failed to observe just and reasonable practices in violation of §41102(c) by improperly adding fees to storage and demurrage fees assessed by third parties while stating to CMI that the storage and demurrage fees were pass-through charges assessed solely by those third parties; 4) failed to observe just and reasonable practices in violation of §41102(c) by assessing demurrage charges during free time when no such demurrage charges were owed; and 5) despite CMI having requested that it do so, failed to provide CMI with: (a) shipping documentation; (b) proper shipping invoices; and (c) clean and accurate statements of costs incurred and amounts properly payable for transportation services and related costs.

A. LAS Freight Failed to Observe Just and Reasonable Billing Practices

SBA acted as the agent for its affiliate, LAS Freight, for the shipments at issue. SoF ¶17. It is axiomatic that the principal is responsible for the actions of its agent. *American Soc. of Mech. Engineers, Inc. v Hydrolevel Corp.*, 456 U.S. 556, 565-66 (U.S. 1982). This has long been the case even if the agent acted wantonly, recklessly and against its principal's order. *Axman v. Washington Gas Light Co.*, 38 App. D.C. 150, 158 (D.C. Ct. App. 1912). The Commission recognizes that a principal assumes the risk that the agents it chooses to interact on its behalf with third parties will bind the principal to the legal consequences of its actions. *Mitsui O.S.K. Lined Ltd. v. Global Link Logistics*, 2014 WL 5316330 at * 12 (F.M.C. 2014). Further, because the Shipping Act's requirement that a carrier only charge what is reflected in a lawful tariff is strictly enforced, and a principal is responsible for the acts of its agent, a carrier violates the Shipping Act if its agent fails to charge tariff rates. *Pacific Champion Express Co., Ltd.* –

Possible Violations of Section 10(b)(1) of the Shipping Act of 1984, 2000 WL 534633 (F.M.C. 2000).

The cargo at issue moved under through bills of lading. SoF ¶ 40. A through bill of lading covers both the ocean and inland portions of the transport in a single document. *Kawasaki Kisen Kaisha Ltd. v. Regal Beloit Corp.*, 561 U.S. 89 (2010). Ocean-based through bills of lading are overseen by the Federal Maritime Commission. *Id.* at 110.

Throughout the time period when LAS Freight was providing transportation services for CMI, CMI employees repeatedly requested that LAS Freight's agent, SBA, provide CMI with documents and details regarding the basis for the demurrage charges being assessed, the amount of demurrage or storage charges it was assessing against CMI, and what parties were actually providing the underlying services. SoF ¶ 24. SBA consistently refused to provide such documentation or information. SoF ¶ 25. To the extent SBA provided documentation regarding the charges it was assessing against CMI, the documentation was varying and often incorrect. *Id.* at ¶ 25.

LAS Freight's agent, SBA, issued invoices and supporting documentation to CMI that, *inter alia*, contained purported charges for air freight for shipments that actually moved by ocean; stated that goods were moving through locations where they were not actually transported, and inaccurately sought payment for demurrage charges that did not exist. SoF ¶¶ 36-38. It was standard practice for SBA to issue invoices that did not break down the cost of demurrage or specify the days of demurrage but instead simply stated the amount that SBA wanted to be paid. SoF ¶ 27. The failure to include basic information requested by CMI made it impossible for CMI to determine the number of days involved and the rates per day for the demurrage for which CMI was being charged. SoF ¶ 28.

LAS Freight's agent, SBA, now admits that although almost all the invoices it issued to CMI were for demurrage, none of those invoices were valid because none of the invoices were for time periods when containers in a carrier's facility were awaiting the customer's pick up after free time had expired. SoF ¶ 36. Thus, the only charges it could have assessed – if SBA or LAS Freight had an applicable tariff – would have been for detention.²

LAS Freight's agent, SBA, did not have a tariff. Proposed Findings of Fact as to SBA ("SBA SoF") ¶ 25. LAS Freight's tariff did not have a detention rule or a provision for demurrage charges. SoF ¶ 31.

Although the goods at issue moved on through LAS Freight bills of lading to CMI or CMI's customers, LAS Freight's agent, SBA made no effort determine if its billing practices were consistent with LAS Freight's or the steamship line's tariff. SoF ¶ 40. Despite the fact that LAS Freight's tariff had no provision allowing it to charge, much less mark up, for demurrage or detention charges, SBA's representatives testified that it marked up freight, demurrage and detention charges at a minimum of 20%. SoF ¶ 41.³

CMI was hindered in its ability to determine the exact amount LAS Freight overcharged it because LAS Freight has not participated in this proceeding and has not provided documents reflecting what detention charges were actually assessed by the VOCCs that provided the underlying transportation and/or what period the containers at issue were "gated out" (the period when the containers were removed from the carriers' possession) and "gated in" (when they were returned to the carrier.) SoF ¶ 47.

² SBA invoiced CMI for a total of \$1,535.00 in detention charges. SoF ¶ 45.

³ As reflected below, the actual markups were well in excess of 20%. SBA SoF ¶ 120.

For some of the shipments transported by Mediterranean Shipping Company (“MSC”), CMI’s expert, Steve Ferreira, was able to determine the dates when specific containers at issue were gated out and gated in by reviewing MSC’s automated container tracking system. SoF ¶ 48. The chart attached as Exhibit F-1 to the Ferreira Report demonstrates that for 11 of the containers at issue that were transported by MSC for which container data is available in MSC’s automated container tracking system, CMI was assessed \$95,089 in what SBA inaccurately described as demurrage charges. Pursuant to MSC’s tariff, however, the amount that could have been charged under the MSC tariff was only \$29,600. *Id.*

CMI’s overcharges were partly due to the fact that the number of days for which SBA assessed the charge were often incorrect and seriously inflated. SoF ¶ 48. For example, for the shipment in Folder No. 33, Exh. F-1, CMI was assessed for 31 days of “demurrage.” MSC’s automated container tracking system, however, reflects that the container at issue was gated out on February 23, 2015 and gated in, *i.e.*, returned to MSC, three days later on February 26, 2015. SoF ¶ 48. Thus, even if LAS Freight had a basis for the charges in its tariff, CMI should not have been charged for 31 days. *Id.* Indeed, because MSC’s tariff allows for four days’ free time under its detention rules, there should have been no charge – no matter how they are justified. *Id.*

The amount that CMI was overcharged even as calculated under the VOCCs’ tariffs is also a product of the fact that CMI was charged rates that did not exist in MSC’s tariff, much less LAS Freight’s tariff. SoF ¶ 49. MSC’s detention rules allow for 4 free days from the gate out date before detention charges are assessed. SoF ¶ 48. The detention rates are then as follows: subsequent four days (\$115); next four days (\$165) and \$195 per day thereafter. Although the basis for the “demurrage” charges assessed against CMI is not clearly articulated by SBA, CMI

was charged rates in excess of \$300 per hour. *See, e.g.*, Folder No. 33, Exh. F (31 days X \$309.67 = \$9,600). *Id.*

LAS Freight fraudulently charged CMI \$300 per day for what was called demurrage – even though no demurrage existed. SoF ¶ 108. LAS Freight’s agent, SBA further fraudulently represented to CMI that it was not marking up its demurrage charges and they were straight pass through charges. SBA SoF ¶ 116, 123, 131; Exh. A-5.

LAS Freight’s agent never disclosed the underlying invoices it had received from drayage companies because it did not want to show its mark up. SoF ¶ 53. LAS Freight’s charged CMI \$300 per day for demurrage despite fact that underlying charge was only \$100 per day. SBA SoF ¶ 141.

B. SBA Improperly Held Containers as Hostage for Payment for Unrelated Services

In addition to assessing nonexistent demurrage charges, and charging CMI for demurrage, detention and storage charges not reflected in an applicable tariff, LAS Freight engaged in unjust and unreasonable practices by refusing to release containers in its possession even though the supplier had been paid and the containers were ready for release, and even though there were no charges associated with those containers. SBA SoF ¶ 140. Instead, LAS Freight’s agent, SBA, was able to extort a payment in excess of \$200,000 from CMI before LAS Freight’s agent, SBA, would release containers for money purportedly owed on other unrelated shipments. SBA SoF ¶ 142.

LAS Freight’s agent, SBA, would not release containers in its possession until CMI paid what was incorrectly characterized as demurrage on other containers that LAS Freight was billing at a rate of \$300 per day. SBA SoF ¶ 142. Some of the charges that SBA was demanding be paid before it would release these containers included charges arising out of instances when CMI was billed thousands for dollars for the supposed delayed return of containers to MSC,

despite the fact that the containers had immediately been returned to MSC and no charges had accrued. *See* Ferreira Report, Folder No. 33, Exh. F-1 (CMI assessed for 31 days of “demurrage” despite the fact that MSC’s automated container tracking system reflects that the container at issue was gated out on April 21, 2015 and gated in two days later on April 23, 2015).

C. Carriers Are Not Entitled to Charge Amounts Not Reflected in a Valid Tariff and to Bill for Nonexistent Charges

The Shipping Act expressly provides that a common carrier may not provide service in the liner trade that is “not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff” 46 U.S.C. §41104(2). In *Graniteville Co. v. Scarade Lines*, 25 S.R.R. 1330 (1991), the Commission followed well-established authority and held that “when an NVOCC collects untariffed charges under the 1984 Act, that action has caused ‘actual injury’ to a shipper. *Id.* at 1331,

In *First Int’l Development Corp. v. Ship’s Overseas Services, Inc.*, 20 S.R.R. 209, 212 (1980), *rev’d on other grounds*, 21 S.R.R. 393 (D.C. Cir. 1981), the Commission further recognized that if the Shipping Act “is to be reasonably construed to fulfill its legislative intent, an ocean carrier should not be allowed to collect and retain the fruits of its unlawful act,” *i.e.*, charging an unfiled rate.

Because an unfiled rate is unlawful *per se*, the shipper suffers a legally cognizable injury at the time it pays the unlawful charges. The premise that damages must be proven rather than presumed does not prevent an award of reparation in circumstances, where, as here the disputed charges were unlawful in their entirety. Similar arguments were rejected by the Supreme Court 65 years ago when it held that proof of particular pecuniary loss to the shipper was unnecessary in overcharges cases and that damages could be awarded upon mere proof that a higher rate was paid.

Id. at 213-14.⁴

⁴ In that case, the Commission exercised its discretion and permitted the carrier to recover amounts that it had paid to third parties. The Chairman of the Commission dissented in part, observing that the majority was ignoring the

In *Muzorori v. Canada State African Lines, Inc.*, 2016 WL 3922397 at *1 (F.M.C. 2016), the Commission recognized that in numerous cases it had held that an NVOCC violates §41102(c) when it fails to fulfill NVOCC obligations through single or multiple acts or omissions, and thereby fails to establish, observe, and enforce just and reasonable regulations and practices. Included among such cases are instances where a carrier unreasonably refused to release cargo. *Id.*

In *Petra Pet, Inc. v. Panda Logistics Ltd.*, 32 S.R.R. 787 (A.L.J. 2012), the Administrative Law Judge issued a decision squarely addressing the issue of whether a carrier can exercise a lien on containers in its possession to collect amounts due for other shipments. Relying upon well-established Commission precedent, the ALJ recognized that while a maritime lien secures money lawfully owed for the carriage of that particular shipment, it only secures payment for the shipment of the cargo subject to that lien. *Id.* at 800. The carrier releases any lien it may have had when it released the cargo upon which the lien was asserted. *Id.* Thus, “disputes over earlier unrelated shipments cannot be used by either the carrier or shipper as justification for refusing to release the cargo.” *Id.*, citing *Bernard & Weldcraft Welding Equip. v. Supertrans Int’l Inc.*, 29 S.R.R. 1348, 1356, n. 14 (A.L.J. 2003). Holding cargo on unrelated shipments as ransom constitutes a violation of section 10(d)(1) of the Shipping Act. *Id.*; see also *American Steel Barge Co. v. Chesapeake & O Coal Agency Co.*, 115 F. 669, 672 (1st Cir. 1902) (lien cannot be applied beyond the amount of freight stipulated in bill of lading); *The Albert Dumois*, 54 F. 529, 530 (E.D.N.Y. 1893) (shipowners could enforce lien upon cargo for freight stated in bill of lading but for no more).

Shipping Act’s requirement of strict adherence to tariffs in order to prevent unscrupulous conduct. *Id.* at 215. He noted that in so doing, the Commission thereby partially sanctioned the carrier’s violation. *Id.*

D. LAS Freight's Actions and Billing Practices Violated the Shipping Act

LAS Freight violated 46 U.S.C. §41104(2) by charging rates not in accordance with a published tariff. SoF ¶ 20-22, 29-32. LAS Freight also charged CMI for storage and demurrage on the Shipments without providing notice of such charges on shipping documentation, 'bills of lading or published tariffs. SoF ¶ 22. LAS Freight also failed to act in a just and reasonable manner by billing CMI for hundreds of thousands of dollars in demurrage charges despite knowing that the purported charges were invalid. SoF ¶¶ 51-53. The unjust and fraudulent nature of LAS Freight's actions is further evidenced by its agent's deliberate and knowing misrepresentations that the demurrage charges it was assessing were straight pass through costs and did not reflect what was in fact, egregious mark ups of the underlying carrier's charges. SBA SoF ¶116.

Finally, LAS Freight's agent's holding containers hostage and demanding payment of hundreds of thousands of dollars unless payment was made for unrelated shipments, constitutes a violation of § 10(d)(1) of the Shipping Act. 45 U.S.C. §41102(c); *Petra Pet, Inc. v. Panda Logistics Ltd.*, 32 S.R.R. 787 (I.D. 2012); *Bernard & Weldcraft Welding Equip. v. Supertrans Int'l Inc.*, 29 S.R.R. 1348, 1356, n. 14 (ALJ 2003). The egregious nature of LAS Freight's Shipping Act violations is further compounded by the fact that, as reflected above, the demurrage payments which it was demanding were not based upon a valid tariff. SoF ¶ 22; see also SBA SOF ¶ 17. The Commission has made clear that holding up cargo is not an appropriate means of debt collection where the purported debt is based upon unreasonable actions prohibited by the Shipping Act. *Total Fitness Equipment Inc. v. Worldlink Logistics, Inc.*, 28 S.R.R. 534, 541, *aff'd*, 203 F.3d 54, 28 S.R.R. 1118 (D.C. Cir. 2000). The Commission has further held that, as was the case here, holding up cargo on the basis of failure to pay charges not reflected in a tariff constitutes an unreasonable action in violation of § 10(d)(1) of the Shipping Act (46 U.S.C.

§41102(c)). *Brewer v. Maralan and World Line Shipping Inc.* 29 S.R.R. 6, 9 (FMC 2001) (carrier cannot withhold cargo based upon inapplicable rate, *i.e.*, where no tariff on file.) Finally, and most egregiously, the facts show that here, much of the \$267,000 in demurrage payments that LAS Freight's agent, SBA, was demanding were fraudulent. As reflected in the expert report of Steve Ferreira, much of the demurrage assessed by SBA was for time periods when the containers at issue already had been returned to the steamship line. Thus, CMI is entitled to a finding that: 1) LAS Freight violated the Shipping Act; and 2) the demurrage charges CMI has been assessed are invalid and thus recoverable by CMI.

E. CMI's Damages

Pursuant to the Shipping Act, freight and ancillary rates may only be collected pursuant to a valid, published tariff in effect at the time of the shipment. 46 U.S.C. §41104(2). The tariff adherence requirements of the Shipping Act are strictly enforced. *Sea-Land Service, Inc. v. Murrey & Sons's Co., Inc.*, 824 F.2d 740, 741 (9th Cir. 1987) ("Carriers are strictly prohibited from collecting charges different from those established in their tariffs"). By the plain language of the Shipping Act, LAS Freight was not entitled to collect any of the demurrage and related charges at issue because they are not reflected in a valid tariff. Thus, CMI is entitled to recover the \$276,050 that it was unlawfully charged.

To the extent the Presiding Judge determines that, in the exercise of his discretion,⁵ LAS Freight is entitled to recover amounts it validly expended in transporting CMI's cargo – despite the fact that LAS Freight's tariff does not provide or demurrage or have detention rules – CMI is entitled to recover \$199,095.50. SoF 54. This figure is based upon: 1) the amount of overcharges reflected in the Ferreira Expert Report, Exh. F-1; (\$65,429); 2) CMI's calculations

⁵ *First Int'l Development Corp.* 20 S.R.R. at 212.

of the amount that LAS Freight's agent marked up underlying drayage charges it received (\$42,570) (SoF 52) demurrage charges assessed by LAS Freight for which it does not appear that its agent provided any underlying charges (\$91,096.50) (SoF 53).

CMI further seeks its attorneys' fees in this proceeding. 46 U.S.C. §41305(e).

IV. CONCLUSION

LAS Freight deliberately chose not to participate in this action. Accordingly, a default judgment against LAS Freight is warranted.

The evidence in the record reflects that, acting through its agent, SBA, LAS Freight engaged in deceptive and fraudulent conduct in regard to its billing practices which resulted in CMI having to pay \$276,050 in unjustified demurrage and other ancillary charges. To the extent that the record is incomplete as to the total amount of damages suffered by CMI, it is direct result of LAS Freight's willing and deliberate refusal to participate in this proceeding and to provide relevant information. Accordingly, any uncertainty or gaps in the record should be construed against LAS Freight and a judgment should be entered against LAS Freight in the amount of \$276,050.

Dated: April 6, 2018

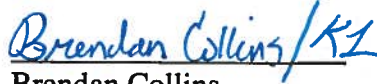
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CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the foregoing document was delivered to the following addressees at the addresses stated by electronic transmission, this 6th day of April 2018:

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Brendan Collins

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RESPONDENTS.

CMI'S PROPOSED FINDINGS OF FACT AS TO LAS FREIGHT SYSTEM LTD.

Procedural History

1. On May 23, 2017, CMI filed a Verified Complaint naming LAS Freight as a Respondent. The Complaint alleges in relevant part that LAS Freight is a Taiwanese private limited company with its principal place of business at 10/F1., No. 44 Lane, 11 Kuang Fu N. Road, Taipei, Taiwan. Complaint at ¶ 4. The Complaint further asserts that at all relevant times to the Complaint, LAS Freight was an OTI within the meaning of the Shipping Act, 46 U.S.C. § 40102(19), subject to regulation by the FMC. *Id.*

2. The Complaint alleges that LAS Freight is a registered NVOCC with FMC Organization number 13673. *Id.* at ¶ 4.

3. Pursuant to 46 C.F.R. § 502.62(b)(1), a respondent must file an answer to a Complaint with the Commission within 25 days after the date of service by the Commission.

4. Although LAS Freight was served with the Complaint by the Commission on May 31, 2017, LAS Freight failed to timely respond to the Complaint. Docket No. 17-05, *CMI*

v. Service By Air, Inc., Notice of Default and Order for LAS Freight Systems Ltd. to Show Cause (FMC Served on August 16, 2017).

5. On July 10, 2017, CMI moved for an initial decision of default against LAS Freight in the amount of \$405,844.05.

6. On July 13, 2017, LAS Freight sent a letter to the Commission's Assistant Secretary that it acted under SBA's instructions for the shipments at issue and attached an email from Bryan Tincher of SBA in which Mr. Tincher informed LAS Freight that the case had been settled.

7. On August 16, 2017, the Administrative Law Judge entered a Notice of Default and Order for LAS Freight Systems Ltd. to Show Cause. The Order required LAS Freight to answer the Verified Complaint and to show cause why an initial decision on default should not be entered against it on or before August 30, 2017.

8. LAS Freight failed to answer the Verified Complaint or to Show Cause why a decision of default should not be entered against it.

9. On October 6, 2017, the Presiding Judge entered an Order dismissing without prejudice claims that did not involve shipments by water from a foreign port to a port in the United States and then on to the United States. The Order denied SBA's Motion to Dismiss the remainder of the claims asserted against it.

10. In this proceeding, CMI is not seeking relief as to shipments that did not move by water from a foreign port to a port in the United States and then on to a final destination in the United States.

11. The total amount of damage for which relief is sought by CMI is \$276,050.50. Declaration of Maria T. Vega in Support of Judgment Against LAS Freight System Ltd. ("Vega Dec."), Exh. G at ¶ 2

Factual History

12. LAS Freight issued bills of lading for the transportation at issue. Vega Dec. at ¶ 3; Exh. G-1.

13. In some instances, LAS Freight's bills of lading identified CMI as the consignee. Vega Dec. at ¶ 4; Exh. G-1.

14. In other instances, CMI was identified as the shipper on the LAS Freight bills of lading. Vega Dec. at ¶ 4; Exh. G-1.

15. With the exception of one shipment, Folder No. 17, Exh. F-1, the LAS Freight bills of lading were through bills of lading showing that the goods were to move from either Qingdao, China, Dalian, China or Shanghai, China through U.S. ports to inland door locations in the United States. Vega Dec. at ¶ 5; Exh. G-1. Most of the inland door locations were in Chicago, Illinois but other door locations were in Alabama, Nevada, New Jersey, Pennsylvania, or Arizona. *Id.*

16. Whether CMI was the shipper or the consignee, SBA was identified as LAS Freight's agent for delivery of the goods. Vega Dec. at ¶ 6; Exh. G-1.

17. SBA acted as an agent for LAS Freight. Deposition of Bryan Tincher ("Tincher Dep.") 30:8-14; Exh. B; Deposition of Ed Zasada ("Zasada Dep.") at 15:3-8, Exh. C (SBA was acting as agent for its affiliate, LAS Freight.)

18. Whether CMI was the shipper or the consignee, the goods were withheld from delivery until CMI paid what were characterized as demurrage charges. Vega Dec. at ¶ 7.

19. For Folder No. 17, the shipment was a container yard to container yard shipment. Vega Dec. at ¶ 8; Exh. F-1. That shipment was not released to CMI until demurrage was paid. *Id.*

20. An NVOCC may not charge customers rates for transportation that are not published in its tariff and effective as of the date of the shipment(s) in question. Ferreira Expert Report, Exh. F.

21. An NVOCC is also required to publish and maintain in its electronic tariff all additional charges related to the transportation services provided such as demurrage and detention. *Id.* As is the case for transportation rates, an NVOCC may only assess additional charges as set forth in its tariff and effective for the time period the charges are assessed. *Id.*

22. LAS Freight does not have a detention rule or detention charges in its tariff. *Id.* Thus, any charges assessed by LAS Freight would not be in compliance with the tariff requirements of the Shipping Act or FMC regulations. *Id.*

23. The invoices issued to CMI by LAS Freight's agent, Service by Air, Inc. ("SBA") were rife with errors and inconsistencies. Vega Dec. at ¶ 9.

24. Throughout the time period when LAS Freight was providing transportation services for CMI, CMI employees repeatedly requested that LAS Freight's agent, SBA provide CMI with details regarding the basis for the demurrage charges being assessed, the amount of demurrage or storage charges it was assessing against CMI, and what parties were actually providing the underlying services. Vega Dec. at ¶ 10; Exh. A-8.

25. LAS Freight's agent, SBA, consistently refused to provide accurate information and supporting documentation. Vega Dec. at ¶ 11. To the extent that SBA provided

documentation regarding the charges it was assessing against CMI, the documentation was varying and often incorrect. *Id.*

26. The invoices issued by LAS Freight's agent, SBA, to CMI were also often misleading, inconsistent, and simply wrong. *Id.* at ¶ 12.

27. It was standard practice for LAS Freight's agent, SBA, to issue invoices that did not break down the cost of demurrage or specify the days of demurrage. Zasada Dep. at 19:23-20:8; Exh. C.

28. The failure to include basic information regarding the charges being assessed made it impossible for CMI to determine the number of days involved and the rates per day for the demurrage for which CMI was being charged. Vega Dec. at ¶ 14.

LAS Freight Assessed Demurrage Charges That Were Not For Demurrage

29. An NVOCC is required to publish and maintain in its electronic tariff all charges, classifications, rules and practices for the transportation services it provides. Ferreira Expert Report, Exh. F.

30. The tariff is required to include, in addition to freight charges, all additional charges related to the transportation services provided such as demurrage and detention. *Id.* As is the case for transportation rates, an NVOCC may only assess additional charges as set forth in its tariff and effective for the time period the charges are assessed. *Id.*

31. LAS Freight does not have a detention rule or detention charges in its tariff. *Id.* Thus, any charges assessed by LAS Freight would not be in compliance with the tariff requirements of the Shipping Act or FMC regulations. *Id.*

32. To the extent that LAS Freight assessed demurrage charges against CMI, it did so incorrectly – even assuming that it could assess such charges without having a tariff in place. *Id.*

33. “Demurrage” charges are assessed by a carrier for the use of space taken up by a container while it is in the carrier’s facility awaiting the customer’s pick-up after free time has expired. *Id.*

34. LAS Freight’s agent, SBA, admits that there was never a time when the containers at issue were in the steamship line’s possession for any extended period of time after their arrival at port. Tincher Dep. at 36:8-11. Instead, containers immediately were taken out of the steamship line’s possession. *Id.* at 36:12-14.

35. Documents produced in discovery by SBA reflect that CMI was invoiced by Freight Tech and other truckers and land-based transportation providers for storage of the containers at issue. Such charges indicate that the containers had been picked up from the carrier’s facilities and were not being held by the VOCCs during the time period in question. Ferreira Expert Report, Exh. F.

36. LAS Freight’s agent, SBA admits that although almost all of the hundreds of thousands of dollars at issue that it assessed against CMI were billed as demurrage charges, none of those invoices were valid because none of the invoices were for time periods when containers in a carrier’s facility awaiting the customer’s pick up after free time had expired. Tincher Dep. at 46:17-21.

37. Despite LAS Freight’s agent, SBA, representing to CMI that steamship lines were assessing demurrage charges, in fact, the containers were not stored past the free time at the port or in the carrier’s facility. *Id.* at 45:8-12 and 46:17-21.

38. LAS Freight’s agent, SBA, admits that although it billed, and collected, hundreds of thousands of dollars in demurrage charges from CMI, CMI did not actually owe any money for demurrage. *Id.* at 43:1-7 and 43:21-44:6.

A. LAS Freight Assessed Charges that were Contrary to Published Tariff Rates

39. "Detention" charges are assessed by a carrier for use of its container equipment (usually a container but it may also include a chassis), which equipment remains in the customer's possession after the expiration of free time. Ferreira Expert Report, Exh. F.

40. Although the goods at issue moved on through bills of lading to CMI's customers, LAS Freight's agent made no effort determine if its billing practices were consistent with LAS Freight's or the steamship line's tariff. Tincher Dep. at 49:20-50:1.

41. Despite the fact that LAS Freight's tariff had no provision allowing it to charge, much less mark up, for demurrage or detention charges, LAS Freight's agent testified that it marked up freight, demurrage and detention charges at a minimum of 20%. Tincher Dep. at 140:13-141:12.

42. Even if LAS Freight could assess detention charges without a valid tariff, which it cannot, the charges assessed are grossly inflated and fraudulent. Ferreira Expert Report, Exh. F-1.

43. The charges assessed here by LAS Freight are related to amounts invoiced to SBA by Freight Tech and other truckers and land-based transportation providers for storage of the containers at issue. *Id.* Such charges indicate that the containers had been picked from the carrier's facilities and were not being held by the vessel operating common carriers during the time period in question. *Id.* Thus, as reflected above, any charges assessed could not accurately be described as demurrage charges. *Id.*

44. To the extent that SBA could collect for the charges at issue, they would have to be for "detention." *Id.*

45. SBA billed CMI for \$1,535 in detention charges. Exh. A-15.

46. Even presuming that LAS Freight could charge CMI at all for detention – given that it incorrectly invoiced CMI for demurrage and that LAS Freight does not have a detention rule in its tariff – the charges assessed are unjustified. Vega Dec. at ¶ 17.

47. CMI was hindered in its ability to conduct an audit of the charges assessed by or on behalf of LAS Freight by the fact that LAS Freight has not participated in this proceeding and has not provided documentation or information in its possession relevant to the shipments at issue in this proceeding and the damages claimed by CMI. Vega Dec. at ¶ 15. The lack of documentation and information from LAS Freight has hindered and foreclosed CMI's ability to ascertain the extent to which charges it was assessed had a lawful basis. *Id.*

48. When CMI was able to determine the dates when specific containers at issue were gated out and gated in by reviewing MSC's automated container tracking system, the evidence reflects that the number of days for which charge were assessed by SBA were often incorrect and seriously inflated. Ferreira Report, Exh. F. For example, for the shipment in Folder 33, CMI was assessed for 31 days of "demurrage." *Id.* MSC's automated container tracking system, however, reflects that the container at issue was gated out on February 23, 2015 and gated in, *i.e.*, returned to MSC, three days later on February 26, 2015. *Id.* Thus, even if LAS Freight had a basis for the charges in its tariff, CMI should not have been charged for 31 days. *Id.* Indeed, because MSC's tariff allows for four days' free time under its detention rules, there should have been no charge – no matter how they are justified. *Id.*

49. The amount that CMI was overcharged – even as calculated under the VOCCs' tariffs – is also a product of the fact that CMI was charged rates that cannot be justified in MSC's tariff, much less LAS Freight's tariff. *Id.*

50. CMI was invoiced by LAS Freight's agent. Vega Dec. at ¶ 18. CMI paid SBA, \$276,060.50 in what was characterized as primarily demurrage charges, but also a small number of detention and storage charges. *Id.*

51. Steve Ferreira's Expert Report reflects that for some of the shipments that MSC moved the cargo, CMI was overcharged \$65,429. Vega Dec. at ¶ 20; Exh. F.

52. CMI reviewed documents produced in discovery by SBA that consisted of demurrage, detention and storage charges assessed against SBA by drayage companies. Vega Dec. at ¶ 21 (CMI did not duplicate the calculations made by Steve Ferreira). CMI then compared the amount that SBA had been charged for demurrage, detention and storage charges with the amount that SBA charged CMI for demurrage, detention and storage. *Id.* These documents reflect that SBA marked up such charges by \$42,570. *Id.*

53. For some of the demurrage charges at issue, CMI received invoices from SBA but no underlying invoice was provided by a drayage company. Vega Dec. at ¶ 22. The total amount of the charges for SBA invoices falling in that category was \$91,096.50. *Id.*

54. Adding the totals in paragraphs 51 to 53, CMI was overcharged by \$199,095.50. Vega Dec. at ¶ 23.

By: Brendan Collins / KL
Brendan Collins

Attorney for Complainant, CMI Distribution

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,
COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

CMI DISTRIBUTION, INC.'S PROPOSED FINDINGS OF FACT AS TO SBA

CMI Distribution, Inc. ("CMI") hereby submits its Proposed Findings of Fact regarding Service By Air, Inc. ("SBA").

I. Commission Jurisdiction

1. CMI contracted with SBA to transport more than 60 containers of plastic bags and vinyl gloves from China into the United States. Declaration of Maria T. Vega in Support of Judgment Against SBA ("Vega Dec.") at ¶ 2, Exh. A. CMI requested that the goods move by ocean transportation and that the goods be delivered to door locations in the United States. *Id.*

2. For those shipments, SBA invoiced CMI over \$400,000 in demurrage and/or storage fees. *Id.* at ¶ 3. The vast majority of the fees charged by SBA and paid by CMI were what SBA billed as demurrage charges. *Id.*

3. On October 6, 2017, the Presiding Judge entered an Order dismissing without prejudice claims that did not involve shipments by water from a foreign port to a port in the United States and then on to the United States. *See* Docket No. 17-05, *CMI v. Service by Air*,

Inc., October 6, 2017 Order. The Order denied SBA's Motion to Dismiss the remainder of the claims asserted against it. *Id.*

4. In this proceeding, CMI is not seeking relief as to shipments that did not move by water from a foreign port to a port in the United States and then on to a final destination in the United States. Vega Dec. at ¶ 4.

5. The total amount of damage for which relief is sought by CMI is \$276,050.50. Vega Dec. at ¶ 5.

6. SBA is a full-service logistics provider that provides both air and ocean services. Deposition of Bryan Tincher ("Tincher Dep.") at 18:10-12; 19-22, Exh. B.

7. CMI utilized UTI, United States Inc. ("UTI") an Ocean Transportation Intermediary ("OTI") to transports goods from China to the United States beginning 2013 to 2014. Vega Dec. at ¶ 6, Exh. A.

8. UTI was a non-vessel operating common carrier ("NVOCC") with a tariff published pursuant to the Shipping Act of 1984. *See* UTI Bill of Lading, Exh. H.

9. In 2014, CMI and SBA engaged in discussions regarding having SBA transport goods from China to the United States on CMI's behalf. Vega Dec. at ¶ 8.

10. In those discussions, SBA represented that it could provide the same type of services that UTI had been providing to CMI. Tincher Dep. at 67:8-11, 67:23-68:8; Exh. B. UTI is an NVOCC. Exh. H.

11. CMI informed SBA that its rates needed to match or beat UTI's rates, which were published in its tariff. Vega Dec. at ¶ 10; Exh. A-1 at 003084.

12. In response, SBA provided CMI with what it purported was SBA's tariff so that CMI could draw a comparison between SBA and UTI's services and respective tariff provisions. Vega Dec. at ¶ 11, Exh. A-2; Tincher Dep. at 58:13-59:1.

13. The SBA tariff that SBA provided to CMI purported that it was effective from August 27, 2014 until September 27, 2014. Vega Dec. at ¶ 12; Exh. A-2.

14. By providing the tariff to CMI, SBA represented to CMI that it was providing the same type of services as UTI. Tincher Dep. at 67:8-11. SBA did not believe it was necessary to make a distinction between the types of NVOCC services that UTI was providing versus the services SBA would be providing. Tincher Dep. at 67:23-68:2.

15. The SBA tariff that SBA provided to CMI had a reference at the top to its Negotiated Rate Agreement ("NRA"). Vega Dec. at ¶ 14; Exh. A-2. The NRA exemption is only available to licensed NVOCCs. 46 C.F.R. § 532.2

16. In addition to the rates set forth therein, the SBA tariff provided to CMI stated that: "During the term of the NRA, transportation is subject to applicable surcharges, accessorial charges, and/or GRIs published in Carrier's tariff and effective at the time of shipment, unless otherwise specified in this NRA (or the originating carrier in the case of through transportation)". Vega Dec. at ¶ 14.

17. Although the tariff provided to CMI referred to SBA's NRA, SBA did not in fact have an NRA. Tincher Dep. at 61:21-62:7.

18. Although the tariff provided to CMI stated that the transportation was subject to applicable surcharges, accessorial charges, and/or GRIs published in Carrier's tariff; SBA did not actually have a published tariff. Tincher Dep. at 61:21-62:7.

19. Although SBA was aware that it should have informed CMI that it did not actually have a tariff, SBA failed to do so. Tincher Dep. at 65: 7-11.

20. CMI had no reason to believe that SBA's reference to SBA's Negotiated Rate Arrangement was false. Vega Dec. at ¶ 15.

21. CMI had no reason to believe that although SBA provided it with what SBA represented to be the Carrier's (SBA's) published tariff, in fact SBA had no published tariff. Vega Dec. at ¶ 16.

22. CMI had no reason to believe that although SBA represented that its tariff had surcharges, accessorial charges, and a General Rate Increase ("GRI") in its tariff, in fact SBA had no tariff. Vega Dec. at ¶ 17.

23. Based in part upon the representations made by SBA regarding its tariff and the rates contained therein, CMI chose to have SBA provide it with ocean transportation services instead of UTI. Vega Dec. at ¶ 19. SBA did not inform CMI that one transportation provider (UTI) was assuming responsibility for the transportation of its goods and the other (SBA) would not be assuming responsibility for the transportation of its goods. Tincher Dep. at 67:23-68:2.

24. Although SBA assumed that a customer would want to know if one transportation provider was assuming responsibility for the transportation of its goods (UTI) and the other was not (SBA), SBA never informed CMI of that fact. Tincher Dep at 68:2-8.

25. After CMI chose to have SBA provide it with NVOCC services instead of UTI, SBA continued to refer to its FOB tariff, despite the fact that SBA did not have a tariff or an NRA. Exh. A-3.

26. In addition to representing that it was a carrier with a published tariff, SBA issued bills of lading to CMI under SBA's name for some of the transportation at issue. Vega Dec. at ¶ 22, Exh. A-4.

27. An airway bill is a bill of lading. Tincher Dep. at 78:22-24.

28. SBA issued its bills of lading to CMI for some of the shipments at issue along with separate invoices. Vega Dec. at ¶ 23-24; Tincher Dep. at 78:9-14.

29. The bills of lading were "issued by Service By Air, Inc., 811 Thorndale Ave., Bensenville, IL. 60106." Vega Dec. at ¶ 23-24; Exh. A-4. Most of the bills of lading issued by SBA identified CMI as the consignee for the shipments at issue. *Id.* at 25. The bills of lading issued by SBA identified CMI's suppliers as the shipper. *Id.*

30. Most of the bills of lading issued by SBA provided that the goods could move by any other means than air and by other carriers. *Id.* at ¶ 26; Exh. A-4.

31. The primary contact person between SBA and CMI for SBA was Bryan Tincher. Tincher Dep. at 53:22-54:3. Mr. Tincher testified under oath that SBA assumed responsibility for the delivery of CMI's cargo. Tincher Dep. at 31:15-21; 33:18-22. This responsibility continued until the cargo was delivered to the ultimate destination. *Id.* at 35:7-10.

32. Once CMI chose to have SBA transport CMI's goods from China to the United States, CMI ceased having any control over the goods or their transportation. Vega Dec. at ¶ 29.

33. SBA, rather than CMI, chose what steamship line would transport CMI's goods. Vega Dec. at ¶ 30.

34. CMI had no contacts with the steamship lines who transported its goods. *Id.* at 31.

35. CMI had no contacts with LAS Freight and solely looked to SBA for the provision of services. *Id.* at 32.

36. SBA's 30(b)(6) witness, Edward Zasada, testified when goods are moving from a port to the ultimate consignee on a through bill of lading, they remain as ocean transportation. Deposition of Ed Zasada ("Zasada Dep.") at 23:13-18, Exh. C.

37. As a result, any charges that are assessed, whether deemed demurrage or detention, are part of the ocean transportation until the goods are actually delivered to the ultimate destination pursuant to the bill of lading. Zasada Dep. at 23:20-24:2.

38. Mr. Tincher testified that if there was damage to CMI's cargo, he would tell CMI to submit a claim to SBA to get credit for its damages. Tincher Dep at 28:1-12.

39. Mr. Tincher believed that even for goods moving under a through bill of lading, the inland portion of the transportation was not part of the ocean transportation. *Id.* at 33:11-34:9.

40. SBA was acting as LAS Freight's business partner when LAS Freight issued bills of lading identifying CMI as the shipper or consignee. Tincher Dep. 86:13-87:9.

41. SBA understands that an NVOCC can only charge what is reflected in the NVOCC's tariff. Zasada Dep. at 24:13-17.

42. When SBA invoiced CMI for demurrage, SBA was billing CMI for charges assessed by the steamship line, but it marked up those charges. Tincher Dep. at 119:3-91, 20:1-3.

43. As reflected in paragraph 132 to 139 below, SBA repeatedly informed CMI that it was in direct communications with steamship lines regarding the demurrage claims at issue. *See* Exh. A-6.

44. Mr. Tincher does not remember ever telling CMI that SBA was using LAS Freight as an NVOCC. Tincher Dep. at 136:3-15.

45. SBA avoided disclosing the fact that other NVOCCs were involved in transporting CMI's goods. Tincher Dep. at 154:19-22; *see also* Zasada Dep. at 25:11-26:9 (chose to refer to "people with the boats" instead of NVOCCs) and 42:18-43:19. Bryan Tincher testified that he failed to disclose this information to CMI because he wanted to keep things "simple." Tincher Dep. at 154:19-22.

46. SBA's 30(b)(6) witness testified that SBA incorrectly referred to SBA as having direct communications with steamship lines because Maria Vega and CMI "do not understand the transportation process and don't understand the terms that we use...." Zasada Dep. at 25:11-22. As a result, SBA would use the term steamship line even though SBA was not referring to a steamship line. *Id.* at 25:8-26:9.

47. Based upon the purported SBA tariff it had been provided by SBA and the SBA bills of lading SBA had issued to CMI, CMI believed that SBA was taking responsibility for the transportation of CMI's shipments, and in doing so, SBA was acting and holding itself out as a carrier. Vega Dec. at ¶ 37.

48. At no point did SBA inform CMI that SBA was not assuming responsibility for the transportation at issue. Vega Dec. at ¶ 20.

49. SBA's actions and practices were consistent with it assuming responsibility for the transportation at issue. Tincher Dep. at 31:15-21.

50. At all times CMI believed that if its goods were damaged in transit, SBA as CMI's carrier would be responsible for such damages. Vega Dec. at ¶ 38.

A. CMI's Partnership with LAS Freight, an NVOCC

51. LAS Freight was SBA's partner. Tincher Dep. at 24:5-24. LAS Freight and SBA split revenues, including for the CMI shipments. *Id.*

52. LAS Freight also acted as SBA's agent in China. Tincher Dep. at 23: 18-21. LAS Freight was acting as SBA's agent throughout the transportation at issue. *Id.* LAS Freight was acting on SBA's behalf throughout the shipments at issue. *Id.* at 52:15-18.

53. Bryan Tincher, who primarily dealt with LAS Freight and CMI for SBA, did not consider LAS Freight to be an NVOCC. Tincher Dep. at 26:1-14.

54. Mr. Tincher did not believe that LAS Freight's issuance of bills of lading meant that it was acting as an NVOCC. Tincher Dep. at 26:1-12.

55. SBA's 30(b)(6) witness, Edward Zasada, testified that he relied upon Mr. Tincher's expertise in regard to whether LAS Freight was acting as an NVOCC. Zasada Dep. at 15:15-17, Exh. C.

II. SBA's Sworn Statements that it is Not Subject to Commission Jurisdiction Lack Credibility

56. Despite repeated requests from CMI, SBA refused to provide details regarding the basis for the charges assessed, the amount of demurrage or storage charges it was assessing against CMI, and what parties were actually providing the underlying services. Vega Dec. at ¶ 42; Exh A-8.

57. This refusal to provide accurate information and supporting documentation started when SBA first began providing ocean transportation services for CMI and has continued unabated throughout this proceeding. Vega Dec. at ¶¶ 43, 77.

58. CMI served Interrogatories on SBA. CMI Interrogatories, Exh. D.

59. CMI requested that SBA identify all shipments for which SBA provided Transportation Services on behalf of CMI from 2013 to the present. Interrogatory No. 4, Exh. D. In its Interrogatories, CMI defined "Transportation Services" as meaning "any services relating to, arising from, or connected with transportation of goods on behalf of CMI." *See* Exh. D.

60. SBA's answer to Interrogatory No. 4 was "*None.*" CMI Interrogatories, Exh. D.

61. In SBA's Motion to Dismiss in this proceeding, it stated that SBA "has never participated in ocean transportation." Exh. I.

62. SBA submitted that sworn statement although it represents that it is a full-service logistics provider that provides both air and ocean services. Tincher Dep. at 18: 19-22; Exh. B.

63. Given that SBA, at a minimum, contracted with CMI and LAS Freight to transport CMI's goods at issue from China to the United States by ocean this statement was knowingly false. Vega Dec. at ¶ 2.

64. In the Second Affidavit of Edward Zasada filed in support of SBA's Reply Brief in Support of its Motion to Dismiss, Mr. Zasada swore under oath at ¶ 9, that SBA made no representation to CMI that any of the demurrage it was collecting was originally charged by a steamship line. Second Affidavit of Edward Zasada ("Aff. Of Zasada"), Exh. E. In fact, however, there were at last 8 separate emails in which this representation was made, *see* Exh A-6, and three of those were made by Mr. Zasada himself and eight emails were copied to Mr. Zasada. *Id.*

65. Mr. Zasada's sworn Affidavit also asserted that "no VOCC demurrage was ever charged or collected" from CMI. Aff. of Zasada at ¶ 10. In deposition testimony, however, Mr. Zasada admitted that the demurrage that was collected was for VOCCs. Zasada Dep at 34:8-16. (Mr. Zasada's Second Affidavit that steamship line demurrage was never being collected "is an inaccurate statement.")

66. Bryan Tincher testified that the demurrage charges at issue were based on steamship line charges. Tincher Dep. 117:10-119:6.

67. SBA falsely informed its partner, LAS Freight, that this case had settled. 145:1-12. SBA never told LAS Freight that this information was inaccurate. *Id.*

III. SBA Billing Practices Were Not Fair and Reasonable and Often Were Fraudulent

68. Throughout the time period when SBA was providing transportation services for CMI, CMI employees repeatedly requested that SBA provide CMI with details regarding the basis for the demurrage charges being assessed, the amount of demurrage or storage charges it was assessing against CMI, and what parties were actually providing the underlying services. Vega Dec. at ¶ 42; Exh. A-8.

69. SBA consistently refused to provide accurate information and supporting documentation. Vega Dec. at ¶ 43. To the extent that SBA provided documentation regarding the charges it was assessing against CMI, the documentation was varying and often incorrect. *Id.* at ¶ 44.

70. The invoices issued by SBA to CMI were also often misleading, inconsistent and simply wrong. *Id.* at ¶ 45.

71. In many instances, SBA issued invoices to CMI, which contained purported charges for Air Freight. *See* sample invoices attached as Exhibit A-9; *see also* Exh. A-10. SBA did this repeatedly despite the fact that virtually all of the transportation at issue moved by ocean. Vega Dec. at ¶ 46.

72. It was standard practice for SBA to issue invoices that did not break down the cost of demurrage or specify the days of demurrage. Zasada Dep. at 19:15-20:9; Exh. C. Thus, for example, SBA issued an invoice which merely stated, "Container Demurrage, \$27,100." Vega Dec. at ¶ 47; Exh A-11.

73. SBA did this despite the fact that it would have been easier for its customers if the invoices reflected the number of days and the rate per day it was being charged instead of just a flat amount. Tincher Dep. at 101:12-102:3.

74. SBA's bills of lading were often incorrect. For example, SBA issued bills of lading to CMI indicating that the goods were moving through locations where they were not actually transported. Vega Dec. at ¶ 50; *See* Exh. A-4. Thus, in some instances, the SBA bill of lading issued to CMI indicated that the goods were transported from Hong Kong to O'Hare Int'l Airport or to Arizona despite the fact that ocean bills of lading issued by SBA's partner, LAS Freight, indicated that the goods moved through various United States Ports. *Id.*

75. SBA normally did not provide CMI with copies of the underlying bills of lading on which its invoices were based. Vega Dec. at ¶ 51.

76. SBA also issued bills of lading to CMI indicating that the goods moved by air when in fact other bills of lading issued by its partner, LAS Freight, indicated that the goods moved by ocean. Vega Dec. at ¶ 52; Exh. A-9.

77. How SBA determined what rates to charge CMI when it invoiced CMI for airfreight for goods that actually moved by ocean is uncertain. Vega Dec. at ¶ 53. In one instance, SBA billed CMI for airfreight in the amount of \$5,400 for the movement of a 20-foot container for a container that was actually transported by the Mediterranean Shipping Company ("MSC") on the MSC Luciana. *Id.*; Exh. A-12.

78. On another occasion, CMI pointed out that it incorrectly had been invoiced for airfreight. Vega Dec. at ¶ 54; Exh. A-13. SBA acknowledged its error and then asserted that the invoice was for demurrage. *Id.*

79. For another container, SBA issued two separate invoices to CMI for airfreight. One invoice charged \$9,600 in airfreight and the second invoice charged \$4,550 in airfreight to CMI. Vega Dec. at ¶ 55; Exh. A-14; Tincher Dep. at 87:15-88:12. Although Bryan Tincher admitted in his sworn testimony that it was an “accounting error” for SBA to bill ocean transportation as airfreight, he testified that he was sure that there was a valid reason for SBA to issue two airfreight invoices. Tincher Dep. at 89:23:9-92:9. SBA believes that if it charged CMI that amount, the charges must be legitimate and CMI should just pay it. *Id.* at 92:5-9.

A. SBA Assessed Demurrage Charges That Were Not For Demurrage

80. An NVOCC is required to publish and maintain in its electronic tariff all charges, classifications, rules and practices for the transportation services it provides. Ferreira Expert Report, Exh. F.

81. The tariff is required to include, in addition to freight charges, all additional charges related to the transportation services provided such as demurrage and detention. *Id.* As is the case for transportation rates, an NVOCC may only assess additional charges as set forth in its tariff and effective for the time period the charges are assessed. *Id.*

82. SBA does not publish a tariff. SBA Response to Interrogatory No. 7, Exh. D. Thus, to the extent that it sought to assess any charges for NVOCC services against CMI, those charges would not be in compliance with the tariff requirements of the Shipping Act or FMC regulations. Ferreira Expert Report, Exh. F.

83. LAS Freight does not have a detention rule or detention charges in its tariff. *Id.* Thus, any charges assessed by LAS Freight would not be in compliance with the tariff requirements of the Shipping Act or FMC regulations. *Id.*

84. To the extent that SBA assessed demurrage charges against CMI, it did so incorrectly – even assuming that it could assess such charges without having a tariff in place. *Id.*

85. “Demurrage” charges are assessed by a carrier for the use of space taken up by a container while it is in the carrier’s facility awaiting the customer’s pick-up after free time has expired. Ferreira Expert Report, Exh. F.

86. SBA admits that there was never a time when the containers at issue were in the steamship line’s possession for any extended period of time after their arrival at port. Tincher Dep. at 36:8-11. Instead, containers immediately were taken out of the steamship line’s possession. *Id.* at 36:12-14.

87. Documents produced in discovery by SBA reflect that SBA was invoiced by Freight Tech and other truckers and land-based transportation providers for storage of the containers at issue. Such charges indicate that the containers had been picked from the carrier’s facilities and were not being held by the VOCCs during the time period in question. Ferreira Expert Report, Exh. F.

88. SBA admits that although almost all of the hundreds of thousands of dollars at issue that it assessed against CMI were billed as demurrage charges, none of those invoices were valid because none of the invoices were for time periods when containers in a carrier’s facility awaiting the customer’s pick up after free time had expired. Tincher Dep. at 46:10-24, Exh. B

89. Despite SBA representing to CMI that steamship lines were assessing demurrage charges, in fact, the containers were not stored past the free time at the port or in the carrier’s facility. *Id.* at 46:17-21; 45:8-12.

90. Thus, SBA admits that although it billed, and collected, hundreds of thousands of dollars in demurrage charges from CMI, CMI did not actually owe any money for demurrage. *Id.* at 43:1-7, 43:21-44:6.

B. SBA Assessed Charges that were Contrary to Published Tariff Rates

91. SBA may assert that although it incorrectly billed CMI for demurrage, it is entitled to collect for detention or storage. Tincher Dep. at 43:9-19.

92. “Detention” charges are assessed by a carrier for use of its container equipment (usually a container but it may also include a chassis) which equipment remains in the customer’s possession after the expiration of free time. Ferreira Expert Report, Exh. F.

93. Although the goods at issue moved on through bills of lading to CMI’s customers, SBA made no effort determine if its billing practices were consistent with LAS Freight’s or the steamship line’s tariff. Tincher Dep. at 49:19-50:1; Exh. B.

94. Mr. Tincher understood that there were provisions in a carrier’s tariff reflecting what charges could be assessed for use of its containers but thought that charges for the use and storage of the steamship line’s containers were determined by the railroads. *Id.* at 40:12-41:22.

95. Despite the fact that SBA had no tariff and that LAS Freight’s tariff had no provision allowing it to charge, much less mark up, for demurrage or detention charges, SBA testified that it marked up freight, demurrage and detention charges at a minimum of 20%. Tincher Dep. at 140:13-141:12.

96. Even if SBA could assess detention charges without a valid tariff, which it cannot, the charges assessed are grossly inflated and fraudulent. Ferreira Expert Report, Exh. F.

97. The charges assessed by SBA are related to amounts invoiced to SBA by Freight Tech and other truckers and land-based transportation providers for storage of the containers at

issue. *Id.* Such charges indicate that the containers had been picked from the carrier's facilities and were not being held by the vessel operating common carriers during the time period in question. *Id.* Thus, as reflected above, any charges assessed could not accurately be described as demurrage charges. *Id.*

98. To the extent that SBA could collect for the charges at issue, they would have to be for "detention." *Id.*

99. SBA billed CMI for \$1,535 in detention charges. Vega Dec. at ¶ 56; Exh. A-15

100. Even presuming that SBA could charge CMI at all for detention – given that it incorrectly invoiced CMI for demurrage and that SBA does not have a tariff – the charges assessed are unjustified. Vega Dec. at ¶ 57.

101. CMI was hindered in its ability to determine the exact amount SBA overcharged it because LAS Freight has not participated in this proceeding and has not provided documents reflecting what detention charges were actually assessed by the VOCCs that provided the underlying transportation and/or what period the containers at issue were "gated out" (the period when the containers were removed from the carriers' possession) and "gated in" (when they were returned to the carrier.) *Id.* at ¶ 58.

102. It was not until Steve Ferreira performed the analysis necessary for his Expert Report in February of 2018 that CMI learned that SBA was fraudulently billing CMI for failure to return VOCCs' containers during time periods when the containers had already been returned to the VOCC. *Id.* at ¶ 59.

103. For some of the shipments transported by Mediterranean Shipping Company ("MSC"), CMI's expert, Steve Ferreira, was able to determine the dates when specific containers at issue were gated out and gated in by reviewing MSC's automated container tracking system.

Id. (Other VOCCs that transported shipments at issue do not maintain information in their container tracking systems that date back to the time period at issue (and MSC does not have data regarding all the containers in its tracking system. Exh. F.

104. The chart attached as Exh. F-1 to the Ferreira Report demonstrates that for 11 of the containers at issue that were transported by MSC for which container data is available in MSC's automated container tracking system, CMI was assessed \$95,089 in what SBA inaccurately described as demurrage charges. Pursuant to MSC's tariff, however, the amount that could have been charged under the MSC tariff was only \$29,600. Ferreira Expert Report, Exh. F.

105. CMI's overcharges were partly due to the fact that the number of days for which SBA assessed the charge were often incorrect and seriously inflated. *Id.* By way of example, for the shipment in Folder 33, Exh. F-1, CMI was assessed for 31 days of "demurrage." *See also* Exh. F-1. MSC's automated container tracking system, however, reflects that the container at issue was gated out on February 23, 2015 and gated in, *i.e.*, returned to MSC, three days later on February 26, 2015. Ferreira Expert Report, Exh. F. Thus, even if LAS Freight or SBA had a basis for the charges in its tariff, CMI should not have been charged for 31 days. *Id.* Indeed, because MSC's tariff allows for four days' free time under its detention rules, there should have been no charge – no matter how they are justified. *Id.*

106. SBA never made any effort to determine if the invoices it was receiving from drayage companies such as Freight Tech were accurate. Tincher Dep. at 104:19-22. SBA just assumed that the drayage invoices were accurate. *Id.*

107. The amount that CMI was overcharged even as calculated under the VOCCs' tariffs is also a product of the fact that CMI was charged rates that did not exist in MSC's tariff,

much less LAS Freight's tariff. Ferreira Expert Report, Exh. F. MSC's detention rules allow for 4 free days from the gate out date before detention charges are assessed. The detention rates are then as follows: subsequent four days (\$115); next four days (\$165) and \$195 per day thereafter. Although the basis for the "demurrage" charges assessed against CMI is not clearly articulated by SBA, CMI was charged rates in excess of \$300 per hour. *See, e.g.*, Exh. F-1, Folder 33 (31 days X \$309.67 = \$9,600).

108. SBA was charging CMI \$300 per day for what SBA called demurrage – even though no demurrage existed. Tincher Dep. at 49:5-7.

109. SBA assumed that CMI understood it was being billed incorrectly for demurrage because CMI paid SBA's invoices. *Id.* at 44:20-45:3.

110. CMI was never provided an invoice from the steamship line or other documentation reflecting the basis for charging CMI \$300 (or any other amount) per day for container demurrage. Vega Dec. at ¶ 60.

111. Records CMI was able to obtain in discovery reflect that other VOCCs, including NYK Line, K Line and Yang Ming, carried some of the shipments at issue. Ferreira Expert Report, Exh. F.

112. NYK Line's tariff provides for 4 days of free time for detention charges. Subsequently, NYK Line charges detention rates of \$140 per day. *Id.*

113. K Line's tariff has a detention charge of \$100 per day. *Id.*

114. Yang Ming allows four days of free time and subsequently charges detention rates of \$130 per day. *Id.*

115. CMI was billed for charges well in excess of the rates reflected in each of those VOCCs' tariffs. In most instances CMI was charged \$300 per day in what inaccurately was described as demurrage charges. Tincher Dep. at 118:11 – 119:6; 122:17-20.

C. SBA's Markups Were Exorbitant

116. SBA represented to CMI that the "demurrage" charges being assessed were pass through charges from the steamship line. Vega Dec. at ¶ 61; Exh. A-5 ("We paid demurrage up to June 18 and this is what you are billed for.") As reflected above and shown more fully below, SBA's mark ups for the shipments at issue were often exorbitant. *Id.* at ¶ 63.

117. SBA charged \$300 per day for demurrage despite fact that underlying charge was only \$100 per day because every company needs to make money and that is why SBA is in business. Tincher Dep. at 127:14-22

118. SBA's 30(b)(6) witness testified that SBA could only mark-up freight charges a little. Zasada Dep. 28:10-20. Most of SBA's profit was in demurrage and detention and other ancillary charges. 28:21-29:1 ("It turned into profit. Yes.")

119. Bryan Tincher testified that SBA's corporate policy was to markup costs by at least 20%. Tincher Dep. at 38:2-22.

120. For most of the shipments at issue, the markup was significantly higher than 20%. Tincher Dep. at 93:10-95:16, 109:11-110:16, 118:11-119:2,

121. SBA received invoices from truckers and drayage companies for costs associated with storing containers. Vega Dec. at ¶ 41; *see* sample invoices, Exh. A-7.

122. SBA never shared the underlying invoices from the drayage company because it did not want to show its mark up. Tincher 105:7-106:1.

123. SBA represented to CMI that the "demurrage" charges being assessed were straight pass through costs and there was no mark up at all. Vega Dec. at ¶ 61; Exh. A-5. SBA certainly never disclosed that it was marking up invoices by up to 800%. *Id.* at ¶ 62.

124. CMI never informed SBA that it wanted SBA to charge it \$300 per day for demurrage or detention. Vega Dec. at ¶ 65. There would have been no reason to do so. *Id.*

125. CMI did ask SBA to provide it with estimates of what demurrage charges were accruing because SBA often issued conflicting invoices reflecting exorbitant amounts for demurrage with no back up documentation. Vega Dec. at ¶ 66. SBA's billing practices made it impossible for CMI to operate efficiently. *Id.*

126. For goods moving under Bill of Lading Number N771678, SBA received an invoice from the drayage company, Jewels Transportation, for storage in the amount of \$852. Exh. B-2. SBA then invoiced CMI for storage in the amount of \$6,650.00 for storage, a markup in excess of 780%. Exh. B-2.

127. Bryan Tincher testified that the reason for the markup was probably because SBA had lost money on another file and wanted to make it up on this shipment. Tincher Dep. at 94:20-24. He testified that a markup in excess of 780% was appropriate. 95:10-19.

128. SBA never informed CMI that it was marking up invoices by 100, 200, 300, 400, 500, 600, 700 or 800 percent. Tincher Dep. 96:13-23.¹

129. In another instance, Freight Tech invoiced SBA \$9,158 in various charges. Tincher Dep. at 133:16-134:4; Exh. B-3. Of that amount, \$6,125 was for demurrage for 49 days (at \$125 per day) and \$1,200 was for yard storage (at \$25 per day) for 48 days, and \$1,225 in chassis charges. *Id.* The total amount that could be deemed ancillary charges was \$8,550. *Id.*

¹ At this juncture, SBA's counsel instructed Mr. Tincher not to answer any further questions on whether the markup was appropriate. 97:2-24.

(The other charges such as for fuel surcharges were classified as part of freight charges that were billed separately by SBA (and also marked up at least 20%). SBA then charged CMI for \$14,100 in container demurrage. *Id.* Thus, SBA marked up the invoice by in excess of \$5,550.

130. Examples of some of SBA's other marks ups are below.

a. The drayage company, Freight Tech, charged \$100 per day for demurrage for NYK containers. SBA then marked up that charge to \$300 per day – a 300% mark up. Tincher Dep at 118:11-119:6 (SBA charged \$300 per day for 'demurrage' regardless of the underlying rate.) Neither SBA nor LAS Freight had tariff provisions for demurrage or detention charges or provisions allowing for any mark up in demurrage charges, much as less a 300% markup. Tincher Dep. 119:1-9; SBA Response to Interrogatory No. 7, Exh. D; Ferreira Expert Report, Exh. F.

b. Although Freight Tech invoiced SBA \$5,200 in demurrage (and \$2875 in other ancillary charges), SBA billed CMI \$14,300 in container demurrage. Neither SBA nor LAS Freight had tariff provisions for demurrage or detention charges or provisions allowing for any mark up in demurrage charges. Tincher at Dep. 120:6-24; Exh. B-1.

c. Although Freight Tech invoiced SBA \$1,000 in demurrage charges (and \$800 in other ancillary charges). SBA billed CMI \$6,325 in container demurrage charges. That is in excess of a 300% mark up. Neither SBA nor LAS Freight had tariff provisions for demurrage or detention charges or provisions allowing for any mark up in demurrage charges. Tincher Dep. at 123:7-124:14; Exh. B-5

d. Although Freight Tech invoiced SBA \$3,600 in demurrage charges (and a \$1,675 in other ancillary charges), SBA billed CMI \$9,900 in container demurrage charges. Neither SBA nor LAS Freight had tariff provisions for demurrage or detention charges or provisions allowing for any mark up in demurrage charges. Tincher Dep. 125:1-8. Exh. B-6

e. Although SBA was charged \$700 (at \$100 per day for four days and \$150 per day for two days) for “demurrage” for MSC containers (and \$475 in other ancillary charges) SBA billed CMI \$2,700 for container demurrage. Neither SBA nor LAS Freight had tariff provisions for demurrage or detention charges or provisions allowing for any mark up in demurrage charges. Tincher Dep. 128:21-129:7; Exh. B-7.

f. Although SBA was charged \$2,480 (at \$140 per day for eight days and \$170 per day for eight days) for “demurrage” for MSC containers (and \$ 600 in other ancillary charges) SBA billed CMI \$8,400 for container demurrage. Neither SBA nor LAS Freight had tariff provisions for demurrage or detention charges or provisions allowing for any mark up in demurrage charges. Tincher Dep. 130:11-131:15; Exh. B-8.

131. When CMI inquired of SBA why its demurrage and storage charges were so high, SBA informed CMI that the rates being charged were merely pass throughs of other transportation providers’ charges. Vega Dec. at ¶ 61; Exh. A-5.

D. SBA's False Statements Regarding Steamship Lines Threatening to Seize Containers

132. In contemporaneous communications, SBA repeatedly asserted that steamship lines were going to seize CMI containers due to unpaid demurrage charges. Vega Dec. at ¶ 68; Exh. A-6.

133. In response to discovery requests, however, SBA represented that it never actually had any communications with steamship lines and thus these statements were fabrications. *See* SBA Response to Interrogatory Nos. 36-38, attached as Exh. D; Zasada Dep. at 25:8-10, Exh. C. (SBA had no contact with the steamship line.) Some of the many instances when SBA made such misrepresentations are set forth below:

- a. In communications with CMI on June 29, 2015, SBA represented that the SS [steamship line] was giving SBA Global Logistics Services a difficult time regarding demurrage. *See* Exh. A-6.
- b. In other communications with CMI, SBA Global Logistics Services represented that the container demurrage charges were non-negotiable because it had "already paid the SS [steamship] Line." Exh. A-6 at 5. SBA Global Logistics Services also reported that the SS line will not accept any more delays."
- c. SBA informed CMI that if it did not pay demurrage on three containers, "the steamship line was going to confiscate [the containers] and put a lien on them." Exh. A-6 at 7.
- d. On June 23, 2015 Ed Zasada informed CMI that SBA had to pay demurrage on 3 containers because the steamship line was going to confiscate and put a lien on them. Exh. A-6 at 7.

e. On June 29, 2015, Ed Zasada of SBA informed CMI that SBA was able to save CMI money on demurrage because SBA had pleaded with various steamship lines for help with charges and had some success. Exh. A-6.

f. Bryan Tincher told CMI that the SS Line said they would take action if the containers were not emptied by Thursday and that they would warehouse them in Las Vegas. Exh. A-6.

g. CMI reported that Steamship line was giving you a difficult time about returning their empty back. Exh. A-6 at 4.

h. CMI again referring to the SS Line giving it hard time about a container. Exh. A-6 at 7.

134. When CMI sought discovery from SBA regarding what steamship lines were making the threats referenced in paragraph above, SBA's answer was "None." Response to Interrogatory Numbers 36, 37, and 38, Exh. D.

135. When asked what steamship lines SBA had already paid demurrage on CMI's behalf, SBA again admitted "None." Interrogatory Response No. 42, Exh. D.

136. In Bryan Tincher's deposition testimony, Tincher admitted that neither he nor anyone else from SBA ever dealt directly with steamship lines. Tincher Dep. at 148:12-150:3.

137. There was never a time when the containers at issue were ever in the steamship line's possession for an extended period of time. Tincher Dep. at 36:8-11. The containers were always immediately taken out of the steamship line's possession. Tincher Dep. at 36:12- 14.

138. SBA was stripping containers without CMI's knowledge or consent. Tincher Dep. at 168:4-169:2; Exh. A-6. After stripping containers, it was storing the goods in its warehouse, Tincher Dep. 169:11-20. SBA did not inform CMI that its goods were not being stored in SBA

warehouse but instead in a trucker's warehouse because SBA did not want to reveal to CMI who SBA was dealing with in its transactions. *Id.* at 170:6-10 ("I don't think it's necessary to do so. They never ask.").

139. In deposition testimony SBA asserted that it made these false representations regarding its communications with steamship lines because CMI was an unsophisticated customer and it did not want to "confuse" CMI by telling it that other NVOCCs were actually transporting cargo and it wanted to keep things "simple" for CMI. Tincher Dep. at 154:19-22; Zasada Dep. at 25:18-26:9 and 42:18-43:19.

E. SBA Improper Held Containers as Hostage for Payment for Unrelated Services

140. For some containers, even though the supplier had been paid and the containers were ready for release, and even though there were no charges associated with those containers, SBA refused to release them until it was paid demurrage charges on other unrelated shipments. Tincher Dep. at 112:1-113:3. This decision was made at the corporate level. *Id.* at 112:9-12; 114:4-11:6.

141. SBA would not release the containers in its possession until CMI paid what SBA incorrectly characterized as demurrage on other containers that SBA was billing at a rate of \$300 per day. Tincher Dep. 122:17-20; *see also* Tincher Dep. 121:1-4; Exh. B-1 (what SBA called demurrage charge was billed at \$100 a day by drayage company and was marked up by SBA to \$300 per day).

142. In May of 2015, SBA informed CMI that it refused to release 15 containers in its possession until CMI paid \$267,000. Vega Dec. at ¶ 70. This amount sought was based on what SBA said was demurrage that had accrued on other containers that SBA was billing at a rate of \$300 per day. *Id.*; Exh. A-16.

143. Some of the charges that SBA was demanding be paid before it would release containers included charges arising out of instances when CMI was billed thousands of dollars for the supposed delayed return of containers to MSC, despite the fact that the containers had immediately been returned to MSC and no charges had accrued. *See* Ferreira Report, Folder 33, Exh. F (CMI assessed for 31 days of “demurrage” despite fact that MSC’s automated container tracking system reflects that the container at issue was gated out on February 23, 2015 and gated in three days later on February 26, 2015). Vega Dec. at ¶ 71.

144. In order to obtain the release of some of its 15 containers, and so that CMI could continue to operate, CMI paid SBA \$178,962.74 on May 8, 2015. Vega Dec. at ¶ 72; Exh A-17.

145. Upon receipt of that payment, SBA released some of CMI’s containers but continued to hold a number of additional CMI containers. Vega Dec. at ¶ 73; Exh. A-16.

146. On June 5, 2015, Ed Zasada of SBA informed CMI that “Corporate” wanted more payments to be made before SBA would release an additional three (3) containers on which no payments were owed. Vega Dec. at ¶ 74; Exh. A-16. Again, CMI was compelled to make such payments in order to obtain the release of its containers. Vega Dec. at ¶ 74.

147. Ultimately, CMI had to pay in excess of \$267,000 to obtain the release of containers on which no demurrage or other charges were outstanding. Vega Dec. at ¶ 75.

F. SBA’s Refusal to Provide Information Regarding Marked Up and Fraudulent Demurrage Charges

148. CMI served an Interrogatory upon SBA seeking the amount that SBA charges CMI for demurrage, detention, per diem or storage in excess of what SBA was billed by third parties. Interrogatory No. 31, Exh. D. SBA answered that because of the “complexity” of SBA’s relationship with CMI, SBA could not provide such information for each shipment but that it generally applied a surcharge of 20% of the amount SBA paid to third party service providers.

Id.

149. The statement that SBA was unable to determine the amount it surcharged CMI was false. Zasada Dep. at 28:4-7. When asked whether SBA could determine how much the markup was, Ed Zasada admitted that “I run the sales reports many time and I know exactly the the profit on the accounts overall.”) *Id.*

150. Despite this admission, SBA refused to provide a meaningful response to the discovery request. Vega Dec. at ¶ 77.

CMI's Damages

151. CMI was invoiced by SBA, and paid SBA, \$276,060.50 in what SBA characterized as primarily demurrage charges, but also a small number of detention and storage charges. Vega Dec. at ¶ 78.

152. Steve Ferreira's Expert Report reflects that for some of the shipments that MSC moved the cargo, CMI was overcharged \$65,429. Exh. F-1.

153. CMI reviewed documents produced in discovery by SBA that consisted of demurrage, detention and storage charges assessed against SBA by drayage companies. Vega Dec. at 80. (CMI did not duplicate the calculations made by Steve Ferreira). CMI then compared the amount that SBA had been charged for demurrage, detention and storage charges with the amount that SBA charged CMI for demurrage, detention and storage. *Id.* These documents reflect that SBA marked up such charges by \$42,570. *Id.*

154. For some of the demurrage charges at issue, CMI received invoices from SBA but no underlying invoice was provided by a drayage company. Vega Dec. at ¶ 81. The total amount of the charges for SBA invoices falling in that category was \$91,096.50. *Id.*

155. Adding the totals in paragraph 152-154, CMI was overcharged by \$199,095.50.

Vega Dec. at ¶ 82.

By: Brendan Collins / KC
Brendan Collins

Attorney for Complainant, CMI Distribution

EXHIBIT A5

From: Bryan Tincher
To: Maria Teresa Vega
Sent: 7/8/2015 11:50:58 AM
Subject: RE: CMI Invoices

Maria
Please send the credit card to payments@sbaglobal.com
Denise is leaving soon.

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Maria Teresa Vega [<mailto:mariav@cmipackaging.com>]
Sent: Tuesday, July 07, 2015 11:27 AM
To: Bryan Tincher
Cc: Diana Alvarado; Ed Zasada
Subject: RE: CMI Invoices

OK were you able to talk to ED about his last email and the additional 18,900 amount that you say is added to his amount, we still don't understand how that could be if there were only 12 days from the date of his last email to me, how is that possible.

Can you get back to me on this. I would like to pay those last 2 delivery demurrage he mentioned in his email and pay this container. We are so close to the end can you please find out with Ed the correct amount.

Thanks

Maria T. Vega
Financial Controller

CMI Distribution, LLC
540 Allendale Dr.
Wheeling, IL 60090
847-947-7400
mariav@cmipackaging.com

From: Bryan Tincher [<mailto:tincherb@sbaglobal.com>]
Sent: Tuesday, July 07, 2015 11:19 AM
To: Maria Teresa Vega; Ed Zasada; Michael Miller
Cc: Diana Alvarado
Subject: RE: CMI Invoices

Maria
I need the containers emptied by Thursday or the SS Line will take action.



RADIANT002242

If it comes to it, I will have to have them emptied and warehoused in Las Vegas until payment is straightened out.
Note this will incur additional charges.

Have you paid the factory KKFU1167644? When can we expect the telex release.

Sincerely

Bryan J. Tincher

Import/Export Manager



SBA Global-ORD

811 Thorndale Ave

Bensenville, IL 60106

630-616-1212

Fax 630-616-1112

cell 847-212-3051

From: Bryan Tincher [mailto:tincherb@sbaglobal.com]

Sent: Monday, July 06, 2015 2:17 PM

To: 'Maria Teresa Vega'; Ed Zasada; Michael Miller

Subject: RE: CMI Invoices

We paid demurrage up to June 18 and this is what you are billed for.
From this date to 9 July is 21 days at \$300 per day x 3 containers.

Sincerely

Bryan J. Tincher

Import/Export Manager



SBA Global-ORD

811 Thorndale Ave

Bensenville, IL 60106

630-616-1212

Fax 630-616-1112

cell 847-212-3051

From: Maria Teresa Vega [mailto:mariav@cmipackaging.com]

Sent: Monday, July 06, 2015 2:04 PM

To: Bryan Tincher

Subject: FW: CMI Invoices

Maria T. Vega

Financial Controller

CMI Distribution, LLC

540 Allendale Dr.

Wheeling, IL 60090

847-947-7400

mariav@cmipackaging.com

From: Ed Zasada [mailto:zasadae@sbaglobal.com]

Sent: Tuesday, June 23, 2015 4:00 PM

RADIANT002243

To: Maria Teresa Vega
Cc: Bryan Tincher
Subject: FW: CMI Invoices

Good afternoon Maria,

Bryan told me you're hoping to return the 2 highlighted containers below to China, when you can let us know if the vendor will allow that and who will pay for the return. I understand he also advised you SBA had to pay the demurrage to date on all 3 containers because the steamship line was going to confiscate and put a lien on them. Before anything can be done with these containers CMI will need to pay the demurrage to date on all 3 containers and the demurrage on the 2 containers delivered last week. Please advise your payment schedule.

Thanks,

Ed

B852231 demurrage ORD = \$12600.00 *delivered last week

B851991 demurrage ORD = \$18000.00 *delivered last week

KKFU1167644	B852232	demurrage LAS = \$12250.00
KKFU1363499	B852230	demurrage LAS = \$12400.00 *possible return
KKFU1614383	B852230	demurrage LAS = \$12400.00 *possible return

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EXHIBIT A8

From: Bryan Tincher <tincherb@sbaglobal.com>
Sent: Monday, April 27, 2015 2:12 PM
To: Diana Alvarado
Cc: Michael Miller; Maria Teresa Vega
Subject: RE: Demurrage Detail NEEDED

See below.
First one is still in storage.

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Diana Alvarado [mailto:dianaA@cmipackaging.com]
Sent: Monday, April 27, 2015 9:36 AM
To: Bryan Tincher
Cc: Michael Miller; Maria Teresa Vega
Subject: Demurrage Detail NEEDED

Bryan,

Please your help with the detail for demurrage on this containers.

Also, who do we need to talk with for the invoices for demurrage since we are not getting them physically , the only way we get them is via you.

SUPPLIER	DEMURRAGE NUMBER	INVOICE NUMBER	CONTAINER	AMOUNT	DATE CAME IN	DATE WENT OUT
POLYWEL		N771679	GLDU9071069		03/9	
YANTAI		N771724	TEXU7288541	None	03/29	03/30
WEIFANG CHENXI		N771756	MSCU5881621	\$2700	04/06	04/15

DIANA ALVARADO
ACCOUNT MANAGER

CMi DISTRIBUTION
PH: 847 947 7400

555 ALLENDALE DRIVE
WHEELING, IL

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From: Bryan Tincher <tincherb@sbaglobal.com>
Sent: Wednesday, March 11, 2015 1:10 PM
To: Abigail Cuevas
Subject: RE:

I know what file you're talking about.

N771288

Messenger is because this container was refused by Hercules and Maria wanted 1 carton sent to you guys so she can determine what was wrong with the product.

Port surcharge was a temporary fee the SS Lines were charging everybody because of the port congestion in Long Beach.

Sincerely

Bryan J. Tincher

Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Ella Segal [mailto:Ella@cmipackaging.com]
Sent: Wednesday, March 11, 2015 11:59 AM
To: Bryan Tincher
Subject:

Hello Bryan,

I have a question about couple of new charges on some of yours invoices: messenger and port surcharge. What are these charges for? Please advise.

Thanks,

Ella Segal

A/P Coordinator

847-947-7400

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by return e-mail and permanently delete all copies.

From: Bryan Tincher <tincherb@sbaglobal.com>
Sent: Wednesday, March 25, 2015 4:42 PM
To: Diana Alvarado; Michael Miller
Cc: Maria Teresa Vega; Jay Jalowiecki
Subject: RE: NEED DETAIL - CMI B-bill invoices

I'll work on it.

Sincerely
Bryan J. Tincher
Import/Export Manager

SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

-----Original Message-----

From: Diana Alvarado [<mailto:dianaA@cmipackaging.com>]
Sent: Wednesday, March 25, 2015 3:41 PM
To: Bryan Tincher; millerm@sbaglobal.com
Cc: Maria Teresa Vega; Jay Jalowiecki
Subject: NEED DETAIL - CMI B-bill invoices

Bryan,

We got the invoices for demurrage but we still need the detail for them.
Attached is demurrage spread sheet I made, please help us with your input on the dates.

Mike,

Why the total of the demurrage is \$ 85.225 , when we talked about \$ 75.000 the day you came?

Thank you in advance for your help.

-----Original Message-----

From: Bryan Tincher [<mailto:tincherb@sbaglobal.com>]
Sent: Wednesday, March 25, 2015 3:09 PM
To: Diana Alvarado
Subject: FW: CMI B-bill invoices

Diana
See attached.

Sincerely

Bryan J. Tincher
Import/Export Manager

SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

-----Original Message-----

From: Ed Zasada [<mailto:zasadae@sbaglobal.com>]
Sent: Wednesday, March 25, 2015 3:07 PM
To: Bryan Tincher
Subject: CMI B-bill invoices

Requested Invoices Attached.

Hawb	Customer Acct	Customer Name
B770924	718845	CMI DISTRIBUTION - PACKAGING
B771104	718845	CMI DISTRIBUTION - PACKAGING
B771397	718845	CMI DISTRIBUTION - PACKAGING
B771501	718845	CMI DISTRIBUTION - PACKAGING
B771043	718845	CMI DISTRIBUTION - PACKAGING
B771547	718845	CMI DISTRIBUTION - PACKAGING

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From: Bryan Tincher <tincherb@sbaglobal.com>
Sent: Tuesday, March 17, 2015 5:07 PM
To: Diana Alvarado
Cc: Maria Teresa Vega; Mike Gallo
Subject: RE: CONTAINER SIZE NEEDED

There was a GRI at the new year.

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Diana Alvarado [mailto:dianaA@cmipackaging.com]
Sent: Tuesday, March 17, 2015 4:06 PM
To: Bryan Tincher
Cc: Maria Teresa Vega; Mike Gallo
Subject: RE: CONTAINER SIZE NEEDED

Bryan,

We have this question:

1. If N771547 is a 40' and it is ship to Chicago , why are we getting charge \$5.350 on this one? I think you are charging us wrong on this container. It should be \$ 4.130.

INVOICE	CONTAINER SIZE
N771288	40
N771547	40
N771501	2x20
N771104	20
N771397	20

From: Bryan Tincher [mailto:tincherb@sbaglobal.com]
Sent: Tuesday, March 17, 2015 3:48 PM
To: Diana Alvarado

Cc: Maria Teresa Vega
Subject: RE: CONTAINER SIZE NEEDED

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Diana Alvarado [mailto:dianaA@cmipackaging.com]
Sent: Tuesday, March 17, 2015 3:45 PM
To: Bryan Tincher
Cc: Maria Teresa Vega
Subject: CONTAINER SIZE NEEDED

INVOICE	CONTAINER SIZE
N771288	40
N771547	40
N771501	2x20
N771104	20
N771397	20

DIANA ALVARADO
ACCOUNT MANAGER

CMV DISTRIBUTION
555 ALLENDALE DRIVE
WHEELING, IL
PH: 847 947 7400

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From: Ed Zasada <zasadae@sbaglobal.com>
Sent: Tuesday, June 02, 2015 3:11 PM
To: Maria Teresa Vega
Cc: Diana Alvarado; Abigail Cuevas
Subject: RE: CMI containers 5-27-15

Will do Maria, I just returned to the office so give me a few minutes.

From: Maria Teresa Vega [mailto:mariav@cmipackaging.com]
Sent: Tuesday, June 02, 2015 2:10 PM
To: Ed Zasada
Cc: Diana Alvarado; Ella Segal
Subject: RE: CMI containers 5-27-15

Good afternoon Ed, (See below email)

I am just a little confused about the invoices we just paid, they did not appear on the schedule of info you sent me last week regarding outstanding demurrage invoices requested. Can I get a complete listing of containers and demurrage invoice amounts as of today. I need to see what invoices are still pending and what containers are still held and on what number of days demurrage is accruing at what rate.

Thanks

Maria T. Vega
Financial Controller

CMI Distribution, LLC
540 Allendale Dr.
Wheeling, IL 60090
847-947-7400
maria@cmipackaging.com

From: Ed Zasada [mailto:zasadae@sbaglobal.com]
Sent: Wednesday, May 27, 2015 2:26 PM
To: Maria Teresa Vega
Subject: FW: CMI containers 5-27-15

PCIU859221	B851991	\$ 5105.00	35 days
MSCU567093	B852111	\$5045.00	14 days
MSCU591550	B852231	\$4070.00	14 days
MSCU4337608	B771910	\$2356.50	14 day
CAXU4049893	B771678	\$2860.50	56 days
KKFU1167644	B852232	\$1167.00	
KKFU1363499	B852230	\$1167.00	
KKFU1614383	B852230	\$1167.00	

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From: Ed Zasada <zasadae@sbaglobal.com>
Sent: Wednesday, May 20, 2015 1:06 PM
To: Maria Teresa Vega
Cc: Bryan Tincher; Michael Miller
Subject: RE: SBA PAYMENT & CONTAINER COUNT

Friday payment on balance (\$14,166.27) is approved; I'll forward transfer and cc info to A/R. As soon as we get confirmation from corp we'll get those containers rolling to you.

From: Maria Teresa Vega [mailto:mariav@cmipackaging.com]
Sent: Wednesday, May 20, 2015 12:01 PM
To: Ed Zasada
Subject: RE: SBA PAYMENT & CONTAINER COUNT

Ed here are the wire transfer confirmation and a copy of the fax to SBA. Please let me know if containers will be released today. I received the copies of the invoices and I hope that corporate will agree to the payment on Friday.

Thanks,

Maria T. Vega
Financial Controller

CMI Distribution, LLC
540 Allendale Dr.
Wheeling, IL 60090
847-947-7400
maria@cmipackaging.com

From: Ed Zasada [mailto:zasadae@sbaglobal.com]
Sent: Wednesday, May 20, 2015 11:21 AM
To: Maria Teresa Vega
Cc: Arnold Goldstein
Subject: SBA PAYMENT & CONTAINER COUNT

Maria, I will contact corp and let you know. Attached is cc form, I will forward the 2 invoices you don't have shortly.

Ed

Please fax signed form to 516-977-3213 or email to payments@sbaglobal.com

From: Maria Teresa Vega [mailto:mariav@cmipackaging.com]
Sent: Wednesday, May 20, 2015 11:07 AM
To: Ed Zasada
Subject: RE: SBA PAYMENT & CONTAINER COUNT

Ed, would it be ok if we do the following: We have not received any info. on Invoices N852230 & N852232. If you could please provide invoices and please work with me and release containers, I won't let SBA down, I would make that payment on Friday morning for \$14,166.27.

Amex payment

B771288	\$28,354.85
N852231	\$ 5,938.46
Total	\$34,293.31

Wire Transfer Payment

B771105	\$35,700.00
N852111	\$ 5,940.93
Total	\$41,640.93

Sincerely,
Maria

Maria T. Vega
Financial Controller

CMI Distribution, LLC
540 Allendale Dr.
Wheeling, IL 60090
847-947-7400
maria@cmipackaging.com

From: Ed Zasada [mailto:zasadae@sbaglobal.com]
Sent: Wednesday, May 20, 2015 9:25 AM
To: Maria Teresa Vega
Cc: Michael Miller; Bryan Tincher; Jerry Star/Aargusplastics
Subject: RE: SBA PAYMENT & CONTAINER COUNT

Maria,

Attached is an updated aging report; demurrage on the 2 containers delivered last week and the 4 that are available now is estimated at \$70K so current total is about \$160K. I had a conference call with our COO and Controller last night and I've been instructed to hold deliveries until all invoices on the aging report have been paid. That threat to go bankrupt and stick SBA with \$200K in debt has made corporate very cautious. Let us know when you can complete payment(s).

Thanks,

Ed Zasada
Regional Manager (ORD)
SBA Global Logistic Services

811 Thorndale Ave
Bensenville, IL 60106

Tel: 630-616-1212
Fax: 630-616-1112
Toll Free: 800-323-9206

zasadae@sbaglobal.com



From: Maria Teresa Vega [mailto:mariav@cmipackaging.com]
Sent: Tuesday, May 19, 2015 4:16 PM
To: Ed Zasada
Subject: RE: SBA PAYMENT & CONTAINER COUNT

Confirmed. Ed can you please let me know if any of the containers we paid are going to be released tomorrow? Tell me what needs to happen so we can expedite delivery of these containers. The quicker we can turn this into a customer delivery the quicker I can pay the remaining containers and pay the remaining balance to SBA. Thanks for working with us.

I look forward to your quick response.

Sincerely,
Maria

Maria T. Vega
Financial Controller

CMI Distribution, LLC
540 Allendale Dr.
Wheeling, IL 60090
847-947-7400
maria@cmipackaging.com

From: Ed Zasada [mailto:zasadae@sbaglobal.com]
Sent: Tuesday, May 19, 2015 3:13 PM
To: Maria Teresa Vega
Cc: Jerry STar; Diana Alvarado
Subject: RE: SBA PAYMENT & CONTAINER COUNT

Maria,

There are 12 containers

From: Maria Teresa Vega [mailto:mariav@cmipackaging.com]
Sent: Tuesday, May 19, 2015 2:08 PM
To: Ed Zasada
Cc: 'Jerry STar (jerry@aargusplastics.com)'; Diana Alvarado
Subject: SBA PAYMENT & CONTAINER COUNT

Thanks Ed, also can you please verify the count on the containers you have in storage.

I am working on the next 2 containers and payment to SBA.

Thanks

Maria T. Vega
Financial Controller

CMI Distribution, LLC
540 Allendale Dr.
Wheeling, IL 60090
847-947-7400
maria@cmipackaging.com

From: Ed Zasada [mailto:zasadae@sbaglobal.com]
Sent: Tuesday, May 19, 2015 1:55 PM
To: Maria Teresa Vega
Cc: Karen Pepp; Ella Segal; Michael Miller; Jerry Starr; Bryan Tincher
Subject: Re: back up for the wire

Maria, accounting will apply payments and forward an updated aging report. We'll calculate demurrage on the 2 containers delivered last week and the 4 released this week and send to corporate for approval to deliver. Should have an answer tomorrow.

Sent from my iPhone

On May 19, 2015, at 1:41 PM, Maria Teresa Vega <mariav@cmipackaging.com> wrote:

Thanks Ella, Karen the invoices were listed on the payment that was issued this morning. Let me know if the wire transfer is not reflecting the invoices so I can let our bank know.

Thanks, can you please let me know if any containers will be released today.

Sincerely,

Maria T. Vega
Financial Controller

CMI Distribution, LLC
540 Allendale Dr.
Wheeling, IL 60090
847-947-7400
maria@cmipackaging.com

From: Ella Segal
Sent: Tuesday, May 19, 2015 1:15 PM
To: peppk@servicebyair.com
Cc: Maria Teresa Vega
Subject: back up for the wire

Karen,
The wire of \$30,279.41 was for the inv#:N771716,N771724, N771756,N771763,B771756,B771763.
Please apply accordingly.
Thanks,

Ella Segal
A/P Coordinator
CMI Packaging
555 Allendale Dr
Wheeling IL, 60090
Phone: (847) 947-7400
Fax: (847) 947-7418
ellas@cmipackaging.com

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From: Amanda Bruno <brunoa@sbaglobal.com>
Sent: Wednesday, December 03, 2014 2:55 PM
To: Maria Teresa Vega
Cc: Abigail Cuevas
Subject: RE: STATEMENT OF INVOICES DUE AND CREDIT CARD FORM

Hi Maria

Isn't the statement the list of bills invoiced to you?

-----Original Message-----

From: Maria Teresa Vega [<mailto:mariav@cmipackaging.com>]
Sent: Wednesday, December 03, 2014 1:53 PM
To: Amanda Bruno
Cc: Ella Segal
Subject: RE: STATEMENT OF INVOICES DUE AND CREDIT CARD FORM

GOOD AFTERNOON AMANDA,

I REVIEWED YOUR EMAIL SENT REGARDING OUR AGING. I HAVE ATTACHED THE AGING WITH THE ONES THAT WE ARE MISSING THE INVOICE AND BACKUP (PLEASE PROVIDE BACKUP). IF YOU COULD PLEASE FORWARD THAT. I RECEIVED THE COPIES OF THE CHECKS AND CHARGE OF THE CCD, HOWEVER WHAT I REALLY IS A LIST OF INVOICES THAT WERE INVOICED TO US. I HAVE SOME PAYMENTS THAT GO AS FAR BACK AS FEBRUARY OF THIS YEAR. ALSO I HAVE AN INVOICE THAT IS NOT ON YOUR AGING AND DON'T SHOW ITS BEEN PAID EITHER.

THANKS

Maria-Teresa Vega
Financial Controller

CMI Distribution, LLC
555 Allendale Drive
Wheeling, IL 60090
847-947-7400

-----Original Message-----

From: Amanda Bruno [<mailto:brunoa@sbaglobal.com>]
Sent: Wednesday, December 03, 2014 10:30 AM
To: Maria Teresa Vega
Cc: Ed Zasada
Subject: STATEMENT OF INVOICES DUE AND CREDIT CARD FORM
Importance: High

Hi Maria

As per our conversation this morning, pls see attached statement and credit card form...to process a charge the attached form needs to be filled out, sent back---we can process the charge here and send you a receipt.

As per the local office SBA needs payment on 30+ invs to be recvd here by Friday....you can either issue a ck today or pay by credit card.

Pls advise

Thank you in advance for your help in resolving this matter.

Make it a great day!
Amanda Bruno
Accounts Receivable
SBA Global Logistics
PO Box 7777
Old Bethpage NY 11804
ph- 516-921-4101 x243
fax- 516-921-6150
email: brunoa@sbaglobal.com

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From: Bryan Tincher <tincherb@sbaglobal.com>
Sent: Thursday, March 26, 2015 3:48 PM
To: Diana Alvarado; Michael Miller
Cc: Maria Teresa Vega; Jay Jalowiecki
Subject: RE: NEED DETAIL - CMI B-bill invoices
Attachments: CONTAINER SCHEDULE.xlsx; DEMURRAGE DETAIL.xlsx

Diana
See attached
On container schedule, in red is what I changed.

Sincerely
Bryan J. Tincher
Import/Export Manager

SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

-----Original Message-----

From: Diana Alvarado [<mailto:dianaA@cmipackaging.com>]
Sent: Wednesday, March 25, 2015 3:41 PM
To: Bryan Tincher; millerm@sbaglobal.com
Cc: Maria Teresa Vega; Jay Jalowiecki
Subject: NEED DETAIL - CMI B-bill invoices

Bryan,

We got the invoices for demurrage but we still need the detail for them.
Attached is demurrage spread sheet I made, please help us with your input on the dates.

Mike,

Why the total of the demurrage is \$ 85.225 , when we talked about \$ 75.000 the day you came?

Thank you in advance for your help.

-----Original Message-----

From: Bryan Tincher [<mailto:tincherb@sbaglobal.com>]
Sent: Wednesday, March 25, 2015 3:09 PM
To: Diana Alvarado
Subject: FW: CMI B-bill invoices

Diana
See attached.

Sincerely
Bryan J. Tincher
Import/Export Manager

SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

-----Original Message-----

From: Ed Zasada [<mailto:zasadae@sbaglobal.com>]
Sent: Wednesday, March 25, 2015 3:07 PM
To: Bryan Tincher
Subject: CMI B-bill invoices

Requested Invoices Attached.

Hawb	Customer Acct	Customer Name
B770924	718845	CMI DISTRIBUTION - PACKAGING
B771104	718845	CMI DISTRIBUTION - PACKAGING
B771397	718845	CMI DISTRIBUTION - PACKAGING
B771501	718845	CMI DISTRIBUTION - PACKAGING
B771043	718845	CMI DISTRIBUTION - PACKAGING
B771547	718845	CMI DISTRIBUTION - PACKAGING

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DATE	CUSTOMER	CMI PO	SUPPLIER	DEPARTURE
13-Aug	COLONIAL	OS202	POLYWEL	8-Mar
13-Aug	COLONIAL	OS207	POLYWEL	
13-Aug	COLONIAL	OS206	POLYWEL	
15-Jan	LAKELAND SUPPLY	6762	YANTAI	
26-Jan	SYSCO - CHEESCAKE	OS250	WEIFANG SUNSHINE	
26-Jan	SYSCO - CHEESCAKE	OS251	WEIFANG SUNSHINE	
26-Jan	SYSCO - CHEESCAKE	OS252	WEIFANG SUNSHINE	
13-Feb	LINCOLN PKING	OS-293	WEIFANG CHENXI	
6-Mar	LAKELAND SUPPLY	OS-300	YANTAI	
10-Nov	CMI STOCK	OS280	EVERBRIGHT	

FOLDER	SUPPLIER	CONT #	CUSTOMER	STATUS	CMI STOCK
33	YANTAI	BMOU2709846	ULTA	INVOCE (havent pay)	NO
34	YANTAI	CAIU2795700	CMI STOCK	INVOICE (stock)	YES
34A	CHANGLE	CAIU2795700	CAPUTOS	NEEDS TO BE PAID	YES
35	YANTAI	DFSU1543562	JOSHEN	INVOICE (balance due)	NO
36	YANTAI	GLDU9630402	ULTA	INVOICE AND FILED	NO
37	YANTAI	TEMU5582928	JOSHEN	PAID	YES
38	POLYWEL	PCIU8339388	COLONIAL	INVOICE AND FILED	YES
39	POLYWEL	PCIU8812886	COLONIAL	INVOICE AND FILED	YES
40	YANTAI	YMLU3069998	MULTIPLE	NEEDS TO BE PAID	
41A	WEIFANG CHENXI	TCKU3894500	ALLSTATE / INNOVATIVE	INVOICE (havent pay)	YES/NO
41B	CHANGLE	TCKU3894500	GRECO	INVOICE (havent pay)	NO
42	WEIFANG CHENXI	TTNU5206116	COLONIAL	PAID (waiting for POD / RG)	YES
43	WEIFANG CHENXI	TRIU5347886	COLONIAL	PAID (waiting for POD / RG)	YES
44	YANTAI	CAXU4049893	JOSHEN	NEEDS TO BE PAID	NO
45	POLYWEL	GLDU9071069	COLONIAL	NEEDS TO BE PAID	YES
46	WEIFANG SUNSHINE	MSCU4807147	COLONIAL	NEEDS TO BE PAID	YES
47	WEIFANG SUNSHINE	MSCU4832324	COLONIAL	NEEDS TO BE PAID	YES
48	YANTAI	TEXU7288541	JOSHEN	NEEDS TO BE PAID	NO
49	WEIFANG CHENXI	MSCU5881621	BRADY	NEEDS TO BE PAID	YES
50	WEIFANG SUNSHINE	MSCU4271080	COLONIAL	ON WATER	YES
51	WEIFANG CHENXI	MSCU4867660	BRADY	NEEDS TO BE PAID	YES
52	YANTAI	TRHU3313918	CAPUTOS/JOSHEN	NEEDS TO BE PAID	YES
53	WEIFANG CHENXI	TRLU4651517	BRADY	ON WATER	YES
54	CHANGLE	MSCU4337608	JOSHEN	ON WATER	NO
55	WEIFANG CHENXI	KKFU6731680	COLONIAL	ON WATER	YES
56	WEIFANG CHENXI	KKFU6726637	COLONIAL	ON WATER	YES
57	POLYWEL	PCIU859221	COLONIAL	ON WATER	YES

[illegible][illegible]

CHANGLE
EVERBRIGHT
POLYWEL
WEIFANG CHENXI
WEIFANG SUNSHINE
YANTAI

SUPPLIER	DEMURRAGE NUMBER	INVOICE NUMBER	CONTAINER	AMOUNT	DATE CAME IN	DATE WENT OUT
YANTAI	B771104	N771104	NYKU3251483	\$ 14,300	12/20/2014	2/16/2015
YANTAI	B771397	N771397	CAIU2795700	\$ 6,900	1/22/2015	2/17/2015
YANTAI	B771501	N771501	GLDU9630402	\$ 6,325	1/19/2015	2/12/2015
YANTAI			TEMU5582928			
ZIBO	B770924	N770924	CLHU8658659	\$ 27,100	11/23/2014	2/20/2015
POLYWEL	B771043	N771043	TCLU4015624	\$ 21,900	1/2/2015	2/25/2015
POLYWEL	B771547	N771547	PCIU8812886	\$ 8,700	1/29/2015	2/6/2015
TOTAL				\$ 85,225		

From: Bryan Tincher
To: Diana Alvarado
CC: Michael Miller; Maria Teresa Vega
Sent: 4/27/2015 11:12:05 AM
Subject: RE: Demurrage Detail NEEDED

See below.
First one is still in storage.

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Diana Alvarado [mailto:dianaA@cmipackaging.com]
Sent: Monday, April 27, 2015 9:36 AM
To: Bryan Tincher
Cc: Michael Miller; Maria Teresa Vega
Subject: Demurrage Detail NEEDED

Bryan,

Please your help with the detail for demurrage on this containers.

Also, who do we need to talk with for the invoices for demurrage since we are not getting them physically , the only way we get them is via you.

SUPPLIER	DEMURRAGE NUMBER	INVOICE NUMBER	CONTAINER	AMOUNT	DATE CAME IN	DATE WENT OUT
POLYWEL		N771679	GLDU9071069		03/9	
YANTAI		N771724	TEXU7288541	None	03/29	03/30
WEIFANG CHENXI		N771756	MSCU5881621	\$2700	04/06	04/15

Diana Alvarado
Account Manager

CMI DISTRIBUTION
PH: 847 947 7400
555 ALLENDALE DRIVE
WHEELING, IL

RADIANT002689

From: Bryan Tincher
To: Diana Alvarado
Sent: 4/23/2015 12:48:15 PM
Subject: RE: QUESTION FOR DEMURRAGE

In 2/23
Out 03/27

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Diana Alvarado [mailto:dianaA@cmipackaging.com]
Sent: Thursday, April 23, 2015 2:43 PM
To: Bryan Tincher
Subject: RE: QUESTION FOR DEMURRAGE

Thank you,

Can I please have the dates this container **TTNU5206116** came in and went out.

Also, we don't have the invoice for this demurrage. Would you please help me with it?

Thanks.

Diana Alvarado
Account Manager

CMI DISTRIBUTION
PH: 847 947 7400
555 ALLENDALE DRIVE
WHEELING, IL

From: Bryan Tincher [mailto:tincherb@sbaglobal.com]
Sent: Thursday, April 23, 2015 2:26 PM
To: Diana Alvarado
Subject: RE: QUESTION FOR DEMURRAGE

TTNU5206116 \$9900.00
TRIU5347886 \$2700.00

Sincerely

RADIANT002666

Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Diana Alvarado [mailto:dianaA@cmipackaging.com]

Sent: Thursday, April 23, 2015 2:22 PM

To: Bryan Tincher

Subject: QUESTION FOR DEMURRAGE

BRYAN,

Do we have demurrage on this containers?

TTNU5206116

TRIU5347886

Diana Alvarado

Account Manager

CMI DISTRIBUTION
PH: 847 947 7400
555 ALLENDALE DRIVE
WHEELING, IL

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RADIANT002667

EXHIBIT A15



www.sbaglobal.com

CORPORATE HEADQUARTERS
P.O. BOX 7777
OLD BETHPAGE, NY 11804-0060
TEL. (516) 921-4101
TOLL FREE: (800) 243-5545
FAX: (516) 921-4304 ORD 977

INVOICE

10/08/2014
AIR BILL NUMBER
N770553

ORIGIN	DESTINATION
CHN	ORD

SHIPPER: YANTAI FOODPACK
IND. ZONE FUSHAN DIST
YANTAI
SHANDONG
CHINA

SHIPPER NUMBER

753740

SHIPPER REFERENCE NUMBER

RECEIVER: CMI DISTRIBUTION - PACKAGING
555 ALLENDALE DR
WHEELING IL 60090

BILL TO:

CMI DISTRIBUTION - PACKAGING
555 ALLENDALE DR
WHEELING IL 60090

CUSTOMER NUMBER

718845

PCS.	DESCRIPTION	WT.	DIM.	WT.
1	HDPE BAGS MEDU2212151	22.965		

MONTHLY BULLETIN

Worldwide Services

- USA Expedited Freight Services
- Int'l Air and Ocean Freight Services
- Import and Export Documentation Services
- Customs Brokerage Distribution Services
- Online Shipping
- Online Tracking and POD

800-24-5545

Clearance Services Provided
by Licensed Brokers See Attached

DESCRIPTION OF CHARGES

OCEAN FREIGHT
IMPORT DUTY/TAX
DETENTION

6/LS087

Denmark?

CHARGES

4,688.00
896.28
1,535.00

BOL# 998 WORSIH14090012

AIR BILL NUMBER
N770553

MAKE CHECK
PAYABLE TO:

Service By Air, Inc.

PAY THIS
AMOUNT

USD 7,119.28

SEQ: 067

PLEASE DETACH AND SEND WITH PAYMENT

MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.

1 of 1

BILL TO:

CMI DISTRIBUTION - PACKAGING
555 ALLENDALE DR
WHEELING IL 60090

SHIP DATE	AIR WAY BILL NUMBER
10/08/2014	N770553
INVOICE AMOUNT	
USD 7,119.28	

VENDOR#

GL #

GL #

POSTING DATE

AMOUNT \$

ENTERED

253A

2010 / 5087

OCT

7119.28

2

Yantai - FRINVI40808
Pete's Del.

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE.

AMOUNT ENCLOSED

MAKE CHECK
PAYABLE TO:

SERVICE BY AIR, INC.

REMIT TO:

P.O. BOX 7777
OLD BETHPAGE, NY 11804-0060



EXHIBIT B

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BEFORE THE
FEDERAL MARITIME COMMISSION

CMI DISTRIBUTION, INC.,	)	
	)	
COMPLAINANT,	)	
	)	DOCKET NO. 17-05
vs.	)	
	)	
SERVICE BY AIR, INC., RADIANT	)	
CUSTOMS SERVICES INC.,	)	
(FORMERLY KNOWN AS SBA	)	
CONSOLIDATORS, INC.) and	)	
LAS FREIGHT SYSTEM LTD.,	)	
	)	
RESPONDENTS.	)	

The discovery deposition of BRYAN
TINCHER, called by the Complainant for examination,
taken pursuant to notice, agreement, and by the
provisions of the Federal Maritime Commission,
taken at Polsinelli, 150 North Riverside Plaza,
Suite 3000, Chicago, Illinois 60606, on
March 1, 2018, at 9:21 a.m.

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REPORTED BY: PATRICIA D. SMITH, CSR NO. 084-004431
FILE NO: AC02291

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1 A P P E A R A N C E S 2 3 4 Mr. Brendan Collins 5 GKG LAW 6 1055 Thomas Jefferson Street NW - Suite 500 7 Washington, DC 20007 8 TEL: (202) 342-6793 9 EMAIL: bcollins@gkgglaw.com 10 on behalf of the Complainant. 11 12 Mr. Steven W. Block 13 FOSTER PEPPER PLLC 14 1111 Third Avenue - Suite 3000 15 Seattle, Washington 98101 16 TEL: (206) 447-7273 17 EMAIL: steve.block@foster.com 18 on behalf of the Respondents. 19 20 21 22 23 24 Page 2	1 E X H I B I T S (Cont'd.) 2 E X H I B I T S 3 EXHIBIT EXHIBIT MARKED FOR 4 NUMBER DESCRIPTION IDENTIFICATION 5 17 Invoice, 4/1/15 128 6 18 Invoice, 4/22/15 130 7 19 Invoice, 5/27/15 131 8 20 Invoice, 5/13/15 133 9 21 E-mail/Zasada 134 10 Re Invoices Requested 11 22 E-mail/Tincher/Hsu 139 12 23 E-mail/Hsu Re Shanghai 143 13 Port, Chicago Ramp-CMI 14 24 E-mail/Zasada/Vega 150 15 Re CMI Invoices 16 25 Vega/Tincher 154 17 Re CMI Invoices 18 26 Respondent's Responses 162 19 To Complainant's First 20 Interrogatories 21 27 Tincher/Vega Re CMI 164 22 Invoices 23 28 E-mails/Old Containers 166 24 29 E-mails/Tincher/Gallo 167 (Exhibits attached hereto.) Reserved Signature Certificate 172 Page 4
1 I N D E X 2 THE WITNESS EXAMINATION BY COUNSEL FOR 3 BRYAN TINCHER COMPLAINANT RESPONDENTS 4 By Mr. Collins 7 5 E X H I B I T S 6 EXHIBIT EXHIBIT MARKED FOR 7 NUMBER DESCRIPTION IDENTIFICATION 8 1 E-mail/Jay Jalowiecki 57 9 Re FCL Tariff 10 2 Spreadsheet/CMI 57 11 3 Spreadsheet/CMI 57 12 4 Alvarado/Re Damage 74 13 Product on Brady/Dynamex 14 5 Air Waybill/N770888 75 15 6 Bill of Lading/ 79 16 Air Waybill/SBA 17 7 Invoice/SBA 84 18 8 Invoice 85 19 9 Invoice/SBA 87 20 10 Invoice, 1/21/15 93 21 11 Invoice, 2/6/15 98 22 12 Invoice, 2/25/15 105 23 13 Invoice, 3/4/15 116 24 14 Invoice, 2/23/15 116 15 Invoice, 2/24/15 123 16 Invoice, 4/15/15 124 Page 3	1 (Witness duly sworn.) 2 MR. COLLINS: Hello, Mr. Tincher. My name 3 is Brendan Collins. I'm representing CMI 4 Distribution in this matter. 5 Could you please state your name and 6 address for the record? 7 THE WITNESS: Bryan Tincher, 2332 Onyx 8 Court. 9 MR. COLLINS: Okay. 10 THE WITNESS: Schaumburg, Illinois 60194. 11 MR. COLLINS: Thank you. 12 Have you ever been deposed before? 13 THE WITNESS: To Paris? 14 MR. COLLINS: No. Deposed? 15 THE WITNESS: Oh, deposed. No, I have 16 not. 17 MR. COLLINS: All right. Let me explain 18 how this works. 19 You're under oath, as you know, so you 20 are obligated to tell the truth. One thing is I 21 need you to verbally answer questions. Oftentimes 22 people will shrug, nod their head "uh-huh", and, 23 unfortunately, for the court reporter an "uh-huh" 24 could be an "uhn-uhn" or "uh-huh". You know, it Page 5

1 can be negative or positive. So try and answer 2 verbally rather than with shrugs or nods of the 3 head. 4 If you don't understand a question, 5 please ask me to rephrase it, and I will be happy 6 to do that for you. 7 THE WITNESS: Okay. 8 MR. COLLINS: One thing is normally when 9 people are in normal conversation we speak over 10 each other. It's not rude. That's just how people 11 talk. I mean, you know what I am asking and you 12 start to answer it before I've completed the 13 question. That makes it very difficult for the 14 court reporter, and it's hard if there's talking. 15 You know, if you start answering the question 16 before it's completed, it gets a little garbled. 17 So try and wait until the question is completed. 18 THE WITNESS: Okay. 19 MR. COLLINS: If you need a break at any 20 point, I'd be happy to do it; just usually not 21 while a question is pending. 22 THE WITNESS: Okay. 23 MR. COLLINS: So you've never been 24 deposed. Page 6	1 Q Okay. Who else was present for that 2 meeting? 3 A Ed Zasada. 4 Q Just the three of you? 5 A (Nodding.) 6 Q Did you have any discussions with Ed 7 without counsel present? 8 A Yes. 9 Q About what? 10 A The case. 11 Q What specifically did you discuss? 12 A The process that I was going through, the 13 findings. Talking about the scenarios back in 14 2014, 2015. 15 Q Okay. When you say "the findings", what 16 findings are you referring to? 17 A The questions we had to answer and 18 documents we had to produce. 19 Q Okay. And you said "the scenarios". What 20 scenarios? 21 A Just dealing with the CMI business. 22 Q Did you review any documents as part of 23 your meeting? Or prior to that meeting? 24 A Yes. Page 8
1 And have you ever testified at trial? 2 THE WITNESS: No. 3 MR. COLLINS: Okay. Ever testified in 4 arbitration? 5 THE WITNESS: No. 6 BRYAN TINCHER, 7 having first been duly sworn, was examined and 8 testified as follows: 9 EXAMINATION 10 BY MR. COLLINS: 11 Q Did you meet with anyone to prepare for 12 your deposition? 13 A No. 14 Q You never met with counsel? 15 A About the deposition? 16 Q Um-hmm? 17 A No. 18 Q Did you meet with him for other than 19 reasons? 20 A Yes. 21 Q What was the other reason? 22 A Discussing the case in general. 23 Q Okay. How long ago was that? 24 A Two days ago. Page 7	1 Q What documents did you review? 2 A E-mails, attorney files related to the 3 case. 4 Q When you say "attorney files related to 5 the case," what would that consist of?" 6 THE WITNESS: What was it called? 7 MR. BLOCK: You're talking about the 8 pleadings? The discovery request? 9 THE WITNESS: Yes. 10 MR. BLOCK: The responses? 11 THE WITNESS: Yes. The discovery request. 12 BY MR. COLLINS: 13 Q So you looked at the discovery request and 14 your responses. 15 Did you look at the documents that had 16 been produced in response to those discovery 17 request? 18 A Yes. 19 Q When you said e-mails, what specific 20 e-mails did you review? 21 A The e-mails between CMI and our company. 22 Q And was there any -- 23 A The ones produced for discovery. 24 Q What person at CMI would have been Page 9

1 involved in those e-mail transactions? 2 A Mostly Maria Alvarez. 3 Q Maria Vega? 4 A Vega. 5 Q Okay. And there was also a Diana Alvarez 6 I believe too? 7 A Yes. 8 Q So both of them? 9 A Yeah. Maria mostly. 10 Q Okay. And what was the nature of your 11 business relationship with Maria? 12 A She was, I believe, the accountant -- 13 Diana was the accountant. Maria was 14 keeping track of their inbound cargo. 15 Q Okay. Did you have any other discussions 16 with SBA employees like Ed? Other than what you've 17 described? 18 A No. 19 Q Can you give me your educational 20 background? 21 A I went to U of I. 22 Q Is that Indiana or Iowa? 23 A University of Illinois. 24 Q Oh, I'm sorry. Yeah, that makes sense. Page 10	1 A Yes. I'm estimating. 2 Q I understand. 3 And what was your general job 4 responsibilities? 5 A I oversaw the night operations. I was the 6 manager, domestic freight forwarding. 7 Q Okay. What type of transportation 8 services were you providing? For what type of 9 companies? 10 A Types of companies? 11 Q Well, you were providing transportation 12 services, air freight, and trucking services, 13 correct? 14 A Yes. 15 Q Who were your customers that you were 16 servicing? 17 A Specifically? 18 Q Yeah. The name of some? 19 A Walgreen's. 20 Q Okay. 21 A William Wrigley. 22 Q Did AAF have a tariff? 23 A No. They had rate sheets. 24 Q Did it ever charge what's been referred to Page 12
1 And did you get a degree there? 2 A I did not. 3 Q Okay. What was your major? 4 A Language Arts. 5 Q And when did you finish up at U of I? 6 A 2001. 7 Q And what did you do subsequent to going to 8 school at U of I? 9 A After? 10 Q Yeah. 11 A I worked in transportation. 12 Q Okay. Where did you work? 13 A I worked after that I worked for a company 14 called AAF, Inc. 15 Q And what's the nature of their business? 16 A Trucking, air freight. 17 Q Ocean freight as well or just -- 18 A No. 19 Q No, ocean freight. Okay. 20 And what was your position there? 21 A I was the Operations Manager. 22 Q And how long did you hold that position? 23 A Ten years. 24 Q So from about 2001 to 2011, thereabout? Page 11	1 as demurrage? 2 A No. 3 Q Detention? 4 A In what context? 5 Q Well, did they ever invoice people for 6 what they call detention charges? 7 A Since we were a trucking company, we would 8 have invoiced for waiting time or detention. 9 Q So waiting time, you call that detention? 10 A Yes. 11 Q Did your position change during the course 12 of your ten years there? 13 A Yes. 14 Q In what way? 15 A I was still Operations Manager. The last 16 one to two years I was doing air freight. 17 Q Did you have an air freight provider that 18 you were primarily dealing with? 19 A You mean like airlines? 20 Q Or an indirect air carrier or someone -- 21 well, let's start with airlines? 22 A Yes. We would use airlines. We were an 23 indirect air carrier. 24 Q You were an indirect air carrier. Page 13

1 Did you have any business with Service 2 By Air or its various entities while working at 3 AAF? 4 A No. 5 Q As an indirect air carrier, did you issue 6 bills of lading? 7 A Airway bills. 8 Q Do you understand an airway bill is a bill 9 of lading? 10 A Yes. 11 Q And did that have a terms and conditions? 12 A Yes. 13 Q I may come back to that. 14 So you were there for ten years and 15 what was your next employment? 16 A Service by Air. 17 Q And why did you leave the prior 18 employment? 19 A Change of ownership. 20 Q Were you let go or you decided voluntarily 21 to leave? 22 A I left. 23 Q And when you came to Service by Air, what 24 was your position? Page 14	1 Q That's fine. If you don't know, you don't 2 know. 3 A I understand. 4 Q This is not an open-book test. 5 As an International Manager, what are 6 your job responsibilities? 7 A Arrange logistics transportation for our 8 customers. Import, export. 9 Q Okay. When you say "arrange logistics 10 transportation", can you give me a more complete 11 description of what that might entail? 12 A A customer needs to move their cargo 13 overseas or into the U.S., they contact us and we 14 act as their agent. 15 Q Okay. Do you have a standard contract 16 that you utilize when you're providing those types 17 of services? 18 A We have terms and conditions. 19 Q Well, I understand, but do you have a 20 written contract when somebody contacts you and 21 says "I want you to provide transportation from, 22 say, China to the U.S."? Do you have a written 23 contract that you execute with them? 24 A No, we don't. Page 16
1 A Export Operations. 2 Q And there are a number of Service by Air 3 entities aren't there? That you are aware of? 4 A Yes. 5 Q Which one were you working for? 6 A Service by Air. 7 Q Inc.? 8 A Yeah. 9 Q Okay. And at Export Operations, do you 10 continue -- 11 Are you still in Export Operations or 12 has your title changed? 13 A I am now the International Manager. 14 Q And when did that occur? 15 A That changed within the first six months. 16 Q Okay. So essentially for all the relevant 17 time period you've been the International Manager, 18 correct? 19 A Yes. 20 Q You started there about 2011; is that 21 right? 22 A Yeah. It's been about seven years. 23 Q Okay. That's fine. 24 A I'm not good with dates. Page 15	1 Q Never? 2 A No. 3 Q Okay. That's fine. 4 And what steps do you take then in 5 terms of when you need to -- somebody contacts you 6 and says "I want cargo moved from, say, China to 7 U.S."? What steps are involved in that process? 8 A A new customer? 9 Q Yeah. A new customer? 10 A We would do a credit application. We 11 would check with Homeland Security. If those 12 things check out, then we proceed. 13 Q Okay. When you say "If those things check 14 out" with Homeland Security, what are you trying to 15 determine? 16 A To ship on an airplane or air freight they 17 have to be considered -- how technical would you 18 like me to get? 19 Q Technical. I'm familiar with it. 20 A We submit them to a database called the 21 KSMS Database, and it's a vetting process. 22 Legitimacy mostly with the business. 23 Q Was that done with CMI? 24 A Yes. Page 17

1 Q And they were approved through the KSMS?
2 A Yes.
3 Q Now, what percentage of the services that
4 SBA is providing involve ocean transportation
5 versus air transportation?
6 A I couldn't tell you exact percentages.
7 It's very small. Two percent.
8 Q Ocean?
9 A Yeah.
10 Q Now, most of the service provided
11 regarding CMI was ocean, right?
12 A Yes.
13 Q So this is a unique client in that regard
14 or --
15 A It was.
16 Q Why did you decide to take on a customer
17 who is requiring ocean transportation rather than
18 air transportation?
19 A Well, we are a full logistics provider.
20 So if there's a business relationship to be
21 established, regardless of what they need, we would
22 accept the business.
23 Q Now, is SBA -- I'm going to call it SBA.
24 Is that fine?

Page 18

1 A Yes.
2 Q We may get into the different entities at
3 some point.
4 You work for SBA still, right?
5 A Yes.
6 Q I've seen somewhere Service By Air Global
7 Logistics. That's SBA, right?
8 A Yes.
9 Q That's not a separate entity, Global
10 Logistics -- well, it's a division within SBA?
11 A You know, I'm not sure how to really
12 answer. How the Corporate is structured.
13 Q Well, let me say this: You're employed by
14 SBA, right?
15 A Well, technically, our office is a
16 franchise.
17 Q Okay.
18 A Okay. So I'm employed by a company called
19 Spirit Services. That is a franchise for Service
20 By Air.
21 Q But when I see e-mails, I think your
22 e-mail caption says SBA Global?
23 A Yes.
24 Q So that's SBA, essentially, right?

Page 19

1 A Yes.
2 Q Is SBA licensed by the Federal Maritime
3 Commission?
4 A SBA Global? There's a sister company, or
5 division is maybe a better word. SBA
6 Consolidators. It does have an OTI number.
7 Q And what's an OTI?
8 A It's Ocean -- I'm not sure what the
9 anagram (phonetic) is for. It's a license for...
10 Q To transport --
11 A Ocean --
12 Q -- cargo?
13 A Yes.
14 Q To transport ocean freight?
15 A Yes.
16 Q And you say that's a sister division of
17 SBA? It's the same as SBA?
18 MR. BLOCK: Object to form.
19 THE WITNESS: Yeah, I don't know. I don't
20 know what the correct term is with that. If it's a
21 sister or division. I think now it may be -- I
22 don't know.
23 BY MR. COLLINS:
24 Q Well, when you were --

Page 20

1 You were involved in getting the
2 business with them? You went out and got the
3 business with CMI didn't you?
4 A No, I didn't.
5 Q You didn't sell it?
6 A No. I'm not a salesman, sir.
7 Q When you were servicing CMI, you were an
8 employee of SBA, but you were also in a position to
9 provide services for SBA, SBA consolidators, and
10 other SBA entities, right?
11 A That is not correct.
12 SBA Consolidators, even though it was
13 owned by I suppose the same parent company, it was
14 a different division. We weren't employed by them.
15 If I was to use their services, I would have to pay
16 them.
17 Q Did SBA Consolidators provide any services
18 for CMI?
19 A SBA Consolidators did the custom entries.
20 Q Any other services?
21 A No.
22 Q So you're saying SBA --
23 Is SBA Consolidators limited to
24 providing custom services or does it provide other

Page 21

6 (Pages 18 to 21)

1 services? 2 A They have an OTI number. I know that. 3 They are licensed to do ocean exporting. 4 Q As an NVOCC? 5 A I believe so. Yes. 6 Q What's an NVOCC? 7 A Non-Vessel Operating Common Carrier. 8 Somebody who -- company that arranges ocean 9 transportation directly with the operator, 10 steamship line. 11 Q Okay. Does SBA assume responsibility for 12 transportation of goods in its capacity as a -- 13 whatever capacity it's acting? 14 A We do not. 15 Q You don't assume any responsibility for 16 the transportation of the goods? 17 A We do not. We do not prepare house bills 18 or anything like that. No. 19 Q Well, you have in this case -- 20 A We're a freight agent. 21 Q What's that? 22 A We're a freight agent. 23 Q Is there anywhere in your communications 24 with CMI -- and there are thousands of pages of Page 22	1 Q So the supplier would contact your agent. 2 And LAS Freight (phonetic)? L-A-S 3 Freight? How do you refer to them? 4 A L-A-S. 5 Q LAS Freight. So they were acting as your 6 agent throughout the transportation at issue, 7 right? 8 A Yes. 9 Q And, in fact, you were partners with them 10 weren't you? 11 A Business partners? 12 Q In e-mails -- and we can get to it -- you 13 refer to them as "our partner"? 14 A I prefer agent. 15 Q You prefer agent, but you sometimes 16 referred to them as your partner, right? 17 A I could. Yes. 18 Q And as your partner, you split revenues 19 with them, right? 20 A We can. Yeah. 21 Q You did. And for the transportation at 22 issue, you were splitting the revenues with them? 23 With LAS Freight, right? 24 A Yes. Page 24
1 documents -- that you ever referred to yourself as 2 a freight agent? Or any communications with CMI? 3 A I don't know. Possibly. 4 Q So in your capacity as International 5 Manager, give me the description of what that 6 entails? 7 A I arrange the transportation as a 8 logistics transportation, I suppose. 9 Q What does that mean? What exactly do you 10 do? 11 A I suppose I would contact the appropriate 12 parties to facilitate the transportation of goods. 13 Q For example, with CMI what might that 14 entail? Who would you contact? 15 A I would be contacted by their vendors or 16 my agent would be contacted by their vendors in 17 China. 18 Q Okay. Who is your agent? 19 A It was LAS Freight. 20 Q So LAS Freight was your agent in China? 21 A Yes. 22 Q And who would contact them? Would you 23 contact them or would the supplier? 24 A Supplier. Page 23	1 Q Okay. So you might contact, for example, 2 LAS Freight, and what would you ask them to do? 3 A I would ask LAS Freight to arrange 4 transportation. 5 Q So they arranged -- they were also just 6 arranging transportation? They weren't assuming 7 responsibility either? 8 MR. BLOCK: Object to form. 9 THE WITNESS: Well, if you mean by that 10 assuming responsibility? As doing the freight 11 forwarding? 12 BY MR. COLLINS: 13 Q Well, what I'm asking is -- you said 14 "arrange for transportation"? 15 A Yes. 16 Q Is it your understanding that an NVO -- 17 Is LAS Freight an NVO? I sometimes 18 say NVOCC, but NVO for short. You know what I'm 19 talking about. 20 A I don't think they are. I don't know if 21 they have that in China. 22 Q You don't know whether they were an NVO? 23 A I don't know if they have that particular 24 licensing in China. I'm not clear or sure on that. Page 25

1 Q Do you know whether they are licensed by 2 the FMC? 3 A I'm not sure if they use co-loaders who 4 are. 5 Q They issued bills of lading though, right? 6 A They issued house bills. 7 Q So your understanding that the mere fact 8 that they are issuing house bills does not suggest 9 that they are an NVO? 10 A I'm just saying that I'm not sure they 11 have an NVOCC licensing in the U.S. They are a 12 company in China. That's all I'm saying. 13 Q Let me ask you regarding assuming 14 responsibility for transportation of cargo. Do you 15 remember there was one shipment at issue where 16 there was a fork load went through some containers 17 and some damage resulted? CMI shipment? 18 A Yeah. 19 Q Okay. They sent you pictures and said -- 20 A Okay. Yeah. 21 Q Do you recall that? 22 A Yeah. 23 Q Okay. Now, if damage is caused like that 24 from the shipment, who is responsible for the Page 26	1 Q Okay. What did you do? 2 A I probably I would have sent them our 3 claim form. 4 Q And how does that work? The claim form? 5 A They fill it out and then it's determined 6 by an entirely department if there's even a legal 7 claim or not. 8 Q Okay. And if -- 9 A Maybe it's not. I don't know. 10 Q Okay. If it's determined to be a legal 11 claim, they would get a credit? 12 MR. BLOCK: Object to form. 13 THE WITNESS: Yeah. In theory, yes. 14 BY MR. COLLINS: 15 Q Okay. Did you ever tell them "You should 16 submit a claim form"? 17 Maria is writing to you, and I'll show 18 the document. 19 So other people from CMI are writing 20 to you regarding the damage. Do you remember ever 21 telling them "Well, you should submit a claim 22 form"? 23 A I don't remember there was a claim. So I 24 do not remember specifically how the conversation Page 28
1 damage? CMI would get a credit as a result of 2 damages done, right? 3 A From SBA? I'm not sure. 4 Q Well, you contracted with them? 5 They contracted with you to transport 6 goods from China to the U.S., and you're saying if 7 there's damage to the shipments that they don't get 8 a credit as a result of the damages caused? 9 A Well, they didn't in this case. 10 Q Why not? 11 A If I can remember correctly, they just 12 didn't file a claim. 13 Q If they had filed a claim, you would have 14 given them a credit? If you determined there was 15 actual damage? 16 MR. BLOCK: Object to the form. 17 THE WITNESS: I don't know that. 18 BY MR. COLLINS: 19 Q Well, you're the primary contact. They're 20 writing to you saying "We want a credit for the 21 damage," you know, and they sent you these photos. 22 Do you remember how you responded or 23 did you just stiff-arm them? 24 A I wouldn't say we stiff-armed them. Page 27	1 went. So I would have given them the option if 2 they want to file a claim they could do so, and 3 they didn't. 4 Q And you wouldn't take the position "It's 5 not our responsibility. You're out of luck"? 6 MR. BLOCK: Object to form. 7 THE WITNESS: Honestly, I would probably 8 defer to somebody, you know, in a different 9 department. You know, Claims Department or -- you 10 know, I wouldn't know. 11 BY MR. COLLINS: 12 Q All right. So you've described you would 13 contact your partner or your agent in China and 14 they would you said arrange for the transportation 15 of the goods to the U.S.? 16 A Yes. 17 Q Okay. And you saw that -- 18 LAS Freight would issue bills of 19 lading? 20 A Yes. 21 Q And would you be identified on those bills 22 of lading? "You" being SBA. Not you personally. 23 A No. I believe the vendor would have been 24 shown as the shipper and CMI would have been shown Page 29

1 as the importer.

2 **Q But you were always identified as the**
3 **agent weren't you? In the left-hand bottom corner?**

4 A Yeah. Notified party.

5 **Q Well, I think it was actually -- it didn't**
6 **say notified partner. It actually said...**

7 (Pause.)

8 **You would be the delivery agent. You**
9 **would say "For delivery of goods, please apply to,**
10 **and Service By Air"; is that right?**

11 A Yes.

12 **Q So you would be the delivery agent in the**
13 **U.S.?**

14 A Yes.

15 **Q What's the relationship between Radiant**
16 **and Service By Air?**

17 A Radiant owns Service By Air now.

18 **Q I apologize. You were talking before**
19 **about -- was it SBA Consolidators? Is that the one**
20 **you said that provide the custom service?**

21 A Yes.

22 **Q What's Radiant Custom Services, Inc.?**

23 A They also bought SBA Consolidators and
24 they changed the name.

Page 30

1 **Q So what entity is the current entity?**

2 A I think it's Radiant Consolidators.

3 **Q Is Radiant Consolidators the same as SBA**
4 **Consolidators?**

5 MR. BLOCK: Object to form.

6 THE WITNESS: I don't know how to answer
7 that. They bought SBA Consolidators. They provide
8 the same services.

9 BY MR. COLLINS:

10 **Q Okay. Once you contact LAS Freight, what**
11 **additional services are you providing for CMI?**

12 A The customs entry.

13 **Q Is that SBA providing that?**

14 A SBA Consolidators.

15 **Q And in addition to that, anything else?**

16 A Delivery.

17 **Q So you assume responsibility for the**
18 **delivery of the goods?**

19 A Yes.

20 **Q Okay. That's SBA?**

21 A Yes.

22 **Q Okay. Now, the transportation that was at**
23 **issue with CMI was all under through bills of**
24 **lading, correct?**

Page 31

1 A Can you define that?

2 **Q Do you know what a through bill of lading**
3 **is?**

4 A I do not.

5 **Q These goods were not going port to port**
6 **were they? Under the bills of lading they were**
7 **going port to an inland location, correct?**

8 MR. BLOCK: Object to form.

9 THE WITNESS: Intermodal.

10 MR. COLLINS: Intermodal?

11 THE WITNESS: Yes.

12 BY MR. COLLINS:

13 **Q All right. So is it your understanding**
14 **that the ocean transportation continues until it's**
15 **actually delivered to the consignee?**

16 A No.

17 **Q If it's a through bill of lading? That's**
18 **not your understanding?**

19 A It's not.

20 **Q Why not?**

21 A It would be where the -- it is terminated
22 at the terminal if the rail ramp was a port.

23 **Q So you're saying that you think under a**
24 **bill of lading in which it provides for**

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1 **transportation from, say, Shangdu to Chicago, the**
2 **ocean transportation ceases when it gets to the**
3 **port in, say, Long Beach?**

4 A Yes.

5 **Q And there's no other -- it's no longer**
6 **governed by the FMC?**

7 MR. BLOCK: Object to the form.

8 THE WITNESS: I do not know that. I can't
9 answer that.

10 BY MR. COLLINS:

11 **Q You don't consider that part of the ocean**
12 **transportation? The inland portion as well?**

13 A It's my understanding that where it's
14 designated to terminate on the bill of lading is
15 when the ocean transportation stops.

16 **Q Okay. What I thought --**

17 A Since I was --

18 **Q Go ahead.**

19 A Since we were arranging delivery from the
20 term, rail terminal, to CMI's door, we would take
21 responsibility then from the terminal to their
22 door.

23 **Q Okay. So you would assume that**
24 **responsibility to transporting those goods?**

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9 (Pages 30 to 33)

1 A After it's terminated. Yes. 2 Q But your understanding is even though the 3 ocean bill of lading provided that the goods, say, 4 for example, were going from Shangdu to Chicago, 5 that in fact once it got to the port and you took 6 over, it was no longer subject to the bill of 7 lading terms and conditions? 8 MR. BLOCK: Object to form. 9 THE WITNESS: That is my understanding. 10 MR. COLLINS: Okay. 11 BY MR. COLLINS: 12 Q When did SBA first start doing business 13 with CMI? 14 A 2014. 15 Q And how did that business relationship 16 arise? 17 A One of our sales representatives brought 18 the business. 19 Q Okay. And who was that? 20 A Mike Miller. 21 Q And do you recall -- 22 MR. BLOCK: Can we just go off the record? 23 MR. COLLINS: Okay. 24 MR. BLOCK: Off the record, please. Page 34	1 A No. We had the containers in storage in 2 the yard for the drayage companies. 3 Q Okay. So it was in the drayage company 4 yard. It wasn't in the steamship line's yard or 5 port? 6 A Yeah. It was in the drayage company's 7 yard. 8 Q Was there ever a time when containers 9 arrived that it sat for, you know, extended periods 10 of time in the steamship line's possession? 11 A No. 12 Q So it was always immediately taken out of 13 the steamship line's possession? 14 A Yes. 15 Q Okay. And then it would be taken to the 16 drayage yard. And would it be unloaded there or 17 palletized? 18 A No. 19 Q Never? 20 A Never. 21 Q It always sat in the containers? 22 A Yes. 23 Q So there's e-mails talking about 24 palletizing goods. Is that just a mistake or Page 36
1 (Whereupon a discussion 2 was held off the record.) 3 MR. BLOCK: Back on. 4 BY MR. COLLINS: 5 Q So Mike Miller was the salesperson. Well, 6 why don't I go back before we go to that. 7 So when the goods would arrive, say, 8 at the port, you would be responsible for 9 transporting the goods to the ultimate destination? 10 A Yes. 11 Q Okay. And how would you coordinate that? 12 A I would have one of our drayage companies 13 recover it from the terminal. 14 Q Okay. And were there instances where the 15 ocean -- you recovered the container, unloaded the 16 container, and then returned the container back to 17 the steamship line, but still kept the cargo 18 itself? Stored the cargo itself? 19 A No. 20 Q That never happened? 21 A No. 22 Q You never unloaded containers -- 23 A We did, but then we delivered it. 24 Q Did you ever store it? Page 35	1 what's -- 2 A No. There were instances when we did, but 3 they weren't stored. They were palletized by the 4 request for CMI for delivery. Not to them, but to 5 their customers. There was two or three instances 6 of that. 7 Q So occasionally would it be taken out of 8 the containers and palletized? 9 A And delivered. 10 Q And delivered? 11 A Yes. Not to CMI. 12 Q To the ultimate consignee -- 13 A Their buyer. 14 Q Their buyer. Right. 15 What drayage companies did you 16 normally use? 17 A Primarily it was a company called Freight 18 Tech. 19 Q Any others? 20 A Off the top, the only one I can think of 21 was in Newark. They're called Jewels. 22 Q Okay. Did you mark up the drayage cost? 23 A Yes. 24 Q How much? Page 37

1 A Cost plus.
2 **Q What's cost plus?**
3 A We would take our cost and 20 percent.
4 **Q So it was always 20 percent?**
5 A I wouldn't say always, but...
6 **Q Was there ever a time --**
7 **Why would you say 20 percent sometimes**
8 **and other --**
9 A That's our average.
10 **Q So you would average it?**
11 A Yeah.
12 **Q Why would you average it instead of just**
13 **doing a straight 20 percent?**
14 A Our average was --
15 Our required arrange is 20 percent.
16 **Q Your required average?**
17 A Yes.
18 **Q Who requires that?**
19 A With our Corporate office.
20 **Q So internally you said "We got to at least**
21 **get 20 percent"?**
22 A That's correct.
23 **Q Did you ever tell CMI, for example, that**
24 **you were marking up the cost?**

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1 A I assume they understood that we did.
2 **Q Did you ever represent that it was a**
3 **straight pass through?**
4 A No.
5 **Q Are you sure?**
6 A Yes.
7 **Q How much was Freight Tech's charge?**
8 **Storage charge?**
9 A Approximately \$200 to \$250 per day.
10 **Q They were billing you \$250 per day for**
11 **storage?**
12 A Chassis rental -- chassis storage, and
13 then they outlaid money to the rail ramp because
14 they had the containers in their possession.
15 **Q Well, was the --**
16 **Whose containers were they?**
17 A I don't understand the question? Whose...
18 **Q Who owned the containers?**
19 **You're paying supposedly for the**
20 **container? Use of the containers, right?**
21 A Yeah.
22 **Q Whose containers were they?**
23 A I believe at that point it would have been
24 within the responsibility of the rail line.

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1 **Q So you think these were rail containers --**
2 A Well, they --
3 **Q -- that were being stored?**
4 A They took the responsibility for them at
5 the port and brought them, you know, to the rail
6 terminal.
7 **Q Who owned the containers?**
8 A The steamship lines.
9 **Q Okay. So they're steamship line**
10 **containers?**
11 A Yeah. Okay.
12 **Q Okay. And did you understand in the**
13 **Tariff there's a provision for how much a steamship**
14 **line can charge for use of their containers?**
15 A I understand that.
16 **Q Okay. And were the charges being assessed**
17 **consistent with those tariffs?**
18 A My charges?
19 **Q The drayage charges.**
20 **I think you say they're charging**
21 **for container charges. Are they billing container**
22 **charges based on -- that are owned by the ocean**
23 **liner? Right?**
24 A I'm not clear on who they pay. I believe

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1 it would have been the rail company. They would
2 pay for the detention of the containers.
3 **Q Why would they pay the rail company --**
4 A I don't --
5 **Q Let me finish.**
6 **Why would they pay the rail company**
7 **for detention of containers that are owned by the**
8 **steamship line?**
9 MR. BLOCK: Object to form.
10 THE WITNESS: It's my understanding that
11 at the port the rail company takes possession of
12 the containers. Okay. They take those to an
13 inland rail terminal. A trucker recovers the
14 container from the rail terminal. If they are not
15 returned in the required time, then the rail
16 company will charge a per diem or a per day fee,
17 and it applies for the chassis as well because
18 those are also owned.
19 BY MR. COLLINS:
20 **Q Who owns them?**
21 A I would believe the rail company or the
22 terminal. Whoever operates the terminal.
23 **Q Are you familiar with the term**
24 **"demurrage"?**

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1 A Yes. 2 Q What does demurrage mean? 3 A Keeping a container over the allotted time 4 allowed. 5 Q And what's "detention"? 6 A I believe it's the same principle. 7 Q Well, is it the same principle or is it 8 the same thing? 9 A I think it's the same thing. 10 Q So you think demurrage and detention are 11 interchangeable? 12 A Yeah. 13 Q Okay. Have you ever heard that demurrage 14 is cost arising from the use of either the port 15 storage space or facility or the rail -- I mean, 16 excuse me -- the ocean carrier's facility? That 17 that's demurrage? 18 A I've heard that as well. Yeah. 19 Q None of the bills at issue here, if that's 20 the definition, would be demurrage, correct? 21 A Correct. 22 Q So there's no demurrage charges in this 23 case? 24 A Correct. Page 42	1 MR. BLOCK: Object to form. 2 THE WITNESS: At the time I was using the 3 term that I thought was correct. 4 MR. COLLINS: But now you know it's 5 incorrect? 6 THE WITNESS: Yes. 7 BY MR. COLLINS: 8 Q Now, as a transportation provider, your 9 customers look for you for expertise in regards to 10 what's appropriate billing and what isn't, correct? 11 A Yes. 12 Q You wouldn't expect CMI to recognize the 13 distinction between demurrage and detention would 14 you? 15 MR. BLOCK: Object to form. 16 THE WITNESS: I expected CMI to understand 17 that term and that's why I used it. 18 BY MR. COLLINS: 19 Q Even though you're using it -- 20 They should have understood that you 21 were using the term incorrectly? Is that what 22 you're saying? 23 A No. I'm not saying that. I used the term 24 the way I understood it and CMI understood it. So Page 44
1 Q Okay. So when CMI received bills for 2 thousands and thousands and thousands of dollars 3 for demurrage, no demurrage actually existed did 4 it? 5 MR. BLOCK: Object to form. 6 THE WITNESS: In that technical definition 7 that you said, yes. 8 MR. COLLINS: Okay. 9 THE WITNESS: But there was storage 10 detention. There was money owed. 11 MR. COLLINS: Okay. 12 BY MR. COLLINS: 13 Q But it wasn't what you were billing it 14 for? 15 MR. BLOCK: Object to form. 16 THE WITNESS: Okay. 17 MR. COLLINS: Do you agree? 18 MR. BLOCK: Object to form. 19 THE WITNESS: Yeah. I guess I do. 20 BY MR. COLLINS: 21 Q All right. So when CMI is billed \$400,000 22 in demurrage, you think there might be other things 23 that they are for, but they don't actually owe 24 anything for demurrage? Page 43	1 we both understood we were on the same page. 2 Q How do you know that they understood it? 3 A Because they agreed and they paid. 4 Q Because they paid you figured they must 5 have understood what you were billing them for? 6 A Yeah. And they were very clear that they 7 knew. 8 Q Well, you actually represented that the 9 demurrage charges was something that the steamship 10 lines were charging, right? 11 A Yes. But that's not entirely correct. 12 That was a generalization. 13 Q Was it a generalization or is it just flat 14 out wrong? 15 I thought you're saying that none of 16 the charges were related to the steamship line; is 17 that right? 18 MR. BLOCK: Object to form. 19 THE WITNESS: Somewhere somebody was 20 paying the steamship line. It wasn't us. It was 21 either Freight Tech, the drayage company, or the 22 co-loader who had done the original bookings with 23 the steamship line. 24 So the charges were passed down the Page 45

1 chain, and ultimately we paid for it and then we 2 billed CMI for it. 3 BY MR. COLLINS: 4 Q Okay. The steamship line -- let's give a 5 hypothetical. 6 The goods arrive in a port and 7 demurrage is the time that the containers are being 8 stored at the port or at the steamship line's 9 facility. 10 So when you're billing for demurrage, 11 you're not billing anything for the steamship line 12 is charging; is that right? 13 A I have never paid directly a steamship 14 line. 15 Q Well, I'm saying they're not entitled 16 to -- 17 You said there was no storage of the 18 containers over free time at the port or in the 19 carrier's facility was there? 20 MR. BLOCK: Object to form. 21 THE WITNESS: That's correct. 22 BY MR. COLLINS: 23 Q So there wouldn't have been any demurrage 24 charges owing to the steamship line? Page 46	1 THE WITNESS: I can't attest to that. 2 MR. COLLINS: Why not? 3 THE WITNESS: Because that didn't happen. 4 BY MR. COLLINS: 5 Q You're saying there was never an instance 6 where you charged 31 days for what you called 7 demurrage, but wasn't demurrage, but maybe you 8 would call it detention? 9 A Storage. 10 Q Storage. And the containers had actually 11 been returned to the carrier within three days? 12 MR. BLOCK: Object to form. 13 THE WITNESS: Are you speaking of 14 something specifically? 15 MR. COLLINS: Yes. I'm speaking of 16 something specific. 17 If that happened, I'm saying that 18 would be fraudulent billing wouldn't it? 19 MR. BLOCK: Object to form. 20 THE WITNESS: No. I don't think so. 21 Because there could have been, you know, some other 22 storage-related fees that they were billed for. 23 Without knowing specifically what 24 you're talking about, I... Page 48
1 A Paid by us, no. 2 Q Paid by anybody? 3 MR. BLOCK: Object to form. 4 MR. COLLINS: 5 Q Why would they -- 6 If they're not using the steamship 7 line's -- the port or the steamship line's 8 facility, there's nothing owed is there? 9 MR. BLOCK: Object to form. 10 THE WITNESS: But somebody did have 11 possession of their containers over the allotted 12 time that was allowed. So that had to be -- that 13 was charged per day until the containers were 14 returned. 15 BY MR. COLLINS: 16 Q Okay. But that's not demurrage, right? 17 A Well, that's -- yes. 18 Q Okay. What if -- if the record shows that 19 the containers were gated out and gated in, I mean, 20 that's the time it was taken out and taken back, 21 and say a container was gated out and three days 22 later it was gated in, and CMI was charged for 31 23 days of detention, that would be fraud wouldn't it? 24 MR. BLOCK: Object to form. Page 47	1 MR. COLLINS: Okay. We'll get to it. 2 BY MR. COLLINS: 3 Q How much were you charging SBA for 4 demurrage -- I mean -- excuse me. 5 How much was SBA charging CMI for 6 demurrage? 7 A Approximately \$300 a day. 8 Q And what was that based on? 9 A What we were paying. 10 Q So you were paying \$300 a day? 11 A No. We were paying \$200, \$250. 12 Q Which? Regardless of what -- 13 Whichever one it was, you charged 14 \$300? 15 A Yeah. 16 Q So \$200, you would mark it up to \$300? 17 \$250 you would mark it up to \$300? 18 A Yes. 19 Q Do you know whether -- 20 Assuming this was ocean 21 transportation, that there was anything in the 22 tariff that allowed that type of markup? 23 MR. BLOCK: Object to form. 24 THE WITNESS: I did not assume that we Page 49

1 were subject to the ocean tariff. 2 BY MR. COLLINS: 3 Q Even if it was a through bill of lading, 4 you thought it had nothing to do with you? 5 MR. BLOCK: Object to form. 6 THE WITNESS: I can't attest to that. 7 BY MR. COLLINS: 8 Q Well, so I'm asking you? I just asked -- 9 I'm saying even if it was under a 10 through bill of lading, you assumed that the tariff 11 had nothing to do with you? 12 A The through bill -- 13 MR. BLOCK: Object to form. 14 THE WITNESS: The through bill of lading 15 that the ocean transportation terminated at 16 whatever was stated on the bill of lading. 17 BY MR. COLLINS: 18 Q Well, that's what I'm saying. The bill of 19 lading say it's going to Chicago. That's why 20 I'm -- 21 So you're charging though for getting 22 the containers from Long Beach to Chicago, for 23 example. That's still part of the bill of lading, 24 right? The ocean bill of lading? Page 50	1 Q Well, I thought you were an agent for LAS 2 Freight? 3 MR. BLOCK: Object to form. 4 THE WITNESS: They're an agent for us. 5 BY MR. COLLINS: 6 Q They're an agent for -- 7 A The freight was collect. 8 Q I understand, but the NVO in China was 9 your agent. So you're the principal? 10 MR. BLOCK: Object to form. 11 THE WITNESS: No. 12 BY MR. COLLINS: 13 Q You know what principal and agent means? 14 A I know what agent means. 15 Q Well, they're acting on your behalf if 16 they're your agent, right? 17 MR. BLOCK: Object to form. 18 THE WITNESS: Yes. 19 BY MR. COLLINS: 20 Q So you're the principal and they're acting 21 as your agent in issuing the bills of lading? 22 MR. BLOCK: Object to form. 23 THE WITNESS: I don't see it that way. I 24 don't. Page 52
1 MR. BLOCK: Object to form. 2 THE WITNESS: That part is. 3 BY MR. COLLINS: 4 Q And that's governed by the tariff, right? 5 MR. BLOCK: Object to form. 6 THE WITNESS: We were charged with 7 recovering it from the Chicago terminal and 8 delivering it to CMI's facility. 9 BY MR. COLLINS: 10 Q I thought you said you assumed 11 responsibility when it arrived at the port? 12 A No. Where the container terminated, 13 wherever that may be. The port or -- in most cases 14 it was the Chicago rail ramp. 15 Q So you were billing for -- 16 So your responsibility only started 17 when it got to the rail ramp in Chicago? 18 A Yes. 19 Q Then why are you billing for 20 transportation from all this other transportation 21 charges? 22 A Well, we acted as CMI's agent. The 23 co-loaders. The freight was collect and we paid it 24 on their behalf. Page 51	1 BY MR. COLLINS: 2 Q Well, I thought you -- 3 Are they your agent or aren't they? 4 A They were. But I think that's incidental, 5 because we didn't hire them in that capacity. We 6 didn't hire them to do anything for us. 7 Q You didn't hire LAS Freight to do anything 8 for you? 9 A No. We just put them in contact with the 10 suppliers. I mean, just because they're our agent, 11 it doesn't mean that we can't put them in contact 12 with somebody. 13 Q So you say there was no written contract 14 between CMI and SBA, right? 15 A Correct. 16 Q Was there an oral contract? 17 A Yes. 18 Q Okay. And what was the oral contract? 19 A That we would -- 20 I don't know how to answer that. I 21 didn't make the oral -- an oral contract. 22 Q Well, you know -- I mean, you were 23 directly dealing with CMI often? 24 A Yes. Page 53

1 Q You were probably the primary contact, 2 right? 3 A Okay. 4 Q What were you doing for them? What did 5 you contractually agree to do? 6 A I didn't. I mean, I don't understand 7 "contractually"? 8 Q As part of -- 9 A I organized the importation of their 10 material. 11 Q Okay. So you organized the importation of 12 the material. And -- 13 A A liaison. 14 Q And you hired LAS Freight to do that? 15 A I did not hire them. 16 Q Okay. What was LAS Freight doing? 17 A LAS Freight worked with the suppliers in 18 China, and they arranged through co-loaders space 19 with the lines. 20 Q Now, how did -- 21 You charged them specific rates for 22 the services you were providing, right? 23 (Pause.) 24 CMI? You charged CMI charges? Page 54	1 them for it. 2 I don't understand what the question 3 is? 4 Q Okay. What I'm saying is in your 5 agreement did you say "This is what we're going to 6 charge you for demurrage"? 7 A No. 8 Q Detention -- 9 A I don't know what agreement you speak of? 10 I mean... 11 Q You agreed to provide some services for 12 them. That's what I'm talking about as the oral 13 contract? Or if there's a written contract, that's 14 fine too? 15 A There was a rate sheet and it does say 16 that detention, storage, et cetera, are not 17 included. 18 Q Okay. 19 MR. BLOCK: Brendan, when you get to a 20 good stopping point, could we take a mid morning 21 biology break? 22 MR. COLLINS: Sure. No problem. 23 We can do it now. 24 MR. BLOCK: Okay. Thanks. Page 56
1 A Yes. 2 Q Okay. How did you determine what you 3 would charge them? 4 A Cost plus. 5 Q Okay. What costs? 6 A Well, we would pay the freight, the 7 collect freight, on their behalf. The trucking, 8 the customs entry, all these things cost, and we 9 would add to that. 10 Q Where would the trucking occur? 11 A From where the containers were terminated 12 to CMI's facility. 13 Q Okay. And in this oral contract regarding 14 what services would be provided, did it address 15 demurrage in any fashion? 16 A I never made an oral contract. 17 Q Well -- I'm sorry. I'm talking about SBA? 18 (Pause.) 19 You understand there had to -- 20 A I know. 21 Q -- have been a contract? So CMI doesn't 22 have to pay you anything? Do they? 23 A Yeah, I understand that. 24 We provided the service and we billed Page 55	1 (Whereupon Exhibit Nos. 1 2 through 3 were marked.) 3 MR. COLLINS: Back on the record. 4 BY MR. COLLINS: 5 Q All right. Mr. Tincher, do you recall 6 that SBA -- I mean that -- excuse me -- prior to 7 your involvement with CMI, that CMI had a contract 8 with UTI for transportation services? 9 A I know that. Yes. 10 Q Okay. All right. 11 And, in fact, you competed with UTI 12 for that business didn't you? 13 A Yes. 14 Q Okay. Let me show you what we've marked 15 as Exhibit 1. 16 (Document tendered.) 17 (Witness reviewing.) 18 And in that communication -- you reviewed 19 the UTI tariff didn't you? 20 A Yes. 21 Q Where did you go to get that tariff? 22 A CMI gave it to me. 23 Q Oh, CMI gave you the tariff? 24 A Yes. Page 57

15 (Pages 54 to 57)

1 Q Okay. All right. 2 And you reviewed that so you could 3 compare prices, right? 4 A That's why they sent it to me. Yes. 5 Q Okay. And then you used that -- you 6 provided them a document in response that you 7 referred to as SBA's tariff, right? 8 A I don't know if I necessarily referred to 9 it as SBA's tariff. 10 (Witness reviewing.) 11 I replaced UTI's costs or charges 12 with ours. 13 Q Okay. Well, if you look at the first page 14 there: "You may want to check with UTI," et 15 cetera. And then it says "Also attached is my 16 tariff that includes the recent GRI." 17 Do you see that? 18 A I did provide a cost sheet. Yes. 19 Q Well, it says -- no, you didn't provide 20 a -- 21 You didn't refer to it as a cost 22 sheet. You referred to it as a tariff, right? 23 A Okay. 24 Q So you did do that? Page 58	1 costs. 2 Q Okay. But that's not what this is, is it? 3 MR. BLOCK: Object to form. 4 THE WITNESS: I don't know. 5 MR. COLLINS: Well, this -- 6 THE WITNESS: It looks like a tariff to 7 me; but if it's filed with the FMC, I can't say. 8 BY MR. COLLINS: 9 Q Well, if you look down at the bottom, 10 "During the term of this NRA" -- 11 Do you know what an NRA is? 12 A I do not. 13 Q Okay. Negotiated Rate Agreement. 14 A Okay. 15 Q Does that ring a bell? 16 A Sure. 17 Q Okay. -- "transportation is subject to 18 applicable surcharges, accessorial charges, and/or 19 GRI's published and Carrier's rules tariff, and it's 20 effective at the time of shipment, unless otherwise 21 specified in this NRA." 22 Do you see that? 23 A I do. 24 Q So this is something that's not merely a Page 60
1 A Yes. 2 Q What's GRI? 3 A I believe that means General Rate 4 Increase. 5 Q Okay. Now, let me show you -- I'll just 6 go ahead and give you both Exhibits 2 and 3, so we 7 can look at those. 8 (Documents tendered.) 9 If you look at what's Exhibit 2, 10 that's the UTI tariff; is that right? 11 MR. BLOCK: Object to form. 12 (Witness reviewing.) 13 THE WITNESS: It says UTI. Yes. 14 BY MR. COLLINS: 15 Q And do you understand this is a tariff? 16 MR. BLOCK: Object to form. 17 THE WITNESS: Yes. 18 MR. COLLINS: Okay. 19 BY MR. COLLINS: 20 Q And do you understand that a tariff is 21 something that is published with the FMC? 22 MR. BLOCK: Object to form. 23 THE WITNESS: I've always used the term 24 "tariff" for anything that provides somebody with Page 59	1 rate sheet is it? It's actually a tariff that is 2 reflected in the rules tariff as published? 3 MR. BLOCK: Object to form. 4 THE WITNESS: I can't say. I don't know. 5 I don't know that. 6 BY MR. COLLINS: 7 Q Well, you say it's "made pursuant to an 8 FMC NRA exemption per 46 CFR Section 532.6." 9 Do you see that? 10 MR. BLOCK: Object to form. 11 THE WITNESS: I do. I don't know what 12 that means. 13 BY MR. COLLINS: 14 Q All right. Well, let's look at the one 15 that you provided to SBA, and that says SBA Global 16 Logistics at the top, right? 17 A Yes. 18 Q And this is a tariff that you provided to 19 CMI, right? 20 A Yes. 21 Q And again it provides, down there under 22 the Terms: "During the terms of this NRA, 23 transportation is subject to applicable surcharges, 24 accessorial charges, and/or GRI's published and Page 61

1 Carrier's rules tariff"? 2 Do you see that? 3 A I do. 4 Q So was that accurate? 5 A No. 6 Q Why not? 7 A Those are not our terms and conditions. 8 Q But you sent this to CMI as SBA's tariff 9 didn't you? 10 A I did at CMI's request. 11 Q They requested you to create a tariff and 12 to send it to you? 13 A They requested me to replace UTI's cost 14 with ours so they can compare. 15 Q But you didn't just send them a cost 16 sheet. You actually sent them something that 17 refers to the Carrier's rules tariff? 18 A I did not know that at the time. 19 Q You didn't know what you were sending 20 them? You sent it, right? 21 A I did. 22 Q Would you agree that somebody reading 23 this, it would be a reasonable assumption that 24 you're providing them with a tariff? Page 62	1 different e-mails. This is not something we 2 produced. 3 MR. BLOCK: Identify what you're saying 4 you didn't produce? 5 THE WITNESS: Okay. Exhibit 3 is not 6 something that we produced. All that was done here 7 was added the letterhead and replaced the numbers 8 with ours (indicating). 9 BY MR. COLLINS: 10 Q But it's under your name? 11 A Yes. 12 Q And it has a quote date? 13 A It does. 14 Q And it has an effective date? 15 A It does. 16 Q And it has an expiration date? 17 A It does. 18 Q Was that valid? 19 A I can't say. I don't remember. 20 I can say that despite the letterhead, 21 that this is not an SBA tariff. 22 Q Yeah. You cut and paste it? 23 A Exactly. 24 Q Right. And you sent somebody and said Page 64
1 A The way you define it, I can't say. 2 Q Well, why not? 3 I guess I'm saying, you send them a 4 UTI tariff? 5 A They sent me a UTI tariff. 6 Q Okay. And you sent it back to them. You 7 said "Okay, here's UTI's tariff," and they're 8 saying "Can you compare the services from UTI and 9 SBA," right? 10 A I was asked to specifically replace UTI's 11 cost with mine so that they can compare the two. 12 Q Okay. And did they ask you to send them 13 something that refers to the Carrier's rules 14 tariff? 15 A They did not. They asked me to use the 16 spreadsheet that they provided. 17 Q They asked you to actually use that 18 spreadsheet? 19 A Yes. 20 Q But it's not the same spreadsheet. I 21 mean, if you look at theirs, it doesn't follow. 22 It's a different document? 23 A I don't think these two go together 24 (indicating). I think these are from maybe two Page 63	1 "Here's our tariff." 2 A We were asked to do that. 3 Q Right. But they didn't ask you to say 4 "This is our tariff," did they? 5 A No. But in the communication that was the 6 term they were using. So... 7 Q So you didn't say "You know what, we're 8 not actually -- we don't have a tariff"? 9 A I should have said that. 10 Q You should have. 11 A Yeah. 12 Q But you didn't want them to know you 13 didn't have a tariff, right? 14 A No, I was just doing what my customer 15 asked. 16 Q Well, your customer didn't ask you to 17 deceive them did they? 18 A We didn't -- 19 MR. BLOCK: Object to form. 20 THE WITNESS: I don't think there was any 21 deception. 22 BY MR. COLLINS: 23 Q Well, when you say "Here's our tariff," 24 and you don't have a tariff, you don't think that's Page 65

1 deceptive? 2 MR. BLOCK: Object to form. 3 THE WITNESS: We were giving -- we were 4 giving a tariff and told to specifically fill our 5 numbers in to the tariff. (Inaudible) -- 6 MR. COLLINS: But you never -- go ahead. 7 I'm sorry. I didn't mean to interrupt you. 8 THE WITNESS: This is what I did. 9 Basically all I did was just replace numbers. 10 BY MR. COLLINS: 11 Q Okay. But you never said to them "By the 12 way, you should know we're not -- we don't have a 13 tariff, and we actually are not willing to assume 14 responsibility for the transportation of the goods 15 at issue"? 16 A I did not think we were accepting 17 responsibility at that time. 18 Q Well, you know UTI -- 19 If UTI issues -- it's acting as a 20 carrier? 21 A I didn't know that. 22 Q You didn't understand that their tariff 23 refers to their Carrier's rules tariff? That that 24 means that they're acting as a carrier? Page 66	1 A I did not think it was necessary to make 2 the distinction. 3 Q Do you think it would matter to a customer 4 if one entity was assuming responsibility for the 5 transportation of their goods and the other wasn't, 6 that maybe they might want to know that? 7 MR. BLOCK: Object to form. 8 THE WITNESS: I don't know. I assume yes. 9 BY MR. COLLINS: 10 Q So that's something they should have 11 known? 12 MR. BLOCK: Object to form. 13 THE WITNESS: You're assuming that they 14 didn't. I don't know. 15 BY MR. COLLINS: 16 Q By the way, I meant to -- previously you 17 testified that you subsequently learned that you 18 had incorrectly billed all of the ocean demurrage 19 in the invoices. 20 When did you learn that that was the 21 incorrect -- it was incorrect billing? 22 MR. BLOCK: Object to form. 23 THE WITNESS: I don't know what you mean 24 by that, it was billed incorrectly? The Page 68
1 A At that time I did not read the entire 2 tariff. I was asked to do something by my customer 3 and I did it. 4 Q Okay. 5 A So I didn't read the fine print. I 6 didn't -- it was not my understanding that I was 7 presenting a tariff according to FMC rules. 8 Q Essentially, though, you were saying 9 "Listen, we provide the same type of service as 10 UTI, right? 11 A Yes. 12 Q But that's not accurate is it? 13 A I wouldn't say that. 14 Q You provide the same service as UTI? 15 A I don't know what UTI did. So I can't 16 answer that question. I don't know what exact 17 services they were doing. I mean, there are 18 similarities. 19 Q Well, as far as you're concerned, there's 20 really no difference between what they're doing and 21 you're doing is there? 22 A There may be. I don't know that. 23 Q You never told -- you certainly never told 24 CMI that there was a distinction did you? Page 67	1 terminology? 2 BY MR. COLLINS: 3 Q Well, it wasn't demurrage, right? You 4 said that it wasn't demurrage. 5 You learned it wasn't demurrage? 6 A I don't believe that we were billing 7 incorrectly. Maybe the terminology could have been 8 better. 9 Q Well, it wasn't demurrage, and you were 10 billing for demurrage, right? 11 A We were billing for demurrage, detention, 12 storage, chassis rental. We put it under one term. 13 Q And it wasn't demurrage, right? I think 14 we've established none of it was demurrage you 15 said? 16 MR. BLOCK: Object to form. 17 THE WITNESS: Well, no I -- 18 Yes and no. We were billed by a 19 trucking company, a drayage company, that pulled 20 the containers from the rail and then held the 21 containers in their yard. You know, I thought that 22 that was demurrage. 23 MR. COLLINS: But you were wrong, right? 24 THE WITNESS: Because it was taking up Page 69

1 space in their yard. 2 MR. COLLINS: But you were wrong, right? 3 THE WITNESS: I can't say that. 4 BY MR. COLLINS: 5 Q A few minutes ago you said you learned it 6 was wrong? 7 A Yeah, but that was in a specific question 8 you were asking. You know, now you're asking more 9 general terms, and I'm saying I don't know. I 10 don't know that for sure; if I'm wrong or if I'm 11 right. 12 Q So after thinking about it when you said 13 that was the wrong term that was used, you're now 14 saying "Well, maybe it wasn't the wrong term." 15 That's the -- 16 A You were -- 17 Q -- correct term? 18 A You were asking -- you said specifically 19 did we -- was there demurrage with the steamship 20 line, and we agreed that probably not because we 21 had pulled the containers from their possession, 22 and -- the trucking company pulled the containers 23 from their possession. Now it was in their 24 possession and their space. Page 70	1 questioning maybe I was thinking of something 2 differently. I mean, the containers -- we still 3 had to pay somebody for keeping the containers. 4 MR. COLLINS: Okay. 5 THE WITNESS: You know, in their space. 6 So in this context it was demurrage. Yes, it was. 7 Because it was being kept at somebody else's lot. 8 BY MR. COLLINS: 9 Q But that's not the definition of 10 demurrage, right? 11 MR. BLOCK: Object to form. 12 THE WITNESS: Okay. 13 MR. COLLINS: Is it? 14 MR. BLOCK: Object to form. 15 THE WITNESS: I thought we had an 16 understanding that it was. 17 BY MR. COLLINS: 18 Q Who had an understanding? 19 A That we agreed that it was a daily charge 20 for storing -- or a container being stored in 21 somebody else's facility. 22 Q Who is "we"? "We had an agreement"? 23 A You and I. 24 Q I agreed that -- Page 72
1 Q All right. And -- 2 A (Inaudible). 3 Q Go ahead. I'm sorry. 4 A I'm just saying that, you know, the term 5 "demurrage" in that context does not sound 6 incorrect to me. Because it was... 7 Q All right. Well, what I'm saying is if 8 you assume demurrage is the time when containers 9 are in the carrier's -- at the port or in the 10 carrier's facility, there was no demurrage, right? 11 A Yes. 12 Q Okay. All right. 13 When did you -- and then you said so 14 you think billing for demurrage shouldn't have been 15 called demurrage, right? 16 MR. BLOCK: Object to form. 17 THE WITNESS: Did I say that? 18 MR. COLLINS: Yeah. 19 MR. BLOCK: Object to form. 20 THE WITNESS: I disagree. 21 BY MR. COLLINS: 22 Q You disagree with what you said? 23 MR. BLOCK: Object to form. 24 THE WITNESS: I just feel in that line of Page 71	1 A I thought it's a definition we agreed on. 2 Sorry to make you laugh. 3 Q Are you under any medication? 4 MR. BLOCK: Brendan, this is getting 5 argumentative. 6 MR. COLLINS: I'm asking? I just want to 7 make sure. I don't really want to have to start a 8 deposition over when all of a sudden every answer 9 changes after a break. 10 THE WITNESS: It was just one answer. 11 That's all. 12 MR. BLOCK: And I don't think he changed 13 his answer. He qualified and explained it based on 14 further questioning. 15 BY MR. COLLINS: 16 Q Are you under any medication? 17 A I am not. 18 Q Are you able to testify truthfully today? 19 A Yes, I am. 20 Q Okay. All right. 21 Who did you give the tariff in Exhibit 22 3 to? Do you remember? 23 A His name was Jay. 24 Q Okay. Now, if you look at the bottom of Page 73

1 Exhibit 3 there. I just want to say, it says that 2 "During the term of this NRA, transportation is 3 subject to applicable surcharges, accessorial 4 charges, and/or GRIs." 5 Do you know what the applicable 6 surcharges, accessorial charges, and GRIs were? 7 A I do not. 8 (Whereupon Exhibit No. 4 9 was marked. Said document 10 was tendered.) 11 BY MR. COLLINS: 12 Q We talked about this briefly, but I just 13 wanted to see if this helps refresh your 14 recollection. 15 (Witness reviewing.) 16 This was the pallet that was received with 17 holes. Do you remember that? 18 A Yeah. 19 Q And Diana Alvarado was asking how would 20 you like CMI to take the credit for the damage done 21 to the cargo; is that right? 22 A I see it. 23 Q And do you remember -- and again I'm just 24 trying to refresh your recollection. Page 74	1 Q Do you see this? The first page is an 2 airway bill? 3 A Yes. 4 Q And the second page is an invoice for 5 ocean freight, and if you look it appears that the 6 bill of lading number on each matches up, correct? 7 (Witness reviewing.) 8 A Yes. 9 Q So SBA issued a bill of lading for this 10 transportation, correct? 11 MR. BLOCK: Object to form. 12 THE WITNESS: This was issued for billing 13 purposes, I believe. This is an invoice. 14 BY MR. COLLINS: 15 Q Well, the second page is an invoice. 16 A Yeah. 17 Q I agree with that. But the first page is 18 a bill of lading, right? 19 MR. BLOCK: Object to form. 20 THE WITNESS: This is an airway bill. 21 This is something that our system generates 22 internally. 23 BY MR. COLLINS: 24 Q Well, it's a bill of lading though, isn't Page 76
1 Do you remember whether actually a 2 credit was given? 3 A There was not. 4 Q Why not? 5 A As far as my recollection. 6 Q And was it because they didn't submit a 7 claim? I think that's what you said? 8 A Yeah. I suppose so. I don't remember 9 what happened after this. 10 Q All right. Thanks. 11 Now, SBA issued some bills of lading 12 for their transportation at issue, didn't it? 13 A No. 14 Q It didn't issue airway bills? 15 MR. BLOCK: Object to form. 16 THE WITNESS: Not that I know of. 17 BY MR. COLLINS: 18 Q Well, let me show you what we've marked as 19 Exhibit 4 -- or, actually, no it's not my Exhibit 20 4. Now it's going to be 5. 21 (Whereupon Exhibit No. 5 22 was marked. Said document 23 was tendered.) 24 BY MR. COLLINS: Page 75	1 it? 2 MR. BLOCK: Object to form. 3 THE WITNESS: It is. 4 BY MR. COLLINS: 5 Q And you say down at the right-hand corner 6 it's Service By Air, Inc.? 7 A Um-hmm. 8 Q Bill of lading, right? 9 A Yes. 10 Q Okay. And it provides that the -- the 11 airway bill up in the top it's by Service By Air, 12 Inc., at 811 Thorndale Avenue, Bensenville, 13 Illinois, right? 14 A Yes. 15 Q Is that accurate? 16 A That's what it says. 17 Q Okay. And is that the actual address? 18 A Yes. 19 Q Okay. And then it provides that the 20 consignee is CMI Distribution? 21 A Yes. 22 Q And I think you indicated previously that 23 an airway bill is a bill of lading, right? 24 A Yes. Page 77

1 Q Okay. So this is a bill of lading issued 2 for this transportation, right? 3 MR. BLOCK: Object to form. 4 THE WITNESS: It is a bill of lading. It 5 was not issued for transportation. It was issued 6 for billing. This was not issued to anybody, 7 except CMI for billing purposes. 8 BY MR. COLLINS: 9 Q Well, how did SBA -- I mean, how did CMI 10 get it? 11 A They got it with their invoice. 12 Q Oh, so you sent it to them as part of the 13 invoice? 14 A Our Corporate office did this. 15 Q Okay. So you sent a bill of lading to CMI 16 for the transportation at issue? 17 MR. BLOCK: Object to form. 18 THE WITNESS: They sent a bill of lading 19 for billing. 20 BY MR. COLLINS: 21 Q This says on page 2 -- and, again, this is 22 the same transportation, the invoice and the bill 23 of lading, right? 24 A Yes. Page 78	1 BY MR. COLLINS: 2 Q And if you look at what we've marked as 3 Exhibit 6, again this is another bill of lading 4 issued by SBA, right? 5 MR. BLOCK: Object to form. 6 THE WITNESS: It is a bill of lading and 7 SBA's airway bill. Yes. 8 BY MR. COLLINS: 9 Q Okay. And if you look then at the next 10 page, the invoice, it says air freight. 11 So the invoice is for air freight, 12 right? 13 (Witness reviewing.) 14 A That's what it says. That's what it says. 15 Q Is that accurate? 16 A It is not. 17 Q Why not? 18 A Because this was an ocean import. 19 Q Why would you have been billing SBA for 20 air freight for ocean imports? 21 MR. BLOCK: Object to form. 22 THE WITNESS: We didn't. As far as I 23 can -- as far as I -- 24 I can attest why it says this, but it Page 80
1 Q It says ocean freight? 2 A Yes. 3 Q Why is an air bill being issued for ocean 4 freight? 5 MR. BLOCK: Object to form. 6 THE WITNESS: It wasn't issued. It just 7 was presented with their invoice for billing 8 purposes. This is the only bill of lading that our 9 system will create. 10 BY MR. COLLINS: 11 Q Is it otherwise accurate? 12 A It's a format. 13 Q Is it otherwise accurate? The information 14 in there? 15 MR. BLOCK: Object to form. 16 THE WITNESS: On the airway bill? 17 MR. COLLINS: Yes. 18 THE WITNESS: Yes. 19 BY MR. COLLINS: 20 Q So it's otherwise accurate. Okay. 21 Now, when it says... 22 (Whereupon Exhibit No. 6 23 was marked. Said document 24 was tendered.) Page 79	1 seems to me it was an accounting error. 2 MR. COLLINS: Accounting error? 3 THE WITNESS: Yes. 4 BY MR. COLLINS: 5 Q Explain that? 6 A The line item description was either 7 selected wrong or some other reason that I can't 8 say. 9 Q Does anybody look at your invoices before 10 they go out? 11 A We do not -- at our office we do not 12 prepare the invoices or do the receivables. That 13 is done at our Corporate office. 14 Q So the Corporate office is responsible for 15 making sure the invoices are correct, right? 16 A Yes. 17 Q And somebody at the Corporate office is 18 just sending out bills or invoices that are wrong? 19 MR. BLOCK: Object to form. 20 THE WITNESS: Well, in this case it looks 21 like maybe the -- well, it looks like that the line 22 item that says air freight is incorrect. 23 BY MR. COLLINS: 24 Q So nobody is really paying attention? Page 81

1 MR. BLOCK: Object to form. 2 THE WITNESS: I don't know. 3 BY MR. COLLINS: 4 Q Well, it shouldn't have gone out as an air 5 freight bill should it? 6 A No. 7 Q Then it says down at the bottom there -- 8 let's look while we're at it. 9 "Container Stripping". What does that 10 mean? 11 A They wanted -- for this particular order 12 the receiver wanted the contents palletized and 13 removed from the container before delivery. 14 Q And who would that have been? 15 A Ulta Distribution. It may have been 16 requested by CMI. I'm not sure. 17 Q You say Ulta or Yantai -- oh, Ulta. I'm 18 sorry. You're right. I apologize. Ulta. Okay. 19 So somebody wanted the container 20 stripped? 21 A Yes. 22 Q And so that means you're taking it out of 23 the containers, right? 24 A Yes. Page 82	1 demurrage, detention, or whatever you call it, 2 should totally have stopped as to the steamship 3 line, right? 4 MR. BLOCK: Object to form. 5 THE WITNESS: Yes. 6 (Whereupon Exhibit No. 7 7 was marked. Said document 8 was tendered.) 9 BY MR. COLLINS: 10 Q Now, this is an invoice issued by SBA for 11 ocean freight, and there it refers -- this one 12 actually refers to detention instead of demurrage. 13 So, apparently, somebody did recognize the 14 distinction between those two, right? 15 (Witness reviewing.) 16 A That's what it says. 17 Q But that's not a distinction that you were 18 aware of? 19 A Correct. 20 Q And if you look at the next page, again 21 that's another bill of lading that was issued by 22 SBA for this transportation, correct? 23 MR. BLOCK: Object to form. 24 THE WITNESS: It is a SBA bill of lading. Page 84
1 Q And then once you take it out of the 2 containers, you return the containers to whoever 3 owns the containers, which is the shipping line, 4 right? 5 A Yes. 6 Q So at that point there would be no 7 further -- whatever you call it -- detention, 8 demurrage, or any charges associated with the 9 steamship line would there? 10 MR. BLOCK: Object to form. 11 THE WITNESS: I would think not. In this 12 case I don't remember how many days it was before 13 it was returned. 14 BY MR. COLLINS: 15 Q But, nonetheless, you charged demurrage 16 for \$3,740, right? 17 A That's what it says. 18 Q And how many days would that reflect that 19 the containers were out? 20 A I don't know. 21 Q Well, you're charging \$300 a day, right? 22 A Yeah, on average. Yes. 23 Q Okay. So let me just make sure. 24 If the containers are stripped, Page 83	1 BY MR. COLLINS: 2 Q And it has the same bill of lading number 3 that's referred to on the invoice, right? 4 A Correct -- wait. 5 (Witness reviewing.) 6 No, actually it doesn't. 7 Q 617. Okay. I'll withdraw that. Good 8 pick up. 9 (Whereupon Exhibit No. 8 10 was marked. Said document 11 was tendered.) 12 BY MR. COLLINS: 13 Q And that again is an invoice for air 14 freight on the first page, right? 15 (Witness reviewing.) 16 A That's what it says. 17 Q Is this air freight? 18 A No. 19 Q Oh, it's another mistake? 20 A It looks like it. Yes. 21 Q And that's Corporate Headquarters you're 22 saying making that mistake? 23 A Yeah, we do not do billing. 24 Q No, I'm saying did you say it was Page 85

1 Corporate? 2 A Yes. It would have been at the Corporate 3 level. 4 Q Okay. And this is another container 5 stripping charge, right? 6 A That's what it says. 7 Q Okay. So these were stripped. 8 Now, this one -- if you look at the 9 second page there, I'm not sure why there's two 10 bills of lading. I think it's the same bill of 11 lading. That was issued by LAS Freight, right? 12 A Yes. 13 Q And you were acting as their agent for 14 this shipment, right? 15 A Affiliate. 16 Q Well, it says -- 17 Wouldn't you consider yourself the 18 delivery agent? 19 A Delivery agent. Yes. 20 Q Well, you refer to them as your partner in 21 other instances? 22 A Yes. 23 Q So you were their partner and agent; is 24 that right? Page 86	1 air freight for this? 2 A Again, I don't think that this -- 3 Again, this is not air freight. 4 Q Well, what -- 5 A This is an accounting error. 6 Q Okay. So do you know what the \$9,600 was 7 for? 8 A I do not remember. 9 Q So you shouldn't have charged them twice. 10 Air freight for \$9,600, and then another one for 11 \$4,550 should you? 12 A Well, I'm sure there was a reason. 13 Q You think there was a valid reason -- 14 A Yes. 15 Q -- for billing them -- sending them two 16 air freight bills? 17 MR. BLOCK: Object to form. 18 THE WITNESS: Well, it was not air 19 freight. I believe that was an accounting error, 20 but there certainly would have been a reason for 21 receiving both of these bills. 22 BY MR. COLLINS: 23 Q Presumably it could well have been an 24 error based on what we're looking at? What's Page 88
1 A Well, according to this bill of lading 2 we're the delivery agent. 3 Q So the other partners, when you refer 4 to -- 5 In other instances though you refer to 6 them as your partner, right? 7 A Affiliate in this case. 8 Q So they were an affiliated company? 9 A Yes. Business partner. 10 (Whereupon Exhibit No. 9 11 was marked. Said document 12 was tendered.) 13 (Witness reviewing.) 14 BY MR. COLLINS: 15 Q You're looking at Exhibit No. 9. It's a 16 little confusing to me because I see on the first 17 page you've invoiced SBA for \$9,600 in air freight, 18 right? 19 (Witness reviewing.) 20 A That's what it says. 21 Q And on the next page you've invoiced them 22 for \$4,550 in air freight? 23 A That's what it says. 24 Q Why would you have charged them twice for Page 87	1 happening thus far, right? 2 A I don't think so. 3 Q You think there was -- 4 Well, why is it Air Bill Number 5 B771383 on one and then N771383 on the second? 6 A They're separate files. 7 Q Well, is one for maybe demurrage and one 8 for air freight? 9 MR. BLOCK: Object to form. 10 THE WITNESS: Well, the one would have 11 been for the initial cost and the second one would 12 have been for any subsequent costs that were 13 incurred between the freight arriving and it 14 delivering. 15 BY MR. COLLINS: 16 Q But it says air freight for both. So, I 17 mean, do you think one shipped, they met it halfway 18 across the ocean -- 19 A No -- 20 Q And they switched the containers or 21 something? 22 A I believe -- 23 Q How is it possible? 24 A I think it's just that -- maybe Page 89

1 "accounting error" is the wrong term. Maybe a 2 computer glitch or error would be probably better. 3 Because the numbers are not in question. It's the 4 terminology used in the description of charges. 5 Q You're saying the numbers are not in 6 question? How do you know? 7 A Because they were billed correctly. 8 Everything was billed correctly and they were paid. 9 Q So you think this air freight for \$9,600 10 is billed correctly? 11 A The number is correct. I believe the 12 description of charges is incorrect. 13 Q What were the charges? 14 A What were they for? 15 Q Yeah. 16 A It's hard to say. It could have been 17 storage. I don't remember. 18 Q How would CMI know when it got this 19 invoice from you what is being charged for? Other 20 than it's incorrectly being charged for air 21 freight? 22 A Well, taken out of context, it sounds like 23 that; but I believe that at the time with Maria and 24 Diana they would have either through e-mail Page 90	1 it's incorrect. So out of context I do not 2 remember what the charges were for, but they were 3 legitimate. It is just a matter of the terminology 4 used on this bill. 5 Q You just assume "We charged it, it must be 6 legitimate," right? "They should just pay it," 7 right? 8 MR. BLOCK: Object to form. 9 THE WITNESS: Yes. 10 BY MR. COLLINS: 11 Q And, in fact, if -- 12 A After three years I cannot speak factually 13 about anything really. 14 Q About anything? 15 A Well, about this. 16 Q Okay. Well, what I'm asking you is -- 17 MR. BLOCK: When you said you can't 18 testify about anything, you were speaking 19 specifically to that question? 20 MR. COLLINS: Don't help him too much. 21 THE WITNESS: Correct. 22 MR. COLLINS: Okay. 23 BY MR. COLLINS: 24 Q Jewels Transportation is one of your Page 92
1 communication or through updated spreadsheets, or 2 something, they would have known what it was for. 3 Q Would they have asked you "Can you 4 explain" -- 5 A If they truly believed that we were 6 charging them this much for air freight twice and 7 that there was an error, they would have said "Hey, 8 this is wrong." 9 Q And it would have been corrected? 10 A Yes. 11 Q You're sure that this amount was 12 corrected? 13 A Yes. 14 Q How much was -- 15 Did you just eliminate the \$9,600 or 16 what did you do? 17 A Eliminate it from what? 18 Q I mean, did you -- 19 It's not air freight. We know that. 20 It wouldn't have been -- 21 A What I'm saying is -- 22 Q Well, it's not air freight because it's 23 going by ocean? 24 A The description of charges, obviously, Page 91	1 drayage companies, right? 2 A Yes. 3 Q So you would take their charges and pass 4 that on? 5 A No. I would mark it up. 6 (Whereupon Exhibit No. 10 7 was marked. Said document 8 was tendered.) 9 BY MR. COLLINS: 10 Q Okay. Here we've got one where the first 11 page of the invoice is for air freight, and then 12 the second page is a bill of lading issued by your 13 partner LAS Freight, which indicates the goods 14 moved by ocean, right? 15 (Witness reviewing.) 16 A Yes. 17 Q And then the third page is Jewels 18 Transportation, a drayage company? 19 A Yes. 20 Q And they're billing you \$852 for storage, 21 right? 22 A Yes. 23 Q And then if you look at the last page, 24 you're charging \$6,650 for storage? Page 93

1 A That's what it says. 2 Q Okay. So Jewels Transportation, the 3 drayage company, billed you for \$852, and you 4 billed CMI for storage \$6,650? 5 A That's what it says. 6 Q What kind of markup is that? 7 MR. BLOCK: Object to form. 8 THE WITNESS: It's a markup. 9 BY MR. COLLINS: 10 Q It's a big markup isn't it? Is it more 11 than 20 percent? 12 MR. BLOCK: Object to form. 13 THE WITNESS: Yeah. It is. 14 BY MR. COLLINS: 15 Q It's a lot more than 20 percent isn't it? 16 A Well, that's an opinion. 17 Q Well, you don't think it's a lot more than 18 20 percent? 19 A It is. It's factual. Yes. 20 Q Why did you bill them \$6,650 in storage 21 costs when the amount from the drayage company was 22 charging was \$852? 23 A Probably because we lost money on another 24 file and we wanted to make it up. Page 94	1 bill for \$852, and then mark it up by almost 800 2 percent? 3 MR. COLLINS: Brendan, you're getting 4 argumentative. He's answered the question. 5 THE WITNESS: I'm sure there was a reason 6 at the time. 7 BY MR. COLLINS: 8 Q Is it your opinion that's a fair and 9 reasonable practice? 10 A My opinion doesn't matter. At the time, 11 in this particular file, I'm sure it was 12 reasonable. 13 Q Did you ever in your communications with 14 CMI say "By the way, in some instances we're going 15 to mark up your invoices by 100 percent, 200 16 percent, 300 percent, 400 percent, 500 percent, 17 600, 700 percent, 800 percent"? 18 A This is one invoice. 19 Q Yeah. It's one example. I agree with 20 that. 21 Did you ever tell them that you were 22 marking up to that degree? 23 A No. 24 Q But you think it's appropriate to do it? Page 96
1 Q Oh, I see. 2 Was that lost money on an unrelated 3 file or from another company or customer? 4 A No. No, no, no. It was CMI. 5 Q So you said "You know what, we're going to 6 mark up this invoice by 780 percent"? 7 A I didn't say that. 8 Q Well, somebody did. That's the math. 9 A Okay. 10 Q I mean, is there ever a time when it would 11 be appropriate to take an invoice for \$852 and then 12 charge somebody \$6,650 for it? 13 A Yes. 14 MR. BLOCK: Object to form. 15 MR. COLLINS: When? 16 THE WITNESS: Apparently, in this case. 17 BY MR. COLLINS: 18 Q It was appropriate? 19 A Yes. 20 Q This isn't gouging? 21 A No. 22 MR. BLOCK: Object to form. 23 BY MR. COLLINS: 24 Q So you think that it's reasonable to get a Page 95	1 MR. BLOCK: Object to form. 2 I'm at a point where I'm going to 3 instruct him not to answer because now it's getting 4 to be harassment, all right? 5 MR. COLLINS: I understand. Well, I mean, 6 you can instruct him as you like, but I'm entitled 7 to an explanation. 8 MR. BLOCK: You've gotten your 9 explanation, Brendan. Let's move on. 10 MR. COLLINS: I'm not moving on yet. 11 BY MR. COLLINS: 12 Q Is it reasonable? 13 A I can't say one way or the other. 14 Q You don't have an opinion -- 15 MR. BLOCK: That's all he's going to 16 answer on this topic. 17 MR. COLLINS: You're instructing him not 18 to answer any further questions about whether an 19 800 percent markup is appropriate? 20 MR. BLOCK: That's correct. And in a 21 minute I'll end the deposition all together if you 22 keep that up, Brendan. Now come on. You've gotten 23 your answer. 24 MR. COLLINS: No. I mean, as you said Page 97

1 yesterday, I'm entitled to my deposition. 2 MR. BLOCK: Absolutely you are. 3 (Whereupon Exhibit No. 11 4 was marked. Said document 5 was tendered.) 6 BY MR. COLLINS: 7 Q Okay. I'm showing you now what's been 8 marked as Exhibit 11. 9 Now, on this one you're charging air 10 freight again for \$4,245. Do you see that? 11 A I do. 12 Q Again, this didn't go by air did it? 13 A It did not. 14 Q So it's fair to say it was very sloppy 15 billing? Wouldn't you say? 16 MR. BLOCK: Object to form. 17 THE WITNESS: I can't say one way or the 18 other. It's not my -- I didn't do this. 19 BY MR. COLLINS: 20 Q Well, I understand that. But if you 21 provide ocean transportation services and then bill 22 somebody for air freight, that's pretty sloppy 23 isn't it? 24 MR. BLOCK: Object to form. Page 98	1 to know whether something is going by ocean than 2 air than it is to actually tabulate the exact 3 amount that's owed wouldn't it? 4 A I don't know. We don't do the accounting. 5 You know, what can I tell you? 6 Q Okay. All right. 7 Let's look here. The next page. This 8 goods did move under your partner's bill of lading, 9 right? Look on the third page? 10 (Witness reviewing.) 11 A Yes. 12 Q Okay. And then going back, this is one of 13 the Freight Tech invoices. 14 Do you know how much demurrage you 15 actually charged CMI on this one? 16 A I do not. There would have been maybe a 17 second bill for that. A second invoice for that. 18 I do not know. 19 Q I notice though in the invoices it says, 20 in many of them, it just says demurrage. It 21 doesn't give you the days, the amount. It's just a 22 flat statement, you know. 23 Do you remember that? It just says 24 demurrage? Page 100
1 THE WITNESS: I thought I'm supposed to 2 answer questions. You're asking me my opinions. 3 MR. COLLINS: I can ask you your opinions. 4 THE WITNESS: Okay. 5 MR. COLLINS: You're the primary contact 6 with CMI. 7 BY MR. COLLINS: 8 Q Do you have an opinion on whether it's 9 sloppy -- 10 A In this case I would say that, yeah, there 11 was an error here. 12 Q There's been a lot of errors we've already 13 looked at haven't there? 14 A There's been a few. 15 Q Now, if you can't get right whether it's 16 air freight or ocean freight, why should SBA have 17 any confidence that the numbers are correct? 18 MR. BLOCK: Object to form. 19 THE WITNESS: I don't see how they're 20 related. 21 BY MR. COLLINS: 22 Q Well, one is a mistake, but you're 23 saying -- 24 You know, it would seem to be easier Page 99	1 A Yes. 2 Q Why do you not disclose how many -- you 3 know, what's being billed? The amount or time? 4 Why is that information not provided 5 in the invoice? 6 A Well, there was a company spreadsheet that 7 CMI had and was updated everyday, that had how many 8 days the containers had been sitting after arrival. 9 Q So you -- 10 A So they were aware of how many days they 11 were in storage, et cetera. 12 Q Then why wouldn't you put that on -- 13 It would seem to me usually when you 14 get an invoice, you break out what the costs are. 15 Well, it's sort of what Freight Tech did here? 16 A Yes. 17 Q "These are what we're charging"? 18 A Um-hmm. 19 Q But you never did that did you? 20 A The accounting program may not allow for 21 it. I don't know. 22 Q Wouldn't it be easier if you could 23 actually look at an invoice and see "This is what 24 we're being billed for," than just a flat amount Page 101

1 of, say, \$12,000? 2 MR. BLOCK: Object to form. 3 THE WITNESS: Yes. 4 BY MR. COLLINS: 5 Q Let me ask you about -- looking at that. 6 Freight Tech is charging for demurrage 7 and yard storage. Essentially the same amount 8 of -- I think the days or the quantity on the left, 9 right? 10 (Witness reviewing.) 11 A Yes. 12 Q So they're charging 49 days of demurrage 13 and 48 days of yard storage? 14 A Yes. That's what it says. 15 Q What's the demurrage charge? 16 A That I believe was what they were 17 outlaying to the rail company. 18 Q So you think they were paying a rail 19 company for this? 20 A Yes. 21 Q And then they are charging \$25 themselves 22 for storage. So their charge was only \$25 a day? 23 A Yes. 24 Q Okay. Page 102	1 MR. COLLINS: No, I understand that. 2 Okay. Let me... 3 BY MR. COLLINS: 4 Q So if they returned the container to the 5 port, the demurrage charges are going to stop 6 accruing, right? Or detention? Whatever they call 7 it, it's going to stop accruing? 8 A Yes. 9 Q Okay. So if we are able to go and 10 determine that in fact the containers were not out 11 for 49 days, were in fact only out for, say, 10 12 days, they should have only been charging for 10 13 days, not 49 days, right? 14 A If that's -- yes. 15 Q And the same way that the chassis charges 16 shouldn't have been 49 days, if in fact the 17 containers had been returned with the chassis? 18 A Yes. 19 Q What procedures did you use to determine 20 the billing from Freight Tech was accurate? 21 A Well, I assumed that they were telling the 22 truth. 23 Q You just -- 24 A But I also knew when the containers were Page 104
1 A That's what that says. 2 Q And was that sort of standard for them? 3 They charge \$25 a day for storing goods? 4 A Yeah. It could be -- yes. 5 Q So if a container had been returned empty 6 back to the port, there shouldn't have been any 7 further demurrage or detention? I think we've 8 established, right? 9 MR. BLOCK: Object to form. 10 THE WITNESS: Yes. 11 BY MR. COLLINS: 12 Q So it should have only been the \$25, not 13 the \$125 per day? 14 MR. BLOCK: Object to form. 15 THE WITNESS: No. Because they had the 16 cargo loaded in the container in their yard. 17 BY MR. COLLINS: 18 Q Well, I'm saying -- my question was if 19 they returned the container, then that \$125 charge 20 wouldn't exist anymore, right? 21 MR. BLOCK: Object to form. 22 THE WITNESS: Well, no. They would still 23 have to pay for the days that they had it in their 24 possession over... Page 103	1 eventually delivered and emptied at CMI's facility, 2 and the dates are accurate. 3 (Whereupon Exhibit No. 12 4 was marked. Said document 5 was tendered.) 6 BY MR. COLLINS: 7 Q All right. Let's look at this. This is 8 an invoice for Container Demurrage, and all it says 9 is Container Demurrage on the invoice, right? 10 (Witness reviewing.) 11 A That's what it says. 12 Q So it's impossible for CMI, from looking 13 at this, to determine what exactly it's being 14 billed for, right? 15 A I wouldn't say it's impossible. They know 16 they are paying because they cannot receive their 17 container until after -- it looks like this one was 18 97 days. 19 Q Okay. Well, they didn't receive the 20 Freight Tech bill did they? 21 A No. 22 Q That would have shown your markup. 23 So you were not going to show them 24 that were you? Page 105

1 A No. I did not. 2 Q No. Of course not. 3 So what I'm asking, is looking at the 4 invoice, it just says Container Demurrage? 5 A Yes. 6 Q So from this invoice you can't tell how 7 many days. You can't tell anything really. All 8 you can see is you want \$27,000, right? 9 A That's what the invoice says. 10 Q Okay. And why did you not specify what 11 the various charges were for the invoice? You just 12 say Container Demurrage? 13 A At the time it didn't seem necessary to 14 have to break it down into different separate 15 charges. 16 Q That's not something the customer wants to 17 know? 18 A Well, if they would have asked for it, I 19 would have. 20 Q You would have? 21 A Yes. 22 Q Oh, if they had asked you -- 23 A Yeah. 24 Q -- to do this invoice broken out, you Page 106	1 Q But looking at the invoice, there's no 2 charge for chassis charges is there? 3 A We included it in the -- we included it in 4 the one line item. 5 Q What about fuel surcharges? You don't 6 break that out either? 7 A No. That would have been included with 8 the ocean freight charges. 9 Q Oh, so there's ocean freight charges. 10 The fuel surcharges we should delete 11 from the Container Demurrage? You're not passing 12 on that charge? 13 A Well, there would have been a -- there 14 would have been -- 15 Q A separate invoice? 16 A -- a separate invoice. 17 Q Okay. 18 A For that. 19 Q So whenever we see fuel surcharges, we're 20 not going to use that in figuring out how much you 21 marked up? 22 A Correct. 23 Q Okay. What about CN Harvey to CMI? Where 24 would that be included? Page 108
1 would have provided it for them? 2 A Sure. Or give instructions to do so. 3 Q But they never asked you for specifics on 4 bills that were being -- invoices that were being 5 received? 6 A I don't think so. They may have asked for 7 clarification on bills. 8 Q They asked for backup frequently didn't 9 they? 10 A Yeah. 11 Q But you didn't feel that it would have 12 been helpful to break it out how you were 13 determining? They should just pay you \$27,000? 14 A It's just a bill. I didn't prepare the 15 bill. 16 MR. BLOCK: When you get to a good 17 stopping point, could we take a break? 18 MR. COLLINS: Give me a few more minutes. 19 BY MR. COLLINS: 20 Q All right. So here they're charging -- 21 "they" being Freight Tech, excuse me -- \$2,450 for 22 chassis charges, right? 23 (Witness reviewing.) 24 A That's what it says. Page 107	1 A For the freight. 2 Q So that would have been freight too? 3 A Yes. 4 Q So we shouldn't include that in 5 determining how much demurrage you marked up? 6 A Yes. 7 Q How much you marked up for demurrage. 8 Okay. So but chassis charges would 9 have been part of that? 10 A Yes. 11 Q So if we add up these three, that would be 12 essentially you say \$20,000? Maybe even closer to 13 21? 14 A Yes. 15 Q And then you billed them 27? "You billed 16 them", being CMI, 27? 17 A Yes. 18 Q What kind of markup is that? 19 A That would have been taking the per day 20 charge and by how many days it was in storage. 21 Q What is the markup on that? 22 A We on average were charging \$300 per day. 23 Q But they're only charging \$170 per day, 24 and you're charging \$300? Page 109

1 A Well, in this case they are charging that.
2 **Q In most cases --**
3 A Keep in mind to -- I'm sorry. There's one
4 thing I need to clarify too.
5 At one point when we were handling
6 this business when CMI's containers were sitting in
7 multiple locations, you know, in storage, detention
8 et cetera, CMI was behind not only in paying us for
9 the ocean freight, but for past bills. And in
10 order -- so Maria Vega asked us for an average flat
11 rate so she can calculate how much she would
12 eventually owe once her containers were able to be
13 delivered.
14 **Q So that's what you decided to charge her?**
15 A Well, we took an average and, give or
16 take, we decided on \$300, and she knew that.
17 **Q Well, you said you're billing her \$300,**
18 **but she never agreed that that was the right rate**
19 **did she?**
20 A She never disagreed.
21 **Q Well, she knew that you were demanding**
22 **\$300, and if you didn't pay \$300 a day -- if she**
23 **didn't pay \$300 a day, you weren't going to release**
24 **her containers, right?**

Page 110

1 A I would not say demanding. That wasn't
2 the scenario at all.
3 **Q Well --**
4 A It wasn't a --
5 **Q Go ahead. I didn't mean to interrupt you.**
6 A For most of their containers it wasn't an
7 issue of us releasing them or not. It was them
8 being released so we can deliver them. Not by us,
9 but by the factories who supplied them.
10 **Q But also there were instances, you know,**
11 **where you said "Everything has been paid, you know,**
12 **the supplier has been paid, but we're not going to**
13 **release these containers until we get paid," right?**
14 A Yes. Towards the end they owed us quite a
15 bit of money.
16 **Q All right. And so you said even though --**
17 **So those charges were -- the amount**
18 **that was owed, say, it was about almost \$200,000,**
19 **right? That you demanded? Do you remember that?**
20 A I don't.
21 **Q It was a lot?**
22 A Yeah.
23 **Q Do you remember that?**
24 A I remember. Yeah.

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1 **Q Okay. So at that point you said --**
2 **although for some containers even though the**
3 **supplier has been paid and the containers are ready**
4 **for release, and even though there were no charges**
5 **associated with those specific containers, you said**
6 **"You owe us past due on other containers that we've**
7 **handled. You got to pay us for those before we**
8 **release these"?**
9 A I was told to do that. Yes.
10 **Q Okay. Who told you that?**
11 A That came from the Corporate level of our
12 company.
13 **Q Who?**
14 A His name is Arnie.
15 **Q So you said they told you "Although**
16 **there's no charges associated with owing regarding**
17 **these containers, don't let them go until we get**
18 **paid for costs associated with other containers"?**
19 A I don't know if that's necessarily true
20 either because some of the containers in question
21 there could have been charges owed for them.
22 **Q But even if they paid those charges, you**
23 **were not going to release it until you got paid?**
24 **You were owed a lot of money and you said "We're**

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1 **not going to release them until we got paid the**
2 **amount you owe us"?**
3 A Yes.
4 **Q And so the charges did not have to in any**
5 **way be related to the containers that you were**
6 **refusing to release, right?**
7 A No, no. That's not correct.
8 The invoices -- you're speaking of --
9 **Q No, not this specific --**
10 A No, but the --
11 **Q Go ahead. I'm sorry.**
12 A The charges on the invoices relate to the
13 containers.
14 **Q Oh, I understand that. I --**
15 A (Inaudible) didn't make up charges, you
16 know.
17 **Q Well, but we can argue about that too.**
18 **No, what I'm saying is when you said**
19 **at the end, you know, you said -- and it wasn't**
20 **just at the end, you said "We're not going to**
21 **release certain containers, even though the**
22 **supplier has been paid, and even though there are**
23 **no costs associated with those specific containers,**
24 **until you pay us the amount you owed for other**

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29 (Pages 110 to 113)

1 containers we've handled," right? 2 A I want to say yes, I guess. I just don't 3 understand the question. 4 Q Okay. Well, if you don't understand the 5 question -- and I'll take a break. I just want to 6 make sure because it's important. 7 At the end there were like five or six 8 containers you had in your possession. You said at 9 the end. Do you remember that? 10 A Yeah. 11 Q Okay. And those containers you had gotten 12 telex releases. Those were ready to be released, 13 right? 14 A Yes. 15 Q But you, nonetheless, decided "You know 16 what, we're owed for other transportation we've 17 provided, prior shipments, a lot of money. We're 18 not going to release these containers until we get 19 paid for the other shipments we handled"? 20 A Yes. I did not decide. 21 Q No, but I mean that's what SBA decided? 22 A Yes. 23 Q And did you ever talk to anybody, whether 24 legally, you were entitled to do that? Page 114	1 A Yes. 2 MR. COLLINS: Okay. Let's take a little 3 break. 4 (Whereupon a brief 5 recess was taken.) 6 (Whereupon Exhibit Nos. 13 7 and 14 were marked.) 8 BY MR. COLLINS: 9 Q I'm showing you what's been marked as 10 Exhibit 13. 11 (Document tendered.) 12 There it appears you billed -- "you" 13 being SBA, billed CMI for \$21,900 in Container 14 Demurrage, right? 15 (Witness reviewing.) 16 That's what it says. 17 Q Okay. And if you look at the next page, 18 you see that Freight Tech, which is your drayage 19 company, billed you for chassis charges and, you 20 know, transportation; but that's not included in 21 the demurrage, right? That would be in the freight 22 charge? 23 A No. The chassis, demurrage, and yard 24 storage would be. Page 116
1 MR. BLOCK: Object to form. 2 To the extent that would require you 3 to disclose communication you had with a lawyer, 4 don't answer it. 5 MR. COLLINS: That's fair. 6 THE WITNESS: No. 7 BY MR. COLLINS: 8 Q Who is it? Arnie told you to do that? 9 Isn't that whose name you used? 10 A I was not told... 11 MR. BLOCK: Can you answer the question 12 without disclosing a conversation you had with a 13 lawyer? 14 THE WITNESS: I don't think so. 15 MR. COLLINS: Okay. Then don't answer. 16 BY MR. COLLINS: 17 Q Well, let me ask you: You testified 18 before, you said senior people told you don't 19 release these containers, right? 20 A Not this one. 21 Q Not this one. Again, we're talking about 22 the last ones. When you got the big payment? 23 A Yes. 24 Q Senior people told you that, correct? Page 115	1 Q Right. I'm sorry. If I misspoke, I'm 2 sorry. 3 Fuel surcharges and the top item are 4 not reflected in the demurrage? 5 A Yes. 6 Q Okay. And then there's chassis charges, 7 73 days of demurrage, NYK Line. 8 Do you know who NYK line is? 9 A Yes. 10 Q That seems to be demurrage for an ocean 11 carrier, right? 12 A Yeah. 13 Q So this was a demurrage charge asserted by 14 the steamship line? 15 MR. BLOCK: Object to form. 16 THE WITNESS: That's what it says. 17 BY MR. COLLINS: 18 Q Would you agree that this is still part of 19 the ocean transportation? 20 MR. BLOCK: Object to form. 21 MR. COLLINS: That they're billing for 22 that? 23 MR. BLOCK: Object to form. 24 THE WITNESS: I can't say that for Page 117

1 certain.
2 BY MR. COLLINS:
3 **Q But it looks like they're passing on an**
4 **ocean steamship line charge there, right?**
5 A Yes.
6 **Q But it couldn't have been demurrage**
7 **because it was in Freight Tec's possession**
8 **presumably? Because they also charged for their**
9 **own yard storage, right?**
10 A Yes.
11 **Q Okay. So they charged --**
12 **And NYK Line billed \$100 a day, and**
13 **that's \$7,300.**
14 **So if we look down there at the**
15 **bottom, the total charge, even if we -- let's take**
16 **out the 133 and the 350. It's a little over**
17 **\$11,000 that you were charged, right?**
18 A Yes.
19 **Q And you charged SBA \$21,900 in Container**
20 **Demurrage?**
21 A That's what it says.
22 **Q So you added about \$10,000 or \$11,000 on**
23 **top of the amount?**
24 A No. It was done per day.

Page 118

1 **Q Well, I'm just --**
2 A \$300 per day.
3 **Q So even though NYK Line was charging \$100**
4 **a day, you marked it up to \$300 a day?**
5 A Yes. That was what CMI and Service By Air
6 agreed on. \$300 a day.
7 **Q Is that anywhere reflected in a tariff?**
8 MR. BLOCK: Object to form.
9 THE WITNESS: No.
10 BY MR. COLLINS:
11 **Q On what basis, you know --**
12 **If this was ocean transportation and**
13 **this is still part of the through bills of lading,**
14 **on what basis were you allowed to charge \$300 for a**
15 **\$100 charge?**
16 MR. BLOCK: Object to form.
17 THE WITNESS: We're a business. We bill
18 cost plus.
19 BY MR. COLLINS:
20 **Q How does that average out to 20 percent?**
21 **That's an \$11,000 bill, and you're billing them for**
22 **\$22,000 almost. That's a lot more than a 20**
23 **percent markup isn't it?**
24 A I suppose.

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1 **Q So would it be fair to say that maybe your**
2 **markup was a lot more than 20 percent?**
3 A In this case it looks like it.
4 **Q All right. Let's look at Exhibit 14.**
5 **(Document tendered.)**
6 **Here SBA billed CMI for 14,000 \$300 in**
7 **Container Demurrage. Do you see that?**
8 **(Witness reviewing.)**
9 A That's what it says.
10 **Q Okay. And then if we look at the Freight**
11 **Tech invoice, we see the charge was \$8,558, but**
12 **that also includes the fuel surcharges and the**
13 **transportation costs, right?**
14 A That's what it says.
15 **Q So the actual amount should be closer to**
16 **\$8,500, or a little less than \$8,500?**
17 A Sure.
18 **Q And then you billed them \$14,300?**
19 A That's what it says.
20 **Q Now, the demurrage charge here was a \$100**
21 **a day, and you're charging -- again you're doing --**
22 **Every one of these you're charging**
23 **\$300 a day? That was your policy?**
24 A Yes.

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1 **Q So even if the demurrage charge, the**
2 **underlying demurrage charge, is \$50 a day, you were**
3 **going to charge \$300?**
4 A Yes.
5 **Q It didn't matter? Whatever you could**
6 **charge and whatever you could get paid, right?**
7 MR. BLOCK: Object to form.
8 THE WITNESS: Is that a question?
9 MR. COLLINS: Yeah.
10 MR. BLOCK: Object to form.
11 THE WITNESS: I don't agree with that.
12 BY MR. COLLINS:
13 **Q Well, it seems to me if you're marking up,**
14 **you would actually look at what the actual price is**
15 **and then mark up 20 percent from that. You**
16 **wouldn't say "It doesn't matter how much it is,**
17 **we're going to charge \$300 a day"?**
18 A The point was to stay consistent. Because
19 that was what they asked us.
20 **Q That was what?**
21 A That was what they asked us to do.
22 **Q They asked you --**
23 A A consistent charge per day so that they
24 could make calculations for the future.

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31 (Pages 118 to 121)

1 **Q I understand. But they never said you**
2 **should charge us \$300 a day did they?**
3 A No. But we agreed to it.
4 **Q Well, you told them that, right?**
5 A And they agreed.
6 **Q Well, they wanted to get their containers,**
7 **right? If you had a gun you could point to their**
8 **head and say "I'm not going to release the**
9 **containers unless you pay us," right?**
10 MR. BLOCK: Object to form.
11 THE WITNESS: I don't agree with that.
12 MR. COLLINS: Why not?
13 MR. BLOCK: Object to form.
14 THE WITNESS: Because that's not what
15 happened.
16 BY MR. COLLINS:
17 **Q Well, you said "I'm not going to release**
18 **the containers until you pay us, including**
19 **demurrage, and demurrage is \$300 a day," right?**
20 A Yes.
21 **Q So they had to abide by that \$300 a day,**
22 **right?**
23 MR. BLOCK: Object to form.
24 THE WITNESS: Well, I don't think they had

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1 to. That was agreed upon prior to when we were
2 holding containers.
3 (Whereupon Exhibit No. 15
4 was marked. Said document
5 was tendered.)
6 BY MR. COLLINS:
7 **Q Okay. Here is what we've marked as**
8 **Exhibit 15, \$6,325 in Container Demurrage.**
9 **Do you see that?**
10 (Witness reviewing.)
11 A Yes.
12 **Q Okay. And then if we turn to the Freight**
13 **Tech charge. You would only have one trucking**
14 **company handle containers per container, right?**
15 **You wouldn't, say, have them hand it off to**
16 **another?**
17 A No.
18 **Q So the only invoice you would have**
19 **received presumably would have been from Freight**
20 **Tech and this place?**
21 A Correct.
22 **Q All right. And then they charged you --**
23 **again, they're charging you \$100 a day for**
24 **demurrage?**

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1 (Witness reviewing.)
2 A Yes.
3 **Q But you don't know who the underlying --**
4 **what steamship line might have been charging**
5 **assessing that?**
6 A I do not.
7 **Q Okay. And then there's again the yard**
8 **storage for \$25 a day. So the total is \$2,283,**
9 **minus, say, \$480. So it's about \$1,800? Ballpark?**
10 A Sure.
11 **Q And the amount you billed them, being CMI,**
12 **was \$6,325?**
13 A That's what it says.
14 **Q That's a lot more than 20 percent again,**
15 **right?**
16 A Okay.
17 **Q What would that be?**
18 A I don't know.
19 (Whereupon Exhibit No. 16
20 was marked.)
21 BY MR. COLLINS:
22 **Q Let me show you what we've marked as**
23 **Exhibit 16.**
24 (Document tendered.)

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1 Here you've got an invoice of
2 **Container Demurrage of \$9,900. You've got chassis**
3 **charges and demurrage and yard storage. The total**
4 **I want to say, if you subtract, is \$5,200?**
5 A Okay.
6 **Q And you charged \$9,900. That's more than**
7 **20 percent, right?**
8 A Sure.
9 **Q If you had charged \$150 a day instead of**
10 **\$300, that probably would have been a lot closer to**
11 **a 20 percent markup wouldn't it?**
12 A Yeah.
13 **Q But you cheese not to do that?**
14 MR. BLOCK: Object to form.
15 THE WITNESS: Like I said, we bill what
16 was agreed.
17 BY MR. COLLINS:
18 **Q But, I mean, they never said to you "Don't**
19 **charge us \$150 a day," did they?**
20 MR. BLOCK: Object to form.
21 THE WITNESS: In most circumstances we
22 didn't know what the final changes were going to
23 be. So they asked us to average per day what the
24 costs were.

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1 BY MR. COLLINS: 2 Q They asked you for estimating purposes. 3 They didn't tell you to bill that amount did they? 4 MR. BLOCK: Object to form. 5 (Pause.) 6 MR. COLLINS: Right? 7 THE WITNESS: I don't know. 8 BY MR. COLLINS: 9 Q Well, you were the one who talked to 10 Maria: "These demurrage charges are coming in. 11 They're so high. We have no idea what they're 12 based on. Can you give me some idea? We need to 13 try and calculate what it might be?" 14 A Yes. 15 Q And you said "Why don't we assume it's 16 \$300 a day," right? 17 A Yes. 18 Q But once you actually got the invoices, 19 you could have said, "You know what, we're gouging. 20 Why don't we change a lot less. Why don't we 21 change \$150 a day?" 22 A Question? 23 Q Yes. 24 A What is the question? Page 126	1 isn't it? 2 MR. BLOCK: Object to form. 3 (Pause.) 4 MR. COLLINS: Is it? 5 MR. BLOCK: Object to form. 6 Brendan, if I may? I think you're 7 assuming for purposes of most of this questioning 8 that Bryan was involved in the discussion and 9 agreement to have demurrage charged at \$300 a day 10 and that he had something to do with the 11 implementation of that agreement. You might ask 12 him whether that's the case. 13 MR. COLLINS: Well, he was the one 14 providing the information. I think I am asking -- 15 I think it's a fair line of inquiry. 16 MR. BLOCK: All right. 17 (Whereupon Exhibit No. 17 18 was marked. Said document 19 was tendered.) 20 BY MR. COLLINS: 21 Q Now, for this one -- we're looking at 22 Exhibit 17 -- the actual numbers are comparatively 23 not as much of a markup; but I want you to look. 24 You're billing SBA for \$2,700, right? Page 128
1 Q My question is why didn't you do that? 2 MR. BLOCK: Object to form. 3 THE WITNESS: Maybe I did. I don't know. 4 I don't remember. 5 MR. COLLINS: Maybe you did what? You 6 charged \$150 a day? 7 THE WITNESS: No. I'm just saying 8 maybe -- I don't know. 9 You're asking me what my motivation 10 was at that time. I don't know. I mean, it was 11 agreed upon a per day rate and that's what we 12 billed them. 13 BY MR. COLLINS: 14 Q It was a desire to maximize the money you 15 made, right? 16 A I wouldn't use that phrase. 17 Q Well, why else would you charge -- 18 A Every company -- 19 Q -- \$300 -- 20 A Every company needs to make money. 21 Q Of course. 22 A That's what we're in business for. 23 Q Of course. But when you charge \$6,000 on 24 an \$800 invoice, that's more than making money Page 127	1 (Witness reviewing.) 2 A That's what it says. 3 Q And then the demurrage charges were part 4 of the time \$100 a day and part of the time was 5 \$150 a day, right? 6 Do you see that? 7 A I do. 8 Q Now, it says MSC Container, right? 9 A Yes. 10 Q Do you know who MSC is? 11 A I do. 12 Q A steamship line, right? 13 A Yes. 14 Q So a steamship line charge is being passed 15 on, right? 16 A Yes. 17 Q So if there's a statement that none of the 18 demurrage charged in this case was related to 19 charges assessed by VOCCs or steamship line, that 20 would be incorrect, correct? 21 MR. BLOCK: Object to form. 22 THE WITNESS: I'm sure they were paid 23 somewhere down the chain by somebody. In this case 24 it looks like it was Freight Tech. Page 129

1 BY MR. COLLINS:
2 Q Right. So it looks like --
3 But this is a steamship line demurrage
4 charge that's being assessed, right?
5 A That's what it says.
6 Q Okay.
7 (Whereupon Exhibit No. 18
8 was marked. Said document
9 was tendered.)
10 BY MR. COLLINS:
11 Q Okay. We're looking at what we've marked
12 as Exhibit 18. It appears here that SBA charged
13 CMI \$8,400?
14 (Witness reviewing.)
15 A Yes.
16 Q And that's for Container Demurrage. And
17 then there's a separate charge for ocean freight.
18 But if you look at the bill from
19 Freight Tech, it appears that the total charged for
20 demurrage for the MSC containers was \$140 a day and
21 then \$170 a day.
22 Do you see that?
23 A I do.
24 Q And then the total amount charged was, if

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1 you --
2 Let me ask you before I get to that:
3 Pre Pull, would you put that in the Demurrage or
4 another category?
5 A No. That would go under -- that would be
6 included in the original invoice.
7 Q In the freight?
8 A Yeah.
9 Q Okay. So we shouldn't subtract that
10 amount.
11 Okay. So let's subtract 125, 133,
12 350. I'll just say 600.
13 So that would be about \$2,900 in
14 demurrage, and you charged CMI \$8,400?
15 A Correct.
16 (Whereupon Exhibit No. 19
17 was marked. Said document
18 was tendered.)
19 BY MR. COLLINS:
20 Q Looking at what we've marked as Exhibit
21 19, Container Demurrage charge of \$12,250.
22 Do you see that?
23 (Witness reviewing.)
24 A Yes.

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1 Q And then the actual demurrage that was
2 charged by MSC is \$8,330?
3 A Yes.
4 Q And then the yard storage \$1,200, and you
5 charged here storage at rail a \$100.
6 What's the storage at rail charge?
7 A I'm not sure. I would say it was probably
8 one or two days where before we pulled the
9 container that they charged us for storage at the
10 rail ramp.
11 Q So if there was a charge for the rail
12 storage, that would be broken out separately it
13 appears?
14 A Yes. That's what it looks like.
15 Q So it looks like this charge is all
16 ocean -- the demurrage charge at least is ocean
17 container storage, right?
18 (Witness reviewing.)
19 When we refer to demurrage?
20 A According to this, yes.
21 Q And the bill was --
22 You subtract some of those. It's
23 actually less than -- slightly less than \$10,000,
24 and then you billed \$12,250?

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1 A We stayed consistent.
2 Q What's that? I'm sorry?
3 A We stayed consistent.
4 Q So that's not as much of a markup is it?
5 A Is that a question?
6 Q Well, do you agree or not?
7 (Pause.)
8 It's a lot closer to 20 percent than
9 the other ones we've --
10 A Yes.
11 Q -- been looking at, right?
12 (Whereupon Exhibit No. 20
13 was marked. Said document
14 was tendered.)
15 BY MR. COLLINS:
16 Q Here you billed -- I'm looking at Exhibit
17 20. You billed CMI for \$14,100 in demurrage?
18 (Witness reviewing.)
19 A Yes.
20 Q And the actual demurrage charge there was
21 \$6,125, plus \$1,200 in yard storage, right?
22 A Yes.
23 Q So if we subtract out the charges
24 unrelated to demurrage, it's in the 8,000s, and you

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1 charged \$14,100, correct?
2 A Yes.
3 Q Again, well in excess of 20 percent?
4 A Yes.
5 Q Do you remember having at one point issued
6 a...
7 (Whereupon Exhibit No. 21
8 was marked. Said document
9 was tendered.)
10 BY MR. COLLINS:
11 Q Do you remember we had a prior invoice
12 that was referencing -- and I can't remember -- you
13 said "Well, whatever it said, it said it was for
14 air freight; but, in fact, it was for demurrage."
15 But in fact it was incorrect because there wouldn't
16 have been two air freight charges assessed, right?
17 A Yes.
18 Q And you said well, you're sure there was a
19 basis for it?
20 A Yes.
21 Q Well, looking at this, this looks like an
22 e-mail for -- Diana Alvarado sends an invoice to Ed
23 Zasada and you, among others, and says "On the
24 invoice under the description of Air Freight, this

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1 shouldn't be air freight if this is demurrage,
2 which we think it is. Please confirm to us if it
3 was just a mistake and what this cost corresponded
4 to?"
5 A Yes.
6 Q And Ed responded "Air Freight is
7 incorrect. This invoice is for demurrage."
8 Do you see that?
9 A Yeah, I do.
10 Q Did you view it as CMI's obligation to
11 review your invoices and correct all the mistakes
12 and try and figure out what exactly the reason you
13 were billing them for air freight when it was in
14 fact demurrage?
15 A No. We didn't know the mistakes were
16 happening until this was brought to our attention
17 it looks like here.
18 Q Did you credit that amount or what did you
19 do? How did you handle that?
20 MR. BLOCK: Object to form.
21 THE WITNESS: How did I handle it?
22 MR. COLLINS: Or did anybody --
23 How did SBA handle it?
24 MR. BLOCK: Object to form.

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1 THE WITNESS: I don't know.
2 BY MR. COLLINS:
3 Q Did you ever tell CMI that you were using
4 LAS Freight as an NVOCC?
5 A No.
6 Q Why not?
7 A Because I wasn't --
8 I may have. Actually, I take that
9 back. I'm not sure about that. There really
10 wouldn't be a reason why I wouldn't if they asked.
11 Q If they asked?
12 A Yeah.
13 Q How would they ask? How would they know?
14 A I don't know. You asked me if they knew
15 or not. I can't say if they did or not.
16 Q Was it normally not --
17 A The vendors knew.
18 Q Right. But I'm talking about -- I'm not
19 talking about the vendors. I'm talking about CMI.
20 How would CMI know how the goods were
21 being transported?
22 A What mode or...
23 Q What mode or entity or person? Company?
24 A I would have passed over the documents

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1 from either the supplier or the co-loader to them.
2 Forwarded the, you know, commercial invoice,
3 packing list, the schedule.
4 Q Well, I guess, how would they have known
5 you were using LAS Freight as the NVO for these
6 shipments?
7 A How would they know?
8 Q How would CMI know?
9 A I don't know. They could have asked.
10 Q But you didn't disclose that to them. You
11 really didn't want them to know.
12 You wanted them to assume that you
13 were handling it, right?
14 A Not necessarily. If they asked, I may
15 have told them. I mean, because their vendors knew
16 anyway. So it wasn't like it was a secret.
17 Q But when they asked what's your -- you
18 know, when you were comparing the CMI -- the UTI
19 tariff to what you referred to as the SBA tariff,
20 did you ever think about maybe you should show them
21 the LAS Freight tariff since they were your partner
22 and they were actually the ones who were acting as
23 the NVO?
24 MR. BLOCK: Object to form.

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1 THE WITNESS: They asked me to complete 2 that spreadsheet so that they could compare the 3 cost with UTI. 4 BY MR. COLLINS: 5 Q And that cost reflected the markup that 6 you and LAS Freight were sharing, right? 7 A No. 8 Q It didn't? What was it based on? 9 A It was based on our markup and what we 10 paid. LAS Freight, its freight was collect. 11 Q When you got business you marked it up and 12 you shared with them for the freight charges didn't 13 you? 14 A No. We -- what's the word? 15 No. The freight was completely 16 collect. 17 Q Well, as you said before, you're in the 18 business of making money? 19 A Yeah. 20 Q So you marked up the freight charges, 21 right? 22 A Yeah. We did. 23 Q And you split those with LAS Freight, 24 right? Page 138	1 vendor, and they did the work with the vendor in 2 China. You know, we provided the leads, so they 3 gave us some... 4 Q Well, this is -- this isn't the freight 5 charge? This isn't for new business that's 6 shipping from Shanghai on behalf of Polywel? 7 A Yeah, but this \$200 here isn't related to 8 the ocean freight. It's a profit they're making 9 for dealing with their origin fees, as far as I 10 understood it. And this amount, you know, on the 11 top here, \$3,380, was an ocean charge that was 12 billed collect. 13 Q Well, why would you not mark up the 14 freight charges? 15 A Well, we did when we billed CMI. 16 Q How much did you mark up CMI's freight 17 charges? 18 A Well, depending on what we needed to do to 19 stay in line with other companies were offering. 20 Q Well, was it -- 21 A But preferably we like to do 20 percent. 22 Q So you would have been marking up the 23 freight charges as well? In addition to this 20 24 percent markup on the -- Page 140
1 A No. 2 Q You didn't? 3 A No. 4 (Whereupon Exhibit No. 22 5 was marked. Said document 6 was tendered.) 7 BY MR. COLLINS: 8 Q If you look at what we're referring to as 9 Exhibit 22, this is communications between you and 10 LAS Freight, right? 11 (Witness reviewing.) 12 A Yes. 13 Q And if you look at the last page there, 14 Radiant002030. It's a bill of lading -- I mean, 15 the Bates number? 16 A Um-hmm. 17 Q And it says "Hello Bryan, Reattached new 18 booking request." And then it says, if you look 19 under 1) "Will mark up our mutual profit of USD as 20 usual accordingly?" 21 A That was what we shared for the services 22 they charged the vendor in China. 23 Q Well -- 24 A They, obviously, did some work with the Page 139	1 A Yes. 2 Q -- other charges, the freight is not the 3 actual amount reflected in the tariff? 4 A Yes. It was not a tariff. It was just 5 our rate sheet. 6 Q No, I understand. Well, under the 7 underlying steamship line as a tariff. You 8 understand that, right? 9 A I do. But we don't have that. 10 Q So you just charge -- 11 You're not bound by that? 12 A No. 13 Q Is there anywhere that you're aware of 14 that in LAS Freight's bill of lading or tariff, or 15 anybody -- any other entities' provision that 16 allowed you to mark up the freight charges? 17 MR. BLOCK: Object to form. 18 THE WITNESS: I have no idea. 19 BY MR. COLLINS: 20 Q You don't know whether you're entitled to 21 do it or not? Is that what you're saying? 22 A I believe we are. 23 Q Okay. Is the 20 percent markup on the 24 freight sort of like the 20 percent markup on Page 141

1 the --
2 A It's a guideline. We're supposed to do at
3 least 20 percent.
4 Q At least 20 percent?
5 A Yes.
6 Q So presumably that was actually above 20
7 percent, right? And if that's your minimum?
8 A We're supposed to. Yes.
9 Q But this looks like --
10 This is a new booking, right?
11 (Witness reviewing.)
12 A That's what it says.
13 Q So the booking would have been the
14 shipment of the cargo from China to the U.S.,
15 right?
16 A Yes.
17 Q So when you say --
18 That's what the markup is on, right?
19 The new booking, right?
20 A No. I don't believe so. I think they're
21 saying they're making a booking. This is what it's
22 going to cost. And, by the way, you know, we each
23 get a \$100 for the FOB charges they collected from
24 the vendor.

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1 Q Well, that's the freight charges they're
2 charging, right?
3 A No. The freight charges were collect.
4 They weren't paid by LAS. They were paid by us.
5 Q So you're saying you don't think -- you
6 think this mutual profit that they're talking about
7 is for transportation services in China, not for --
8 A Yes.
9 Q So you were splitting it out with them as
10 well? You were both making money on the freight
11 charges, right?
12 A I don't know on their end. I just know,
13 you know, the amount -- this was the amount that we
14 would have to pay and we did.
15 MR. BLOCK: Getting hungry?
16 MR. COLLINS: Yes. One second.
17 (Whereupon Exhibit No. 23
18 was marked. Said document
19 was tendered.)
20 BY MR. COLLINS:
21 Q This is again communications between you
22 and Erwin Hsu. Is that how you pronounce that?
23 A Sure.
24 Q Sure or --

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1 A I don't know.
2 Q You never called him by his last name?
3 A No.
4 Q Who is he?
5 A He works for LAS.
6 Q Do you still do business with LAS?
7 A We do not.
8 Q Why not?
9 A There are other agents that Radiant has
10 provided for us.
11 Q Oh, Radiant had their own agent?
12 A Yes.
13 Q So when did you stop doing business with
14 LAS?
15 A A year and a half ago, two years.
16 Q Did you have any communication with them
17 about this lawsuit?
18 A There were a few e-mails.
19 Q What was the nature of those?
20 A "We got this. What is it?"
21 Q And what did you tell them?
22 A Just at the time I said, you know, "Yeah,
23 the attorneys are working on it." Something to
24 that nature.

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1 Q Did you tell them the case settled?
2 A I think I might have said something like
3 that, but I was incorrect.
4 Q What would that representation have been
5 based on?
6 A Well, I didn't think I was representing
7 anybody. I think I just misunderstood what I had
8 been told. I thought I heard it was going to
9 settle or they were settling.
10 Q So did you go back to them and say "I made
11 a mistake. It actually didn't settle"?
12 A No.
13 Q You just felt like you didn't need to
14 correct them?
15 A I -- no.
16 Q Did you not want them in this case?
17 A I have no opinion on that.
18 Q I'm sorry?
19 A I have no opinion on that.
20 Q Did anybody tell you to send that e-mail
21 to them saying that the case had settled?
22 A No. I just -- you know, I'm not an
23 attorney.
24 Q I understand you're not an attorney, but

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1 you did write -- 2 A I was -- 3 Q I'm sorry. Go ahead. 4 A I was just corresponding to what I thought 5 was happening at the time. You know, I didn't -- 6 there's no other way to explain it really. 7 Q If you look at Exhibit 23 right in front 8 of you. We got a little distracted there. You're 9 talking to Erwin and you're saying "Based on 10 \$3,230, sell rate is \$3,430," correct? 11 Do you see that down at the bottom? 12 (Witness reviewing.) 13 A I do. 14 Q What does that mean? 15 A I don't know. 16 (Witness reviewing.) 17 I think he was just -- yeah, the \$200 18 that we would share for the FOB charges, I guess 19 that would be that. 20 Q But that's based on the -- the \$3,230 is 21 the freight charges, right? And then the sell rate 22 that's your \$200 profit and markup? 23 A No. Actually, I take that back. 24 Actually, I think that is what we would owe them Page 146	1 companies. 2 Q So you think you didn't mark it up more 3 than 20 percent -- 4 A I don't remember. I don't remember, sir. 5 I really don't. We would have tried to. Yes. 6 MR. COLLINS: All right. Why don't we 7 take a break. 8 MR. BLOCK: Okay. 9 (Whereupon a recess 10 was taken.) 11 BY MR. COLLINS: 12 Q Mr. Tincher, did you deal directly with 13 steamship lines regarding this CMI shipment at 14 issue? 15 A No. 16 Q Ever? 17 A No. 18 Q Did anyone from SBA? 19 A No. 20 Q Did you ever represent that you did? 21 A No. 22 Q So you never said that you had been in 23 communication with the steamship line? 24 A I may have said that, but it wasn't true. Page 148
1 after we paid the freight cost for their services. 2 You know, for handling, you know, the export 3 declaration and stuff like that. Now that I see 4 these two together. 5 Basically what we're seeing is that 6 \$3,230 would be the freight charge we would have to 7 pay, and then add \$200 to that, that we would owe 8 LAS. 9 Q And what would you pay -- 10 A So we would pay LAS \$200, and then we 11 would pay whoever the co-loader's agent was in the 12 U.S. for the freight when it arrived here. 13 Q And what would you bill -- 14 Say, it was \$3,230, what would you 15 bill CMI for that freight? 16 A I don't remember. You know, we would add 17 20 percent. Maybe it was less, you know. 18 Q But more often it was more -- 19 A No. Not for ocean freight. 20 Q Why did you feel like you didn't want to 21 mark up ocean freight as much as you marked up 22 demurrage? 23 A We were just trying to be -- you know, 24 trying to stay within the same ballpark as other Page 147	1 I mean, and not that I was lying either. But 2 usually through their co-loaders or LAS' agents, or 3 the co-loaders' agents I should say in the USA. I 4 assumed they were dealing with the steamship line. 5 Q Well, you said you said you were, but 6 weren't meaning to be deceptive? I'm not sure what 7 you mean by that? 8 A Simplification. Instead of saying "I'm 9 dealing with this person, this company is dealing 10 with this company up along the chain," I think I 11 just kept it as simply -- yeah, I was communicating 12 with companies that were communicating with 13 steamship lines. 14 Q Okay. What companies were you 15 communicating with? 16 A In most cases it was the co-loader. 17 Q And who was the co-loader? 18 A There were several. Off the top of my 19 head, one was Anchor Logistics (phonetic). That's 20 really the only one I can remember, but there were 21 several. 22 Q Were they in China or here? 23 A Here. 24 Q So did you have any communications other Page 149

1 than with LAS Freight for a Chinese transportation
2 provider?
3 A No.
4 (Whereupon Exhibit No. 24
5 was marked.)
6 BY MR. COLLINS:
7 Q Let me show you what we've marked as
8 Exhibit 24.
9 (Document tendered.)
10 And this is an e-mail from Mr. Zasada.
11 With regards to you, you're cc'd on the e-mail
12 below; but let me ask you if you're familiar with
13 this?
14 Mr. Zasada is saying that "It's a
15 spreadsheet showing containers where we were able
16 to save CMI money on the demurrage."
17 Do you know what containers SBA was
18 able to save CMI money on demurrage?
19 A Specifically, no.
20 Q Well, it says you pleaded with the various
21 steamship lines for any help with the charges
22 and --
23 A I did.
24 Q I'm sorry. I just want to finish reading.

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1 And you had some success.
2 So what steamship lines did you plead
3 with?
4 A Not any directly. No. I was pleading
5 with or dealing with the -- I assume using the
6 correct term "co-loaders"?
7 Q That's fine.
8 A They in turn were, I'm assuming, dealing
9 with or pleading with or communicating with the
10 steamship lines.
11 Q So you understood that the demurrage
12 charges at issue were related to the steamship
13 lines?
14 A Yes.
15 Q And so they were in a position to forgive
16 or waive any demurrage charges that might be
17 asserted?
18 MR. BLOCK: Object to form.
19 THE WITNESS: Again, I wasn't dealing
20 directly with them. So the companies that I was
21 dealing directly with would possibly talk to the
22 steamship lines about getting a discount or
23 something.
24 BY MR. COLLINS:

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1 Q So they were talking to steamship lines
2 about getting discounts?
3 A Possibly. I don't know factually for
4 sure.
5 Q Well, presumably you were talking to NVOs
6 or the co-loaders in the United States?
7 A Yes.
8 Q And those were the ones who had provided
9 ocean transportation?
10 A Yes.
11 Q Those weren't -- that wasn't a drayage
12 company you were --
13 A No.
14 Q -- talking about?
15 A No.
16 Q So these weren't land-based demurrage
17 charges?
18 A Correct.
19 Q It was all ocean related?
20 A Not all of them. Just in some particular
21 files there was. On the West Coast.
22 Q Well, the demurrage charges were ocean
23 based weren't they?
24 A On most of the files they were -- I

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1 suppose some of it was, yes. But also there was
2 others that --
3 You know, as we've seen through these,
4 there was storage, there was chassis, rental fees,
5 and stuff like that.
6 Q But when you said demurrage, that was the
7 ocean part, and then the storage part was the
8 trucker's storage?
9 A No. I was lumping all of it under one
10 term with CMI.
11 Q Well, when you get a Freight Tech invoice,
12 they would distinguish between demurrage versus
13 yard storage?
14 A Yes.
15 Q So the demurrage part would have been the
16 ocean or the steamship line asserting demurrage?
17 A Or the rail company. Yes.
18 Q Well, why would you --
19 If you were trying to get discounts on
20 demurrage, you would go to the rail company rather
21 than to an NVO, right?
22 A Well, I think in this case (indicating),
23 that this was going to an NVO. Now, this was only
24 applying to a certain, you know --

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1 This doesn't apply to every single
2 shipment that CMI handled. I think this is just,
3 you know, for some specific things. So I can't
4 remember which exactly ones they were, but in this
5 case they would have gone to the co-loader.

6 **Q Do you remember what co-loader you went**
7 **to?**

8 A For this particular one, no, I do not.

9 **Q It says "Many steamship companies were**
10 **unwilling to discount their fees, however, and**
11 **complained weekly that their containers were being**
12 **held."**

13 **What steamship line was that?**

14 A I don't know. But the co-loaders were
15 complaining to me, and I assumed that they're
16 complaining to me because the owners of the
17 containers steamship lines were complaining to
18 them.

19 **Q Why didn't you tell CMI that the issue**
20 **wasn't with the steamship line? It was with --**

21 A I was just -- I was just trying to keep it
22 simple.

23 (Whereupon Exhibit No. 25
24 was marked. Said document

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1 A I don't know if they were specifically,
2 but they had advised that that action could be
3 taken?

4 **Q But again you chose -- SBA chose not to**
5 **inform CMI that you had actually had no**
6 **communications with the steamship line?**

7 A In my mind I was through their agents.
8 You know, through the co-loaders.

9 **Q You thought the co-loaders were a**
10 **steamship line?**

11 A No, I did not. I thought they were the
12 agent or the NVOCC. So they were in communication
13 with the steamship line.

14 **Q Well, if we go back two pages before**
15 **that -- or one page. Now you're writing to Maria**
16 **Vega?**

17 A Um-hmm.

18 **Q And you said you're demanding payment for**
19 **the demurrage, right?**

20 A I'm demanding payment? Where do you see
21 that?

22 **Q Well, you're requesting payment. You want**
23 **to get paid demurrage. "We paid demurrage up to**
24 **June 18"?**

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1 was tendered.)
2 (Witness reviewing.)

3 BY MR. COLLINS:

4 **Q You can start with the back there, if you**
5 **don't mind. You can take as much time as you want**
6 **to look at it, but it's your writing to Maria, and**
7 **that's Maria Vega, and you're saying that you**
8 **had -- excuse me, I'm sorry. That was Ed writing,**
9 **not you. But he's describing what you told him,**
10 **that you wanted to -- or "hoping to return the two**
11 **highlighted containers below to China, and that you**
12 **had advised SBA had to pay the demurrage to date on**
13 **all three containers because the steamship line was**
14 **going to confiscate and put a lien on them."**

15 **Do you see that?**

16 A I do.

17 **Q What steamship line was going to**
18 **confiscate --**

19 A I don't remember. Because again it was
20 through a co-loader.

21 **Q Was the co-loader going to confiscate the**
22 **containers or --**

23 A I don't --

24 **Q -- was the steamship --**

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1 A Yes.

2 **Q Now, that represents that that is -- you**
3 **paid demurrage up to June 18, and that is what they**
4 **are being billed for? The demurrage that you paid,**
5 **right?**

6 A Yes.

7 **Q It doesn't reference -- that's a straight**
8 **pass through you're referencing. No markup there.**
9 **So that's what you paid, right?**

10 A No. That's probably not true. I'm sure
11 we used our \$300 per day.

12 **Q But you didn't tell them that. You**
13 **actually said "This is what we were" -- "You are**
14 **billed for what we paid," right?**

15 MR. BLOCK: Object to form.

16 THE WITNESS: This is on the second page.
17 "We paid up to this date, and this is what you were
18 billed for."

19 BY MR. COLLINS:

20 **Q So you're representing --**

21 A No. I don't think I was representing. I
22 don't think I was -- that is not what this was
23 meant. She was billed once up to this date, and
24 then there would be a second bill from that date

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40 (Pages 154 to 157)

1 forward. 2 Q But it says "You're being billed" -- 3 They are being billed for what you 4 paid, right? 5 A This section here (indicating)? 6 Q Yeah. 7 A "We paid demurrage up to June 18, and this 8 is what you are billed for. You are billed for 9 demurrage up to that date." 10 Q That you paid? 11 A Yeah. We paid. 12 Q You paid it and then you're just saying 13 "We paid it. You need to pay us for it"? 14 A Yes. 15 Q That's a straight pass through what you're 16 referring to there. It's not -- 17 A No. 18 Q -- talking about a markup is it? 19 A I don't think that's what it indicates. 20 No. There's nothing in there about marking up or 21 not marking up. 22 Q I agree there's nothing about marking up. 23 A Or not marking up either. 24 Q Well, it says it's what you paid, and you Page 158	1 and the additional 18,900 amount that you say is 2 added to his amount? We don't understand how that 3 could be if there were only 12 days from the date 4 of his last e-mail to me. How is that possible?" 5 Do you remember that? 6 A Not really, but I think I know what she's 7 referring. It goes back to the previous e-mail 8 here on the second page, I believe. We paid and we 9 billed up to a certain date, which looks like it 10 was June 18, and then the containers were not 11 returned still. 12 So there was another bill from that 13 date onward until it was returned on -- she was 14 referring to either the first set of dates or the 15 second. I can't tell from -- 16 Q Well, her concern was it looks like you 17 were billing her for \$18,900 for only 12 days of 18 demurrage, right? 19 A I don't believe that was the case. She 20 was just taking -- I don't know -- I don't have the 21 dates in front of me of when the container actually 22 arrived, but it was more than 12 days. 23 Q So you think you were right and she was 24 wrong? Page 160
1 want them to pay -- 2 A That's referring to -- 3 Q -- what you paid? 4 A That's referring to what we paid. That's 5 referring to the dates. "You paid up to this 6 date." 7 Q Now, do you remember Maria in this 8 communication talking about -- 9 Well, first, you say "You need the 10 containers emptied by Thursday or the steamship 11 line will take action"? 12 A Okay. 13 Q Do you remember that? 14 A I do. 15 Q And, again, what steamship line was going 16 to take -- 17 A I don't know. 18 Q -- this action? 19 A I do not know. I was communicating with a 20 co-loader. 21 Q And which co-loader? 22 A I don't remember. 23 Q Looking at the first page there, it says 24 "Were you able to talk to Ed about his last e-mail Page 159	1 A Yes. 2 Q Okay. And so if you answered in discovery 3 your justification for paying -- charging for 21 4 days instead of 12, then the company was mistaken? 5 A Well, let me look at this. 6 There was three containers involved in 7 this. I remember now. 8 I take that back. She was asking 9 about -- I think she was asking about one 10 container. There were three containers involved. 11 So it was \$300 times three times the days. 12 Q So nine times how many? So you billed 9 13 times 21 times 3; is that right? 14 A That sounds right. 15 Q And you think that was right? 16 A Yes. 17 Q Well, I notice that in fact you don't even 18 address her issue that there's a discrepancy on the 19 days. You just say "Please send the credit card 20 payment. Denise is leaving soon." 21 You don't explain that it's 22 actually -- the number of days is correct. You 23 just demand payment, right? 24 A There may have been communication Page 161

1 between -- this looks like it was almost 24 hours 2 between that. So there may have been some 3 communication maybe on the phone. I'm not sure. 4 Except for e-mails. 5 Q Do you ever -- 6 Do you know whether you ever addressed 7 her concerns? 8 A I think I did because she was calculating 9 for one container, and there were three. 10 Q So that's your explanation? 11 A Yes. I believe so. 12 (Whereupon Exhibit No. 26 13 was marked. Said document 14 was tendered.) 15 BY MR. COLLINS: 16 Q Turn to Interrogatory No. 35? 17 (Witness complies.) 18 It says "In the correspondence 19 attached hereto, Bryan Tincher told CMI that it 20 needed to pay SBA Global Logistics for \$18,900 for 21 twelve days of demurrage and \$65,000 (sic) for past 22 invoices. Identify how Global Logistics (sic) 23 determined the amount owed for twelve days of 24 demurrage and the amount owed for past due Page 162	1 A Because I believe there was more 2 communication between this e-mail and the following 3 day. 4 Q Okay. Actually, you're right. Let me 5 show it to you. 6 (Whereupon Exhibit No. 27 7 was marked. Said document 8 was tendered.) 9 BY MR. COLLINS: 10 Q In looking at what we've marked as Exhibit 11 27, Maria follows up: "Okay, were you able to talk 12 to Ed about his last e-mail and the additional 13 18,000 amount that you say is added to his amount? 14 We still don't understand how that could be if 15 there were only 12 days from the date of his last 16 e-mail to me. How is that possible?" 17 And what's your response? 18 A You want me to read it? 19 Q Yes, please. 20 A "The SS Line is pushing me for 21 instructions today. So I need to know if you will 22 wire money and I can arrange delivery directly to 23 Dynamex or do I need to send them to my warehouse 24 to be unloaded. I need to know soon how to Page 164
1 invoices." 2 And it seems that there was a 3 scrivener's error resulting in that you said the 4 number was incorrect? 5 A Yeah. It was 21 days as opposed to 12. 6 Q Did you ever go back -- 7 You're saying you don't remember ever 8 going back to them for -- 9 A No. I didn't say that. I'm sure -- 10 Q I asked you did you remember? Do you? 11 A No. But I'm sure we discussed it. 12 Q Who is Denise? When you say -- 13 If you look at the previous exhibit, 14 it says "Just go ahead and pay. Denise is leaving 15 soon"? 16 A She was -- I believe she was in the 17 Accounts Receivables Department of Service By Air. 18 Q So you instructed them to go ahead and pay 19 before she left work rather than addressing what 20 the differences in the billing was? 21 A It appears that way. 22 Q Did you -- 23 A I think that's taken out of context. 24 Q Why is it taken out of context? Page 163	1 proceed. This will get very serious. Also I need 2 to know when we can expect telex release for the 3 final container." 4 Q So you again didn't respond to her 5 question did you? 6 A Not in this e-mail. That doesn't mean I 7 didn't. 8 Q Well, you said -- 9 It's an e-mail that she sent on July 10 7th, and then shortly thereafter you answer and say 11 "You need to pay us," right? 12 A Okay. 13 Q There's no explanation. 14 Just, essentially, is it accurate to 15 say that CMI's job was to pay your bills and not 16 ask questions? 17 A I don't think that's accurate. 18 Q And what steamship line was pushing you 19 for instructions? 20 A Again this would have been one of the 21 co-loaders. 22 Q You had a uniform policy of always just 23 saying the steamship line? 24 A Yes. Page 165

1 Q Never referencing anyone else? 2 A Yes. 3 Q And that was to hide the fact that there 4 were other entities involved? 5 A No. I don't say it was to hide. I would 6 say it was more to keep it simplistically in 7 communication. 8 Q Was it that difficult to say -- 9 A Yes. 10 Q -- a co-loader involved that needs to -- 11 who wants to get paid? 12 A It wasn't difficult on my side, from my 13 point of view, but I wanted to keep communication 14 simple with CMI. 15 (Whereupon Exhibit No. 28 16 was marked. Said document 17 was tendered.) 18 BY MR. COLLINS: 19 Q Again here's another e-mail, March 12th, 20 from you to Maria saying "Can you let me know when 21 a particular container will be released. It's been 22 in demurrage since November and the steamship line 23 is giving me difficult time." 24 What steamship line is that? Page 166	1 and Mike Gallo. 2 Who is Mike Gallo? 3 A I believe he's the owner of CMI. 4 Q And here you're referring to a container, 5 and it says "We are still stripping it and we're 6 awaiting payment for some overdue invoices." 7 A Okay. 8 Q So you're stripping the containers because 9 you haven't been paid on some other demurrage 10 charges for other containers? 11 A Yes. 12 Q Okay. Nothing to do with this particular 13 container? 14 A No. 15 Q And you say "I will have payment to you 16 today. What is stripping it mean?" 17 So he hadn't told you to strip it. 18 You decided "I'm going to strip" -- 19 A Well, I told him -- I communicated that to 20 him. 21 Q Because he doesn't even know what 22 stripping means does he? 23 A Not according to this e-mail. 24 Q So he didn't ask you to strip it. You Page 168
1 A I don't know. 2 Q And that was sure that there was no 3 steamship line giving you a difficult time was it? 4 Because you didn't have any communication with the 5 steamship line? 6 A That is correct. I was communicating with 7 the co-loader. 8 Q But you don't know who it was? 9 A I'm sure I can provide that with some 10 research, but I don't know it off the top of my 11 head. 12 Q Well, if you can provide that, that would 13 be great? 14 A (Inaudible). 15 Q Um? 16 A I don't remember. So I would have to look 17 it up. 18 Q Well, if you could look it up and provide 19 it, that would be great. 20 (Whereupon Exhibit No. 29 21 was marked. Said document 22 was tendered.) 23 BY MR. COLLINS: 24 Q Okay. This is communication between you Page 167	1 decided to strip it? 2 A Correct. 3 Q I thought you said before that you would 4 only strip it if you were instructed -- 5 A No. In this case -- in this case -- 6 It's explained up here I believe in my 7 e-mail. This was a specific case. 8 Q So what steamship line wouldn't let you 9 keep the container longer than five days? 10 A I don't remember which line. 11 Q And you say you are going to store the 12 cargo in your warehouse in Newark so you can return 13 the container, right? 14 A Yes. 15 Q Now, where is SBA's warehouse in Newark? 16 A In this case it would have been -- it 17 wouldn't have been SBA's warehouse. It was the 18 drayage company. 19 Q But you didn't say that, right? 20 A No. 21 Q You didn't tell them that it was the 22 drayage company? 23 A I didn't. 24 Q You represented that it was SBA's Page 169

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1 warehouse? 2 A They worked for me. 3 Q Well, I'm sure it worked for you -- 4 A No. They worked for me. So... 5 Q Oh, they worked for you. Okay. 6 It seems to me there's a pattern here. 7 You really don't just reveal who you're dealing 8 with in these transactions do you? 9 A No. I don't think it's necessary to do 10 so. They never ask. 11 Q Okay. When you refused to release the 12 containers until you got the big payment, there 13 were at least six containers that you wouldn't 14 release until you got a significant payment from 15 SBA -- I mean from CMI, right? 16 A I think that's correct. Yes. 17 Q Okay. And who were you acting on behalf 18 of when you refused to release those containers? 19 A I had instructions from Management at the 20 Corporate level. 21 Q But you were acting for SBA. You weren't 22 acting for any -- 23 Were you acting for a steamship line? 24 A No. Page 170	1 BEFORE THE 2 FEDERAL MARITIME COMMISSION 3 CMI DISTRIBUTION, INC.,) 4) 5 COMPLAINANT,) 6) DOCKET NO. 17-05 7 vs.) 8) 9 SERVICE BY AIR, INC., RADIANT) 10 CUSTOMS SERVICES INC.,) 11 (FORMERLY KNOWN AS SBA) 12 CONSOLIDATORS, INC.) and) 13 LAS FREIGHT SYSTEM LTD.,) 14) 15 RESPONDENTS.) 16 I, BRYAN TINCHER, state that I have 17 read the foregoing transcript of the testimony 18 given by me at my deposition on the 1st day 19 of March 2018, and that said transcript 20 constitutes a true and correct record of the 21 testimony given by me at said deposition 22 except as I have so indicated on the errata 23 24 Page 172
1 Q Were you asserting a lien on behalf of a 2 steamship line? 3 A No. 4 Q Were you asserting a lien on behalf of a 5 drayage company? 6 A No. 7 Q You were just solely acting on behalf of 8 SBA? 9 A Yes. 10 MR. COLLINS: Give me one second just to 11 make sure I'm finished. 12 (Counsel reviewing.) 13 MR. COLLINS: I think we're done. 14 MR. BLOCK: Okay. We'll reserve 15 signature. 16 MR. COLLINS: Thanks. 17 (Whereupon at 1:52 p.m., 18 the signature of the witness. 19 having been reserved, the 20 deposition was concluded.) 21 22 23 24 Page 171	1 sheets provided herein. 2 3 4 _____ 5 BRYAN TINCHER 6 7 No corrections (Please initial) _____ 8 Number of errata sheets submitted _____ (pgs) 9 10 SUBSCRIBED AND SWORN TO 11 before me this ____ day 12 of _____ 2018. 13 14 15 16 17 18 19 20 21 22 23 24 Page 173

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Bryan Tinch
March 1, 2018

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EXHIBIT C

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BEFORE THE
FEDERAL MARITIME COMMISSION

CMI DISTRIBUTION, INC.,)
)
COMPLAINANT,)
) DOCKET NO. 17-05
vs.)
)
SERVICE BY AIR, INC., RADIANT)
CUSTOMS SERVICES INC.,)
(FORMERLY KNOWN AS SBA)
CONSOLIDATORS, INC.) and)
LAS FREIGHT SYSTEM LTD.,)
)
RESPONDENTS.)

The 30(b)(6) discovery deposition of
SERVICE BY AIR, INC., by and through its Corporate
designee, EDWARD ZASADA, called by the Complainant
for examination, taken pursuant to notice,
agreement, and by the provisions of the Federal
Maritime Commission, taken at Polsinelli,
150 North Riverside Plaza, Suite 3000, Chicago,
Illinois 60606, on March 1, 2018, at 1:57 p.m.

ATKINSON-BAKER, INC.

COURT REPORTERS

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REPORTED BY: PATRICIA D. SMITH, CSR NO. 084-004431

FILE NO: AC02291

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1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 A P P E A R A N C E S Mr. Brendan Collins GKG LAW 1055 Thomas Jefferson Street NW - Suite 500 Washington, DC 20007 TEL: (202) 342-6793 EMAIL: bcollins@gkglaw.com on behalf of the Complainant. Mr. Steven W. Block FOSTER PEPPER PLLC 1111 Third Avenue - Suite 3000 Seattle, Washington 98101 TEL: (206) 447-7273 EMAIL: steve.block@foster.com on behalf of the Respondents. Page 2	1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 (Witness duly sworn.) MR. COLLINS: Mr. Zasada, my name is Brendan Collins. As I think you know, I'm counsel for CMI. I understand this is a 30(b)(6) deposition? THE WITNESS: Correct. MR. COLLINS: Are you familiar with -- do you know what that means? THE WITNESS: In general terms, as explained by counsel. MR. COLLINS: Okay. You're testifying not only as your personal knowledge, but as to information that the company has in response to certain topics that I identify? THE WITNESS: Correct. MR. COLLINS: Did you get a chance to review the 30(b)(6) Deposition Notice? THE WITNESS: Which one is the 30(b)(6) Notice? There's so much paperwork. MR. COLLINS: I understand. It's the Notice of Deposition where we identify these are areas of topics that we want to ask questions about? THE WITNESS: Yes, I did. Page 4
1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 I N D E X THE WITNESS EXAMINATION BY COUNSEL FOR EDWARD ZASADA COMPLAINANT RESPONDENTS By Mr. Collins 5 E X H I B I T S EXHIBIT EXHIBIT MARKED FOR NUMBER DESCRIPTION IDENTIFICATION 30 Second Affidavit of 33 Edward A. Zasada (Exhibits attached hereto.) Reserved Signature Certificate 46 Page 3	1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 MR. COLLINS: Okay. And can you address those topics? THE WITNESS: Yes, I can. MR. COLLINS: Okay. EDWARD ZASADA, having first been duly sworn, was examined and testified as follows: EXAMINATION BY MR. COLLINS: Q I'm going to try and skip the -- Actually, did you introduce yourself and your name already? I may have jumped ahead? A I did not. My name is Ed Zasada. I'll spell that for you, Z-a-s-a-d-a. Q Okay. And you heard my instructions as to depositions before? A Yes. Q So I'm not going to repeat that unless -- let me ask: Have you ever been deposed before? A I have not. Q Have you ever testified at trial or in arbitration? A No. Page 5

2 (Pages 2 to 5)

30(b)(6): Edward Zasada
March 1, 2018

1 Q Okay. 2 MR. COLLINS: All right. The same rules 3 apply. I think you probably understand the 4 process. If you don't understand the question, let 5 me know and I'll try and rephrase it for you. And 6 anytime you want a break -- I don't think we're 7 going to go that long, but if you don't understand 8 something and want to take a break, it's your show. 9 THE WITNESS: Okay. 10 BY MR. COLLINS: 11 Q Did you meet with anyone to prepare for 12 your deposition? 13 A Just with counsel. 14 Q Okay. Did you meet with Bryan Tincher? 15 A Bryan Tincher was in the room. 16 Q Okay. So the only time you met with Bryan 17 Tincher was with counsel present? 18 A Correct. 19 Q And did you meet with any other employees 20 regarding this deposition? 21 A Meet with? No. 22 Q Speak with? 23 A I spoke to Paul Keotoske (phonetic) in 24 Corporate. Page 6	1 thought were the most pertinent. 2 Q So the interrogatories and document 3 requests and documents produced in discovery? 4 A Correct. 5 Q I hope you didn't read all of those? 6 A Not possible. 7 Q Okay. Give me, if you could, a brief 8 educational background? 9 A I have a Bachelor of Science degree in 10 Business from Northern Illinois University. 11 Q Any post degree? Post-graduate degree? 12 A No post-grad. 13 Q Any post-graduate classes? 14 A No. 15 Q Okay. Can you tell me your -- 16 What year did you graduate from 17 Northern Illinois? 18 A 1986. 19 Q And give me a brief employment history 20 since then? 21 A June 1, 1987 until, oh, I think it was 22 February of '91, I was with AIT Freight Systems. 23 Formally called Air It There. And then from 24 June 1, 1991 to present, with Service By Air. Page 8
1 Q And what was the nature of that 2 discussion -- 3 Well, let me make sure. Counsel 4 wasn't present on that call was he? 5 A On some calls he was. 6 Q Do you recall any communications you had 7 where counsel was not present? 8 A Yes. 9 Q When was that? 10 A It would have been several over the course 11 of the past year. 12 Q And what would have been the nature of 13 those discussions? 14 A Questions about the lawsuit, the history 15 of our relationship with CMI. Trying to get more 16 detail of how we wanted to proceed. 17 Q All right. Did you review any documents 18 in preparation for today's deposition? 19 A Yes. 20 Q What documents? 21 A All the interrogatories that you guys sent 22 back and all the -- everything that's basically 23 been sent to me I tried to thumb through. Too many 24 pages, but I tried to zoom in on things that I Page 7	1 Lately rebranded as SBA Global Logistics, and that 2 will be 27 years on March 18th. 3 Q A long run. Go ahead? 4 A That's it. 5 Q And give me your various titles you've had 6 over the years, as best as you can recall? 7 A Sales and Sales Manager, and then Regional 8 Manager. 9 Q And you're currently Regional Manager? 10 A Correct. 11 Q And how long have you been in that 12 position? 13 A It will be seven years and five months. 14 Q Okay. And can you briefly describe what 15 your job description is as Regional Manager? 16 A Management to the SBA Chicago operations. 17 Management responsibilities, including personnel, 18 payroll. Anything to do with running the business 19 and general overseeing operations. 20 Q When did you first become aware of a 21 business relationship between SBA and CMI? 22 A In early 2014, when the sales rep came 23 into my office and said he was talking to CMI. 24 Q And was that Mike Miller? Page 9

1 A Mike Miller was his name. 2 Q Okay. And what did he tell you? 3 A Just that the company was engaged in 4 imports, both air and ocean. That the current 5 forwards they were using they weren't happy with 6 and they were looking at other options. 7 Q And what was the transportation provider 8 they were using at that time? 9 A UTI. 10 Q Okay. And UTI, were you aware that they 11 were an NVO? 12 A I was not. 13 Q Okay. Is it your understanding now that 14 they were an NVO? 15 A Yes. 16 Q Okay. And you became aware of that after 17 the litigation at issue arose or at some point 18 during the course of when you were providing 19 service for CMI? 20 A During the course of this lawsuit. 21 Q Okay. Were you aware that -- 22 You've been here for the last two 23 days, so we can maybe -- you know, I'll just 24 reference the things you may have -- that we Page 10	1 you see where it provides "During the term of this 2 NRA, transportation is subject to applicable 3 surcharges, accessorial charges, and/or GRIs 4 published in Carrier's rules tariff." 5 Do you see that? 6 (Witness reviewing.) 7 A Yes. 8 Q What Carrier's rules tariff governs SBA at 9 this time? 10 A There would be none. Everything, 11 additional notes and comments and UTI's terms and 12 conditions that came along with the form they asked 13 us to use for comparison. 14 Q Did they ask you to use these terms and 15 conditions in quoting them rates? 16 A They did not. 17 Q Was this an oversight on the part of SBA? 18 A For simplicity sake, Jay asked us to 19 "Please just use the same form, put in your 20 numbers, so I can easily take a look at them left 21 to right. Okay, they're less expensive here from 22 there. Forget about anything here." 23 Transposed our low up to here so when 24 they were side by side he would know which one was Page 12
1 discussed previously. 2 You saw what we marked as Exhibit 3, 3 what was represented as the SBA tariff that was 4 provided to CMI. 5 Were you aware that that document had 6 been provided to CMI? 7 A Yes. 8 Q When did you become aware of that? 9 A Probably very close to the day that it was 10 given. Probably within that week they would have 11 certainly shared it with me. 12 Q The actual document that referred to the 13 NRA and the Carrier's rules tariff? 14 A Is it the one where we imposed our rates 15 under the UTI rate sheet? 16 Q Yes. 17 A Yes. It was a side by side -- an e-mail 18 with a side-by-side comparison using the UTI 19 tariff. They had asked us to insert our rates into 20 their tariff so they could more easily compare 21 costs. 22 Q Okay. Maybe we should go back to that, 2 23 and 3. Actually, I'll just ask you about 3. 24 Looking at 3, down there in the Terms, Page 11	1 which. 2 Q So he specifically told you to use the 3 document that CMI's tariff -- excuse me, UTI's 4 tariff and to just keep that in your quote to them? 5 A He specifically asked us to use the 6 spreadsheet that UTI used to put their rates in and 7 then to enter our rates into that same spreadsheet. 8 Q If you look at Exhibit 2 though, it looks 9 like a different -- it doesn't look the same does 10 it? 11 (Witness reviewing.) 12 A It does not. I've noticed that when Bryan 13 was under examination, and these two (indicating) 14 do not go together. I have the actual e-mail in my 15 office, and the other sheet looks identical to this 16 (indicating). 17 Q Do you know whether we were given a copy 18 of that? 19 A It would have been in the same e-mail that 20 you received this one (indicating). 21 MR. COLLINS: We'll address that. 22 BY MR. COLLINS: 23 Q Okay. You're an employee of SBA; is that 24 right? Page 13

1 A I am not. 2 Q Who are you employed by? 3 A My company is Spirit Services. 4 Q And who is Spirit Services? 5 A Spirit Services is the SBA Chicago agency. 6 Q Of -- 7 A Of SBA. We're the agency for SBA. 8 Q Okay. But there's an agency relationship 9 with SBA as opposed to any of the other SBA 10 entities or SBA Consolidators or SBA Custom 11 Services? 12 A Only SBA. My contract is with SBA Global 13 Logistics, which was rebranded from Service By Air. 14 Q Well, Global -- has that always been the 15 case? Have you always been employed as either 16 Spirit or -- 17 When did you start working for Spirit? 18 A The same dates I gave you before. 19 Q Okay. So you've always been employed with 20 Spirit? 21 A Correct. 22 Q Okay. And as an agency of SBA? 23 A Correct. 24 Q Did SBA ever provide transportation Page 14	1 Q It can be oral or written, but there must 2 be some contract. I mean, otherwise how are the 3 parties providing -- how are you providing service 4 for them? 5 A Oral agreement. 6 Q So it's an oral agreement. Oral contract? 7 A Yes. 8 Q Okay. All right. 9 And how was this oral contract -- when 10 was it agreed upon? 11 A Early 2014, was our first shipment. So it 12 would have been somewhere in that area. 13 Q And describe, as best you can, what the 14 oral agreement was? 15 A The best way to describe it, to break it 16 down, the customer asked us to help facilitate the 17 movement of their freight from China to the United 18 States. 19 Q Did they ask you to transport goods from 20 China to the United States or did they say 21 facilitate the shipment? 22 A They never said the word "transport". 23 Q Did they ever use the word "facilitate"? 24 A No. Their intention was -- that's what Page 16
1 services for CMI Distribution? 2 MR. BLOCK: Object to form. 3 THE WITNESS: SBA acted as an agent to 4 oversee the transportation requested by CMI. 5 BY MR. COLLINS: 6 Q Who was it an agent for? 7 A Our affiliate LAS Freight. SBA 8 designated. 9 Q Where is it designated as the affiliate? 10 A Provided with a list of agents to use 11 around the world. 12 Q Okay. And are all of those designated 13 affiliates NVOs? 14 A I do not know. 15 Q You knew LAS Freight was an NVO? 16 A I personally did not know. I would have 17 relied on Bryan's expertise. 18 Q I think Bryan indicated he didn't know 19 whether they were an NVO or not? Did he? 20 A My recollection is he said he understood 21 that they were an NVO. 22 Q Okay. What was the agreement or contract 23 between CMI and SBA? 24 A There is no contract. Page 15	1 they asked me. I don't know the exact word Mike 2 would have used. 3 Q When you say "Mike", you mean Mike Miller 4 or Mike Gallo? 5 A Mike Gallo. 6 Q Okay. Did Mike Gallo know what a freight 7 forwarder was? 8 MR. BLOCK: Object to form. 9 THE WITNESS: Yes. 10 BY MR. COLLINS: 11 Q How did he know that? 12 MR. BLOCK: Object to form. 13 THE WITNESS: I explained that to him in a 14 meeting. 15 BY MR. COLLINS: 16 Q What did you explain? 17 A I explained to him the process of an 18 import, including the responsibilities of each of 19 the people involved in it. 20 Q Did you describe to him the role LAS 21 Freight would be playing? 22 A Yes. 23 Q Did you indicate that you were partners 24 with LAS Freight? Page 17

1 A That they were our affiliate.
2 **Q Did you ever use the term "partner"?**
3 A I did not.
4 **Q Did you share profits with LAS Freight?**
5 A We do not.
6 **Q How is LAS Freight -- how does their**
7 **compensation work?**
8 A It's my understanding that they mark up
9 over what they tell the shipper. What they quote
10 the shipper.
11 **Q Over what they call the shipper?**
12 A What they quote them.
13 **Q So their quote includes a markup?**
14 A Yes.
15 **Q But you provide a quote --**
16 **You provided a quote to SBA, right?**
17 A To CMI.
18 **Q Excuse me. To CMI. I'm sorry.**
19 A Yes. The rate sheet would have been the
20 rates that we were to charge them.
21 **Q And that would have included the profit**
22 **for LAS Freight?**
23 A That would have been marked up on the cost
24 that they provided us.

Page 18

1 **Q So you took the cost they provided you,**
2 **which included their markup, and then you marked up**
3 **further and passed that on to CMI?**
4 A We would have marked up the cost of what
5 it would have cost us, regardless of who it was
6 from. LAS Freight would be charging us \$3,000. We
7 would charge \$3,200.
8 **Q But that \$3,000 would include a markup**
9 **for -- before --**
10 **So, say, for example, LAS Freight is**
11 **an NVO. They have a contract with a steamship**
12 **line. It might be for \$2,800, and then they charge**
13 **\$3,000, and then you charge \$3,200?**
14 A Correct.
15 **Q Is there a reason why in the invoices you**
16 **submitted to CMI you never broke out the cost**
17 **involved with demurrage, for example?**
18 A Mostly in the operating system that we're
19 required to use there aren't options for that, for
20 breaking it out. And through the training we
21 received through Corporate, it was never stressed
22 or emphasized that there was a need to do that.
23 **Q When you say "required to use", that's an**
24 **internal requirement. That's not any FMC or**

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1 **Federal agency requirement that you not break out**
2 **your charges, right?**
3 A Correct.
4 **Q I mean, is it unusual that somebody gets**
5 **an invoice that says \$27,000 for ocean demurrage**
6 **without it specifying how many days? What their**
7 **demurrage rate is? Is that the normal course in**
8 **your experience?**
9 A Yes.
10 **Q Why?**
11 A The backup only came in the form of
12 spreadsheets prior to the invoice even going out.
13 So they knew what to expect.
14 **Q Were you aware of correspondence from CMI**
15 **frequently requesting backup to support invoices?**
16 A Restate the question?
17 **Q Were you aware that CMI frequently was**
18 **writing to SBA saying "We would like backup for**
19 **these invoices or for the charges you're**
20 **assessing"?**
21 A No.
22 **Q You didn't see that in the discovery that**
23 **was produced?**
24 A Not frequent. No.

Page 20

1 **Q Was it -- strike that.**
2 **Is it your understanding that once a**
3 **container -- cargo is removed from a container --**
4 **well, first of all, let me back up.**
5 **What's your understanding of what**
6 **demurrage is?**
7 A It's been my experience in this industry
8 that the terms of demurrage and detention in their
9 colloquial sense are very misunderstood by some
10 people in the industry as a whole.
11 It's my understanding, as far as
12 demurrage, it is a charge for a chassis and a
13 container being out of service being withheld.
14 Some people would call it detention, but that was
15 my understanding of the word "demurrage". That's
16 how I was taught.
17 **Q So what's the difference between demurrage**
18 **and detention?**
19 A Detention, that was more synonymous with
20 storage.
21 **Q Well, when Freight Tech is individually**
22 **invoicing for demurrage and storage, what is your**
23 **understanding of what they were billing for?**
24 A It's my understanding that demurrage was

Page 21

6 (Pages 18 to 21)

1 for the chassis and the box, and the detention was
2 for the storage. Sometimes they use the word
3 "detention" and sometimes storage.

4 **Q So when you say "chassis and the box," who**
5 **are they assessing that on behalf of? The**
6 **steamship line?**

7 A That was the question I asked. It's been
8 explained, the way I understand it, is it's a whole
9 pass-through. Co-loaders, steamship lines, rail
10 lines make it to the drayage company.

11 Who they pay? I would not know. I
12 would have to ask the owner of Freight Tech about
13 that.

14 **Q Well, let me ask you this: All the goods**
15 **at issue with CMI transportation was all through**
16 **what's called through bills of lading, correct?**

17 A That's my understanding.

18 **Q And what's a through bill of lading?**

19 A My understanding is that a through bill of
20 lading is from the port of discharge to the rail
21 head at the reception.

22 **Q Is it not your understanding that the**
23 **through bill of lading would not encompass actually**
24 **deliver to the location specified in the bill of**

Page 22

1 **lading itself?**

2 A That would make sense. It could be my
3 understanding of it is not complete.

4 **Q Assuming it's to the location specified in**
5 **the bill of lading itself, is it your understanding**
6 **that until the goods are actually delivered to that**
7 **location it is still considered ocean**
8 **transportation even though there's an inland**
9 **component?**

10 MR. BLOCK: Object to form.

11 THE WITNESS: Yes.

12 BY MR. COLLINS:

13 **Q So to the extent goods are being moved**
14 **from a port to the ultimate -- until they're**
15 **finally delivered to the ultimate consignee, they**
16 **would remain as ocean transportation?**

17 MR. BLOCK: Object to form.

18 THE WITNESS: Yes.

19 BY MR. COLLINS:

20 **Q So any charges that would be assessed**
21 **here, whether you call it demurrage or detention,**
22 **would be part of ocean transportation until the**
23 **goods are actually delivered to the ultimate**
24 **destination, correct?**

Page 23

1 MR. BLOCK: Object to form.

2 THE WITNESS: Yes.

3 BY MR. COLLINS:

4 **Q So that would mean --**

5 **Is it your understanding then that all**
6 **of the goods would be subject to the tariff, a**
7 **steamship line tariff, or another carrier's tariff?**

8 MR. BLOCK: Object to form.

9 THE WITNESS: I wouldn't have knowledge of
10 the steamship line's terms and conditions, and I
11 think it would vary by steamship line.

12 BY MR. COLLINS:

13 **Q But you understand that a steamship line**
14 **can only charge what's reflected in its tariff,**
15 **right?**

16 MR. BLOCK: Object to form.

17 THE WITNESS: Yes.

18 BY MR. COLLINS:

19 **Q And an NVO, such as LAS Freight, can only**
20 **charge what's reflected in its tariff. Is that**
21 **your understanding as well?**

22 MR. BLOCK: Object to form.

23 THE WITNESS: Yes.

24 BY MR. COLLINS:

Page 24

1 **Q So LAS Freight cannot, for example, mark**
2 **up demurrage unless it provides for that in its**
3 **tariff?**

4 MR. BLOCK: Object to form.

5 THE WITNESS: I don't know the legalities
6 of that.

7 BY MR. COLLINS:

8 **Q Did SBA have any direct contact with the**
9 **steamship line?**

10 A No.

11 **Q You've seen -- we've talked about some**
12 **documents, and in fact you wrote some of them,**
13 **where you're referring to "We've been in contact**
14 **with the steamship line. They're not going to**
15 **release containers or they're going to exercise a**
16 **lien unless payments are made."**

17 **Was that accurate?**

18 A I completely understand where the
19 confusion comes from. Many shippers, including
20 CMI, specifically Maria, do not understand the
21 transportation process and don't understand the
22 terms that we use on that.

23 So if we were talking to her about
24 demurrage charges or something and I were to say

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7 (Pages 22 to 25)

1 "Well, the co-loader has sent an e-mail to Brian
2 saying we need to get that box back," or something
3 like that, she would say "What? What's a
4 co-loader?"

5 She didn't understand all the
6 different parties. So for simplicity she would say
7 "You mean the steamship line?" And I went "Yeah,
8 okay, the steamship line. People with the boats,
9 they want their box back."

10 **Q Do you agree with Mr. Tincher's testimony**
11 **that none of the charges at issue in this case**
12 **arise out of a time when the containers were in the**
13 **carrier's custody or the port?**

14 MR. BLOCK: Object to form.

15 THE WITNESS: I'd ask you to restate that?

16 MR. COLLINS: Okay.

17 BY MR. COLLINS:

18 **Q I asked Mr. Tincher a question about did**
19 **he understand that none of the charges at issue**
20 **were as a result of time beyond free time where a**
21 **container sat either in the carrier's yard or**
22 **either at the port?**

23 MR. BLOCK: Object to form.

24 THE WITNESS: It's my understanding those

Page 26

1 charges were for the time that it sat at the
2 drayage company.

3 BY MR. COLLINS:

4 **Q Not in the carrier's yard or --**
5 **I mean, you couldn't have it sitting**
6 **in -- couldn't be charged for the drayage company,**
7 **couldn't charge for using space in its facility and**
8 **the carrier's billing for use of space in its**
9 **facility because it's mutually exclusive, right?**

10 MR. BLOCK: Object to form.

11 THE WITNESS: Correct.

12 MR. BLOCK: For clarification sake, you're
13 saying "carrier", and I think he means ocean
14 carrier, right? Because a drayage company is a
15 carrier too. If you distinguish that, it might
16 be --

17 MR. COLLINS: That's fair. Thank you.

18 BY MR. COLLINS:

19 **Q How much -- you've heard a lot of**
20 **testimony and I walked you through a painful number**
21 **of exhibits.**

22 **How much was the markup that SBA was**
23 **marking up demurrage, detention, or storage charges**
24 **in this case?**

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1 A It wasn't a fixed amount, and contrary to
2 what a lot of people were saying, it wasn't exactly
3 a fixed percentage either.

4 **Q But can you tell me how much the markup**
5 **was?**

6 A I run the sales reports many times and I
7 know exactly the profit on the accounts overall.

8 **Q And what's that?**

9 A It's close to 20 percent.

10 **Q But that is not the markup on -- part of**
11 **that is the freight, which is only 200, I assume.**
12 **That's substantially less than 20 percent markup,**
13 **right?**

14 A Correct -- let me -- I'm not sure. I
15 would have to review the rates.

16 **Q \$3,400 to \$3,600, for example, that's not**
17 **a 20 percent markup?**

18 A There's other fees involved that might
19 help boost that profitability; but, generally,
20 you're right. There is not a whole lot of profit.

21 **Q So most of the profit you're making is on**
22 **demurrage and detention and what I'd call ancillary**
23 **charges?**

24 A It turned into profit. Yes. I didn't

Page 28

1 want to (inaudible.)

2 **Q What was that?**

3 A I didn't want to charge that.

4 **Q How did you determine that it should be**
5 **\$300 a day for demurrage?**

6 A Maria asked me as the process progressed
7 to help her to prepare for payments and to budget
8 for upcoming shipments that were in storage. She
9 asked me for a number that she could use so we
10 could use a fixed number per day. I advised her
11 that that was a bad idea because "You're asking me
12 to look into the future and make sure I cover all
13 my costs and don't put myself and my company at
14 risk." She said that she needed that so she could
15 determine how to budget her money in the future.

16 I asked Bryan Tincher to do an
17 analysis of the shipments that we had already done.
18 Some of them had been as high as \$300 a day. So I
19 said, "Well, let's make sure we cover ourselves and
20 charge that."

21 **Q Well, she was asking you for an estimate.**
22 **She wasn't asking you to charge her \$300 a day was**
23 **she?**

24 A No. Not at all. Not an estimate at all.

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8 (Pages 26 to 29)

1 She said "Give me a fixed number and do not deviate
2 from that." So I said "But, Maria, if it cost us
3 \$325 a day?" She said "Make sure you cover
4 yourself, Ed. Charge me that same fixed rate and
5 you must stick to it."

6 **Q When was this conversation?**

7 A It would have been probably midway through
8 I would say early '15.

9 **Q Do you know whether the \$300 a day that**
10 **you were charging in demurrage was in any way**
11 **reflected in a tariff that was on file or**
12 **published?**

13 A No.

14 **Q Now, it's my understanding that at some**
15 **point -- not just at the end, but at some point**
16 **demurrage payments assessed or sought by SBA piled**
17 **up, and SBA took the position that it would not**
18 **release containers even if the supplier had**
19 **provided a telex release to SBA; is that right?**

20 A Correct.

21 **Q And for those containers there were no**
22 **charges outstanding for those -- related to those**
23 **containers were there?**

24 A I have to check the records, but probably

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1 know, Service By Air started as an air freight
2 company. We decided to add on ocean services
3 halfway through my time so far.

4 Arnie came from -- it's called Helm's.
5 It's a very large ocean forwarding company. So I
6 was relying on his expertise.

7 **Q Is he still with the company?**

8 A Yes, he is.

9 **Q He's not a lawyer is he?**

10 A Not to my knowledge.

11 **Q Do you know whether he got any legal**
12 **advice to whether he was able to do that or not?**

13 A No.

14 **Q Is Arnie a pretty aggressive guy?**

15 A I don't know. I don't really know him
16 that well. We met once.

17 **Q Did you ever cut any checks directly to**
18 **the steamship lines in this case?**

19 A No.

20 **Q Do you know the identity of any of the**
21 **steamship lines that were supposedly going to**
22 **exercise liens or refuse to release cargo in this**
23 **case?**

24 A No.

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1 not.

2 **Q So did you make any inquiry whether you**
3 **were legally authorized to refuse to release**
4 **containers in your possession which the supplier**
5 **had been paid and which you were not owed any money**
6 **on?**

7 A Yes.

8 **Q Who did you inquire with?**

9 A Our Chief Operating Officer Arnie
10 Goldstein.

11 **Q Okay. And what did he tell you?**

12 A I asked him "Can you do that? I mean,
13 you're going to hold onto these containers that are
14 released until we get payment on these?" And he
15 said "Yes".

16 **Q And did you have any further discussions**
17 **with him in that regard?**

18 A Nothing that was different than that. No.

19 **Q And it sounded -- the way you --**

20 **It's not captured on, you know, the**
21 **paper, but you sounded like "Can you do that?" Not**
22 **just merely "Can you do that?" But you sounded**
23 **surprised?**

24 A My experience with ocean was limited. You

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1 (Whereupon Exhibit No. 30
2 was marked. Said document
3 was tendered.)

4 BY MR. COLLINS:

5 **Q This is your Affidavit. What we've marked**
6 **as Exhibit 30, that's your Affidavit; is that**
7 **correct?**

8 A Yes.

9 **Q In paragraph 10 -- well, actually, in**
10 **paragraph 9, you say "SBA made no representation to**
11 **CMI that any of the demurrage it was collecting**
12 **originally was charged by a steamship line."**

13 **That's not accurate is it?**

14 **(Witness reviewing.)**

15 A I would not have known of any statement
16 saying that. So from my perspective I would stick
17 to that sentence.

18 **Q Well, you wrote some of the e-mails that**
19 **said the steamship line is demanding payment.**

20 A Going back to the colloquial use of the
21 word "steamship line" to help Maria understand.
22 Instead of using the word "co-loader", she would
23 not be able to understand that.

24 **Q But I'm saying, you're saying you made no**

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9 (Pages 30 to 33)

1 representation to CMI that any of its demurrage it 2 was collecting originally was charged by a -- you 3 did say it was charged by a steamship line didn't 4 you? 5 A I see the conflict. Yeah. 6 Q So that's an incorrect statement? 7 A Yes. 8 Q And then the next statement, the last 9 sentence of paragraph 10: "No VOCC demurrage was 10 ever charged or collected." 11 I believe we've established, you know, 12 that the actual demurrage was the steamship line 13 demurrage that was being collected, right? 14 A Yes. 15 Q So that's inaccurate? 16 A That is inaccurate. 17 Q And then in looking at paragraph 11, and 18 it says "SBA" -- I'm sorry. Give me one second. 19 (Pause.) 20 That's all I have on that one. And 21 then just one other document. We used it before. 22 The Document Request Responses. I think it was... 23 MR. BLOCK: Number 26? 24 MR. COLLINS: It might be. Page 34	1 transportation services", was unclear and required 2 further definition. 3 BY MR. COLLINS: 4 Q Well, do you remember that there was 5 actually a definition provided of what ocean 6 transportation -- excuse me -- of what 7 transportation services were? 8 A I don't. 9 Q Okay. Looking at -- skipping ahead to 10 Interrogatory No. 31 on page 14, that runs over to 11 15. 12 For asking for the amount that SBA 13 "charged CMI for demurrage, detention, per diem, or 14 storage in excess of what SBA was billed by third 15 parties." 16 Do you see that? 17 A Would it be Interrogatory 30? 18 Q It's Interrogatory 31 actually. 19 A 31. 20 (Witness reviewing.) 21 Okay. 22 Q And you see your answer there? 23 (Witness reviewing.) 24 I think you're saying that you can't Page 36
1 THE WITNESS: This one (indicating)? 2 MR. COLLINS: Yes. 3 BY MR. COLLINS: 4 Q All right. These are SBA's Responses to 5 our First Interrogatories and Request For 6 Production of Documents. 7 Have you ever seen this document 8 before? 9 (Witness reviewing.) 10 A Yes, I have. 11 Q Did you help in providing these answers? 12 A Yes. 13 Q Okay. Looking at Interrogatory No. 4, it 14 says: "Identify all shipments for which SBA 15 provided transportation services on behalf of CMI 16 from 2013 to the present. For each shipment 17 identified specify the transportation services 18 provided by SBA," and the answer is "None"? 19 MR. BLOCK: Objection. That's not the 20 final response. That's supplemented. 21 MR. COLLINS: I understand. But let me 22 ask you: Is that accurate? 23 (Witness reviewing.) 24 The way it's written, "provided Page 35	1 determine how much your markup was? 2 A Restate your question, please? 3 Q I think what you're saying here is that 4 you can't tell us what the markup was for 5 detention, demurrage, and per diem or storage for 6 the service you provided for CMI; is that right? 7 A We could take the amount billed minus all 8 charges and fees that were charged to us to 9 determine what I get. 10 Q But you haven't done that? 11 A The reports that I run would tell me that. 12 They would show me all costs and then show what we 13 billed and show the profit. 14 Q Okay. 15 A And that's where the number 20 percent 16 comes from. 17 Q But I think, and correct me if I'm wrong, 18 but I think we touched on it. But I think when 19 you're using the 20 percent, you're not limiting it 20 to the demurrage, detention, per diem, or storage 21 are you? You're actually including freight? 22 A Yes. 23 Q Can you back out the freight and tell us 24 what the markup is for each shipment? Page 37

1 A I can try. It depends on what the system 2 would give me. 3 Q That would be helpful. 4 You heard, for example, the testimony 5 or the documentation that there was one shipment -- 6 I don't remember which one it was now, but there 7 was a Jewels Transportation billed for \$800, and we 8 got a demurrage charge in excess of \$6,000. 9 How do you explain that? 10 A Because of the number that Maria wanted to 11 use for figuring and for planning for expenditures. 12 This is the exact reason I advised her not to 13 insist that we use \$300 a day because it would be 14 negative to her. 15 Q You're a straight shooter, but I got to 16 say that does not make any sense. 17 MR. BLOCK: Object. And argumentative. 18 Is there a question? 19 BY MR. COLLINS: 20 Q I can't imagine somebody is going to say 21 "We're going to charge you \$300 a day, even if it 22 means you mark up our invoice by 800 percent? 23 MR. BLOCK: Is there a question? 24 MR. COLLINS: Yes. Page 38	1 A Yes. It does. 2 Q And so was there an error -- 3 Well, was the error in charging for 4 the demurrage period for 14 days or 63 days? 5 A I spent quite a bit of time researching 6 this trying to figure out if in fact the 7 spreadsheets went from 14 to 63 days. How that 8 happened. 9 I get a lot of spreadsheets, and I try 10 to be accurate with all of them. 11 Q Okay. 12 A There were times I would get a spreadsheet 13 from an employee with information like this and 14 then find out -- only to find out that I did not 15 have the correct one. 16 Q Okay. 17 A And also I would update them myself. As 18 containers were delivered, I would cross them off. 19 So things like with spreadsheets, I think some of 20 those columns got off line. 21 Q So am I correct though that CMI was 22 inadvertently billed for 63 days, when it should 23 have only been 14? 24 A I was concerned about that and so I went Page 40
1 MR. BLOCK: What is the question? 2 MR. COLLINS: That was the question. 3 BY MR. COLLINS: 4 Q Did anybody -- is that what you're saying 5 she agreed to? 6 A I'll preface this by saying chicken and 7 the egg. In other words, she requested the billing 8 before we got the bill. Had I received the bill 9 beforehand -- which is why I told her I did not 10 want to do this, expedite the billing process. Had 11 I received that invoice I would have definitely 12 have tried to help her, but it was too late. And 13 that's why I told her "We should not do a fixed 14 amount so that you can expedite payments." 15 Q Looking at -- and I can try and track 16 down, but I'd rather try and -- 17 For us to expedite this process, just 18 look at Interrogatory No. 40. If you need the 19 document itself, why don't you look at that on 20 e-mail in the Response, if you don't mind? 21 (Witness reviewing.) 22 Does this ring a bell? Does this 23 refresh your recollection at all about this 24 correspondence? Page 39	1 back and pulled the file. If I'm not mistaken, the 2 numbers will verify that they were not charged for 3 63 days. 4 Q You think that was corrected? 5 A Yes. I think it was caught before it 6 actually went out. 7 Q Well, it must have been though. I mean, 8 there was correspondence between you and CMI, 9 right? So it must have gone out? Didn't it? 10 A To my knowledge it wasn't a whole lot of 11 correspondence about it. It was just simple a 12 question that I explained to be a spreadsheet 13 error, and it was accepted and we moved on. 14 Q But you're confident that the amount 15 billed for that was reduced? 16 A Yes. 17 Q Okay. And I think that's the same 18 question, 41, right? 19 (Witness reviewing.) 20 A Yes. 21 Q And Number 42, it says -- you know, going 22 back to the issue about what steamship lines were 23 already paid. It says the charges were actually 24 paid to Chinese transportation intermediaries. Page 41

1 So were demurrage charges paid 2 directly to the NVOCC? 3 A Demurrage charges would have been paid to 4 the drayage company. 5 Q Well, that's what I'm wondering? Because 6 in your e-mail you said that "We had already paid 7 the steamship line," and I thought you had said 8 "Well, we were mistaken. It was actually paid to 9 the NVO." But now it seems like you're saying 10 there were actually -- I mean, you're saying you 11 were paid to a Chinese transportation intermediary, 12 but now you're saying -- 13 The drayage line isn't a Chinese 14 transportation intermediary is it? 15 A No steamship line was paid directly. So 16 we can eliminate that. 17 Please rephrase the question? 18 Q Well, I'm referring to some of these 19 exhibits that we've talked about earlier where it 20 says "We've paid the steamship line for demurrage. 21 You need to pay us." And I think you said "Well, 22 we were using steamship line in the shorthand to 23 refer to actually the co-loader or some other 24 Chinese NVO." Page 42	1 A Sure. 2 Q "You know, because we've already paid the 3 steamship line and that's what we were charged." 4 And what I'm saying is it seems to me 5 that even if you accept the characterization that 6 you're using a steamship line as a shorthand for an 7 NVO -- in fact, the payment wasn't made to the 8 steamship line either. It was made to a drayage 9 company provider. Is that accurate? 10 A Yes. 11 Q So that's an inaccurate statement? 12 A Which one? 13 Q The one that we were just referring to? 14 Answer to Number 42? 15 A I think that actually supports what I 16 said, especially the last line: "No steamship 17 line" -- 18 Q But I'm talking about the sentence before 19 it? 20 A "These charges were actually paid to ocean 21 transportation intermediaries." 22 They wouldn't consider Freight Tech to 23 be an ocean transportation intermediary. 24 Q Well, if you want to say they're an ocean Page 44
1 And it seems like you're saying here 2 that these charges were paid to the Chinese 3 transportation intermediary; but I think you told 4 me that you didn't pay them either. You were 5 actually paying a drayage company? 6 A I can see the confusion. We would pay the 7 drayage company who in turn would pay the 8 intermediaries. The response could have been 9 phrased better. 10 Q So when you said "We've paid the steamship 11 line already," you actually weren't even saying you 12 had paid the NVO. You were saying "I paid a 13 drayage company who paid the NVO"? 14 A No. It was about correspondence, if I'm 15 not mistaken, that you're referring to. 16 When Bryan stated he spoke to a 17 steamship line, he was paraphrasing or using a 18 colloquial term. He was trying to make it simple 19 for them by using the term "co-loaders". 20 Q I understand that, but -- 21 A Did I misunderstand your question? 22 Q There was some correspondence where he 23 said "We already paid the steamship line. You pay 24 us." Page 43	1 transportation intermediary, I'm all for that? 2 A I don't know. 3 Q That's not accurate though is it? 4 A Correct. 5 MR. COLLINS: We're done. 6 MR. BLOCK: We're done. 7 THE WITNESS: Okay. 8 MR. BLOCK: We'll reserve signature. 9 (Whereupon at 2:52 p.m., 10 the signature of the witness. 11 having been reserved, the 12 deposition was concluded.) 13 14 15 16 17 18 19 20 21 22 23 24 Page 45

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123456789101112131415161718192021222324 BEFORE THE FEDERAL MARITIME COMMISSION CMI DISTRIBUTION, INC.,)) COMPLAINANT,)) DOCKET NO. 17-05 vs.)) SERVICE BY AIR, INC., RADIANT) CUSTOMS SERVICES INC.,) (FORMERLY KNOWN AS SBA) CONSOLIDATORS, INC.) and) LAS FREIGHT SYSTEM LTD.,)) RESPONDENTS.) I, EDWARD ZASADA, state that I have read the foregoing transcript of the testimony given by me at my deposition on the 1st day of March 2018, and that said transcript constitutes a true and correct record of the testimony given by me at said deposition except as I have so indicated on the errata Page 46	
123456789101112131415161718192021222324 sheets provided herein. _____ EDWARD ZASADA No corrections (Please initial) _____ Number of errata sheets submitted _____ (pgs) SUBSCRIBED AND SWORN TO before me this ____ day of _____ 2018. Page 47	

13 (Pages 46 to 47)

30(b)(6): Edward Zasada
March 1, 2018

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26:20 review 4:17 7:17 28:15 reviewing 12:6 13:11 33:14 35:9,23 36:20 36:23 39:21 41:19 right 6:2 7:17 12:21 13:24 16:8 18:16 20:2	24:15 27:9,14 28:13 28:20 30:19 34:13 35:4 37:6 41:9,18 ring 39:22 risk 29:14 Riverside 1:16 role 17:20 room 6:15 rules 6:2 11:13 12:4,8 run 9:3 28:6 37:11 running 9:18 runs 36:10 S S 2:1 3:7 sake 12:18 27:12 sales 9:7,7,22 28:6 sat 26:21 27:1 saw 11:2 saying 20:18 26:2 27:13 28:2 33:16,24,24 36:24 37:3 39:4,6 42:9 42:10,12 43:1,11,12 44:4 says 20:5 34:18 35:14 41:21,23 42:20 SBA 1:7 9:1,16,21 11:3 12:8,17 13:23 14:5,7,7 14:9,9,10,10,12,12,22 14:24 15:3,7,23 18:16 20:18 25:8 27:22 30:16,17,19 33:10 34:18 35:14,18 36:12 36:14 46:7 SBA's 35:4 Science 8:9 Seattle 2:15 second 3:9 34:18 see 12:1,5 20:22 34:5 36:16,22 43:6 seen 25:11 35:7 sense 21:9 23:2 38:16 sent 7:21,23 26:1 sentence 33:17 34:9 44:18 service 1:6,11 8:24 10:19 14:13 16:3 21:13 32:1 37:6 46:6 services 1:6 14:3,4,5,11 15:1 32:2 35:15,17 36:1,7 46:6 seven 9:13 share 18:4 shared 11:11 sheet 11:15 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19:21 strike 21:1 subject 12:2 24:6 submitted 19:16 47:8 SUBSCRIBED 47:10 substantially 28:12 Suite 1:16 2:6,14 supplemented 35:20 supplier 30:18 31:4 support 20:15 supports 44:15 supposedly 32:21 surcharges 12:3 sure 7:3 28:14 29:12,19 30:3 44:1 surprised 31:23 sworn 4:1 5:6 47:10 synonymous 21:19 system 1:8 19:18 38:1 46:8 Systems 8:22
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EXHIBIT F

STEVE FERREIRA EXPERT WITNESS REPORT

Statement of Qualifications

I am the Founder and President of Ocean Audit Inc. ("Ocean Audit"). I have a Bachelor of Arts from Providence College. I have worked in the field of ocean transportation for most of the past thirty-four (34) years. I founded Ocean Audit in 2005 and have served as its Chief Executive Officer since that time. Prior to founding Ocean Audit, I was employed by vessel operating common carriers ("VOCCs"), including United States Lines and Sea-Land Service. I also founded TradeCheck in 1994, which was an ocean audit firm later purchased by the Profit Recovery Group. I was also employed by Expeditors, a non-vessel-operating common carrier ("NVOCC").

Ocean Audit provides accounts payable recovery auditing for the customers of VOCCs and NVOCCS in the container shipping industry. Among them, Ocean Audit represents 10 Fortune 100 companies as clients.

I am intimately familiar with ocean transportation billing, tariffs published pursuant to the Ocean Shipping Act of 1984 and the rules and regulations of the Federal Maritime Commission ("FMC") governing the publication of such tariffs.

Audit Performed and Statement of Opinions

Las Freight Systems Ltd

In conducting my audit, I reviewed the tariff of Las Freight System Ltd. ("Las Freight") on behalf of CMI Distribution ("CMI"). Las Freight was an NVOCC for the time period at issue.

An NVOCC is required to publish and maintain in its electronic tariff all charges, classifications, rules and practices for the transportation services it provides. Tariffs must be

clear and definite. The NVOCC may not charge customers rates for transportation that are not published in its tariff and effective as of the date of the shipment(s) in question.

An NVOCC is also required to publish and maintain in its electronic tariff all additional charges related to the transportation services provided such as demurrage and detention. As is the case for transportation rates, an NVOCC may only assess additional charges as set forth in its tariff and effective for the time period the charges are assessed.

In conducting the audit, I reviewed the Las Freight tariff and rates and charges in that tariff effective during the time periods when CMI was assessed the charges at issue. As reflected on the website of the FMC, Las Freight published its tariffs through the tariff publishing agent, Descartes during the relevant time periods. A shipper wishing to determine what rates and charges Las Freight had published in its tariff could, for a fee, go to the Descartes website and select the Las Freight tariff from the database. From the tariff, one can determine the rates and charges that apply to specific shipments.

"Demurrage" charges are assessed by a carrier for the use of space taken up by a container while it is in the carrier's facility awaiting the customer's pick-up after free time has expired. "Detention" charges are assessed by a carrier for use of its container equipment (usually a container but it may also include a chassis) which equipment remains in the customer's possession after the expiration of free time. Detention charges are sometimes referred to as "per diem" charges because they are assessed on a daily basis.

Documents produced in discovery by SBA reflect that SBA was invoiced by Freight Tech and other truckers and land-based transportation providers for storage of the containers at issue. Such charges indicate that the containers had been picked from the carrier's facilities and were not being held by the VOCCs during the time period in question. Thus, any charges

assessed could not accurately be described as demurrage charges. Instead, they would fall under the applicable tariff's detention rules. Las Freight does not have a detention rule or detention charges in its tariff. Thus, any charges assessed by Las Freight would not be in compliance with the tariff requirements of the Shipping Act or FMC regulations.

Sample invoices issued by SBA to CMI assert that the charges in question were demurrage charges assessed by the VOCCs that had transported the shipments in question. However, the charges assessed are not justified by the rates in the VOCC tariffs.

I was hindered in my ability to conduct this audit by the fact that Las Freight has not participated in this proceeding and has not provided documents reflecting what detention charges were actually assessed by the VOCCs that provided the underlying transportation and/or what period the containers at issue were "gated out" (the period when the containers were removed from the carriers' possession) and "gated in" (when they were returned to the carrier.) This information is necessary to calculate such charges pursuant to the VOCC's tariff.

For some of the shipments transported by Mediterranean Shipping Company (MSC), however, I was able to determine the dates when specific containers at issue were gated out and gated in by reviewing MSC's automated container tracking system. Other VOCCs that transported shipments at issue do not maintain information in their container tracking systems that date back to the time period at issue (and MSC does not have data regarding all the containers in its tracking system.)

The attached chart demonstrates that for 11 of the containers at issue that were transported by MSC for which container data is available in MSC's automated container tracking system, CMI was assessed \$95,089 in what SBA inaccurately described as demurrage charges. Pursuant to MSC's tariff, however, the amount that could have been charged under the

MSC tariff was only \$29,600. This overcharge is partly due to the fact that the number of days for which the charge was assessed by SBA was often incorrect and seriously inflated. For example, for the shipment in Folder 22, CMI was assessed for 31 days of "demurrage." MSC's automated container tracking system, however, reflects that the container at issue was gated out on February 23, 2015 and gated in, *i.e.*, returned to MSC, three days later on February 26, 2015. Thus, even if Las Freight had a basis for the charges in its tariff, CMI should not have been charged for 31 days. Indeed, because MSC's tariff allows for four days' free time under its detention rules, there should have been no charge – no matter how they are justified.

The amount that CMI was overcharged even as calculated under the VOCCs' tariffs is also a product of the fact that CMI was charged rates that did not exist in MSC's tariff, much less Las Freight's tariff. MSC's detention rules allow for 4 free days from the gate out date before detention charges are assessed. The detention rates are then as follows: subsequent four days (\$115); next four days (\$165) and \$195 per day thereafter. Although the basis for the "demurrage" charges assessed against CMI is not clearly articulated by SBA, CMI was charged at rates in excess of \$300 per hour. *See, e.g.*, Folder 33 (31 days X \$309.67 = \$9,600).

Records obtained in discovery reflect that other VOCCs including NYK Line, K Line and Yang Ming carried some of the underlying transportation at issue. NYK Line's tariff provides for 4 days of free time for detention charges. Subsequently, NYK Line charges detention rates of \$140 per day.

K Line's tariff has a detention charge of \$100 per day.

Yang Ming allows four days of free time and subsequently charges detention rates of \$130 per day.

CMI was billed for charges in excess of the rates reflected in each of those VOCCs' tariffs. In many instances CMI was charged \$300 per day in what inaccurately was described as demurrage charges.

Service by Air, Inc.

During the time period at issue, Service by Air, Inc. ("SBA") did not publish a tariff as required by the Shipping Act. There is a legal question presented, which I am not addressing in this report, as to whether, to the extent that SBA was acting as, or holding itself out as, an NVOCC during the period at issue, SBA would be entitled to assess any freight or additional charges against CMI for the transportation services at issue. To the extent SBA was acting as an NVOCC without a published tariff, however, SBA would not be entitled by the Shipping Act and FMC regulations to assess any charges.

Data Considered in Forming Opinions

My opinion in this matter is based upon my educational background, my review of the Las Freight tariff and the applicable tariffs of the underlying VOCCs for the shipments at issue, the attached chart that was supplied to me, other information provided by counsel for CMI and my years of experience in the field of ocean transportation auditing.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: 2/15/2018



Steve Ferreira

NYK

In addition to the terms, provisions, and conditions of Carriers' Equipment Interchange Agreement set forth in 21-010, including subsequent amendments and revisions thereof, governing the interchange and use by shipper, consignees, or their agents of equipment owned by or leased to the Carrier, the following free time and detention charges shall apply:

1. FREE TIME

- A. Regular Equipment: Day of initial interchange plus four (4) working days, i.e., excluding Saturdays, Sundays, and Holidays (See Notes).
- B. Operating Reefer, Tank & Other Specialized Container Not Covered Elsewhere: Day of initial interchange plus three (3) working days, i.e., excluding Saturdays, Sundays, and Holidays (See Notes).

2. CHARGES

Detention Charges shall be charged for each calendar day following free time as follows (See Notes):

TYPE OF EQUIPMENT	CHARGES PER DAY
Dry Containers/Trailers	\$140.00
Open Top, Bulk, Hard Top, Ventilated & Flat Rack Containers	\$150.00
Operating Reefer, Tank & Other Specialized Container	\$190.00
Not Covered Elsewhere	
Bare Chassis	\$ 45.00

NOTES:

1. Regular equipment includes equipment of all sizes, with or without chassis, among others, 20, 40, and 45 foot dry containers, high-cube containers, bare chassis, etc. other than open-top containers, flat rack containers, standard flatbed trailers, operating refrigerated equipment, tank equipment, and other specialized container not covered elsewhere.

KLINE

2-DETENTION CHARGES FOR IMPORT CONTAINERS.

EQUIPMENT TYPE PER DIEM CHARGES

Regular \$100/per container/per calendar day
for Merchant Haulage
Regular \$125/per container/per calendar day
for Carrier Haulage (drop and pick)
Reefer \$150/per container/per calendar day
Tank \$150/per container/per calendar day
Open Top/Flat Rack \$150/per container/per calendar day

FOR EXPORT CONTAINERS.

EQUIPMENT TYPE PER DIEM CHARGES

Regular \$100/per container/per calendar day
for Merchant Haulage
Regular \$125/per container/per calendar day
for Carrier Haulage (drop and pick)
Reefer \$150/per container/per calendar day
Tank \$150/per container/per calendar day
Open Top/Flat Rack \$150/per container/per calendar day

Note 5: The parties hereby recognize and agree that when this Agreement is executed by an inland carrier, that inland carrier is so executing it both on its own behalf and as agent for a shipper and/or consignee, at whose direction it is acting. Accordingly, in such cases, both the inland carrier and the shipper and the consignee shall be jointly and severally liable to satisfy all requirements and obligations under this Agreement. The inland carrier represents that it has forwarded a copy of this Agreement to all underlying shippers and consignees. Owners retains the right to modify the terms and charges as stated in this Addendum upon thirty (30) days notice to the Carrier. The modified charges will apply only to equipment interchanged after the effective date of the revised Addendum.

Yang Ming
Tariff Rule Filing Request

Tariff Number	000138-050
Rule Number	21-J
Rule Name	Use Charges or Detention Charge (At Destination)
Trade	TPEB
Assessorial	
Filing Date	2017/1/16
Effective Date	2017/3/1

Status	A
Expiration Date	

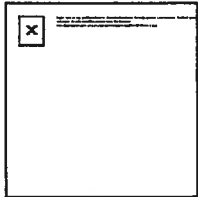
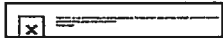
1. Charges applicable to the Interchange of Equipment under this Agreement shall be as follows:

Container Type	Free Time	USE Charge (Detention)
Dry Container	4 working days	First day/Beyond after free time \$130.00/day

Regards,

Steve

Steve Ferreira, CEO



t: (860) 426-3135
w: www.oceanaudit.com
e: stevef@oceanaudit.com



Steve Ferreira

Ocean Audit Inc.

1224 Mill Street, Building B, East Berlin, CT 06023

860-426-3135

<http://www.oceanaudit.com>

<http://www.freightaudit.com>

SUMMARY This year, 1,000,000 ocean freight containers will have the wrong invoice charges or payment applied to them.

Global maritime regulations enable importers and exporters a 3 to 5 year statute of limitations to reclaim these overcharges.

Many importers and exporters lack fiduciary compliance of their ocean freight spend.

Importers and exporters typically have only a few associates tasked with ocean freight transportation. Generally speaking, these professionals do not focus on the forensic review of historic ocean freight spend by conducting an internal post audit.

At Ocean Audit, we get that. No job description exists for a logistics professional stating "conduct a post audit 5 year review of the historic ocean freight spend."

My 30 year background as an entrepreneur in ocean freight and international global logistics has enabled me to develop a solution to this problem. Ocean Audit's singular focus is providing recovery auditing for Clients who utilize international ocean freight transportation. A 1 hour set-up delivers world class post audit recovery of over paid ocean freight invoices. We guarantee our service to be 100% free if no refund or credit is recovered. What we do:

- Identify incorrect or inaccurate invoices for ocean freight services for the past 5 years.
- We find errors and refunds even when internal or external audit, freight payment and contract management systems can not.
- Our process supports, but does not replace your existing practices.
- Ocean freight vendors A/R systems are subpar. We identify payment and billing errors not related to the ocean freight service contract. On average, our clients receive refunds from \$25,000 to \$1,000,000.

Specialties: Ocean Freight, Freight Audit, Ocean Freight Audit, Ocean Freight Rates, post audit, International transportation, global transportation, logistics and supply chain, international shipping

SKILLS

- Freight
- Transportation
- Supply Chain
- Audit
- 3PL
- Freight Forwarding
- Auditing
- Export
- Management
- Logistics Management
- Transportation Management
- Air Freight
- Warehousing
- Customs Regulations
- Logistics
- Shipping
- ocean freight
- Supplier Auditing
- Ocean Freight
- Ocean
- Import
- Pricing
- Container
- Supply Chain Optimization
- Supply Chain Management
- International Logistics
- Warehouse Management
- Strategic Sourcing
-

- International Trade
- International Business
- Procurement
- P&L Management
- Start-ups
- Operations Management
- Inventory Management
- Supply Chain Operations
- Contract Negotiation
- Key Performance Indicators

EXPERIENCE

Ocean Audit Inc.

06 / 2004 - Present

President | Ocean Freight Auditing for the Container Shipping Industry | Ocean Freight Refunds

Ocean Audit Inc. is the industry's only 100% ocean freight post audit, providing importers, exporters, VOCC's and 3PL's with cash and credit refunds from invoices dated from 2010 through present day.

The statute of limitations for Ocean Freight refunds is 3 years based on incorrect invoice rates compared to agreed upon service contract or price matrix rates; however, there is NO statute of limitations on payment errors related to inaccurate ocean freight invoicing. This is not a complex process and is not resource intensive on your part. Ocean Audit, Inc has been taking companies through this process for almost 20 years.

Profit Recovery Group

11 / 1997 - 11 / 2001

VP / Vice President of Logistics | Ocean Freight | Freight Audit | Container Shipping

In 1997, TradeCheck, LLC was acquired by Profit Recovery Group, a publicly traded accounts payable auditing firm listed on NASDAQ after a glowing referral by our mutual client, Walmart.

I stayed on for 4 years helping lead their Logistics division. As much as I enjoyed my time with Profit Recovery Group, I am an entrepreneur at heart and made the decision to take time off to create new innovations for the Ocean Freight industry.

TradeCheck, LLC

06 / 1994 - 11 / 1997

Owner | Ocean Freight Auditing for the Container Shipping Industry | Freight Audit

TradeCheck was the pioneer in beneficial cargo owner ocean freight post auditing. Within 2 years of its startup, TradeCheck performed ocean freight audit services to 11 of the Fortune 100 plus the United States government.

TradeCheck was a startup company and within 2 years, TradeCheck was purchased by Profit Recovery Group (PRGX).

Sea-Land

1990 - 1994

Asia Marketing Manager - Seattle

Developed the first commission based sales program for ocean freight sales at a VOCC in the United States.

Sea-Land Service, Inc.

1988 - 1990

Asia Marketing Manager - Taipei, Taiwan and Hong Kong

Based for 2 years in Taipei, Taiwan and Hong Kong, Hong Kong. Ranked number one salesperson in the Trans-Pacific trade.

United States Lines

1982 - 1986

Account Executive (Dallas, LAX, SFO)

Number one ranked salesperson and named "Communicator of the Year"

EDUCATION Providence College

1978 - 1982

BA , Social Studies

Elected to Student Congress four consecutive years

HONORS Delivered Keynote at European Logistics Transport Conference, Brussels & Amsterdam (2009 & 2010) Delivered Keynote at Chicago Logistics Technology Conference (2009) Delivered Keynote at 3PL, Eye For Transport Conference in Atlanta,GA(2010) Featured Profile Article in Leading Industry Magazine, Journal of Commerce, April 2007 Featured Profile Article in Containerisation International, Summer of 2009

INTERESTS Bikram Yoga, health and fitness, golf, world traveler, computers and gadgets, reading articles and journals on Container Shipping, Ocean Freight, and logistics. I love spending time with my family.

ASSOCIATIONS Founder, International Finance and Operations Executives Forum Providence College Alumni Association Juvenile Diabetes Foundation Supporter

LANGUAGES • Czech (Elementary proficiency) • Russian (Elementary proficiency)

DESCARTES

Rule Detail

Organization: LAS FREIGHT SYSTEM LIMITED(013673)
Tariff: OCEAN FREIGHT TARIFF NO. 002(013673-002)
Rule: TERMINAL TARIFFS(34)

Filing Information:

Filed: 17Jul2000
Effective: 17Jul2000
Expires:
Thru:

Amendment Type: IR
Status: Filed
Special Case:

NOT APPLICABLE.

ALL INFORMATION CONTAINED WITHIN THIS TARIFF IS TRUE AND ACCURATE AND
NO UNLAWFUL ALTERATIONS WILL BE PERMITTED.
For Explanation of Abbreviations and Reference Marks, see rule 28 and 29
For Tariff Access Information see rule 30.
For Security Bonding see rule 24.

* = Future Revision ► = Required Field

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DESCARTES

LAS FREIGHT SYSTEM LIMITED

—Rate, Commodity and Contract Search—

—Components—

[Home](#) [Rate Search](#) [Item Search](#) [Rate Analysis](#) [Contract Search](#) [Rules](#) [Inland Rates](#)**You are here:** [CarrierSelect](#) > [Rules](#) > **Rule Detail** (as of 16Feb2018)

Organization: LAS FREIGHT SYSTEM LIMITED(013673)

Tariff: OCEAN FREIGHT TARIFF NO. 002(013673-002) [view Detail](#)

Rule: RATE APPLICABILITY RULE(3)

Filing Information: [View Filing History](#)

Filed: 17Jul2000

Effective: 17Jul2000

Expires:

Thru:

Amendment Type: IR

Status: Filed

Special Case:

To highlight all occurrences of a word or phrase, enter one or more search words and click Find. All occurrences of the words will be highlighted in red.

Search Words:**Find**

To individually locate each occurrence of a word or phrase, press Ctrl+F and use your browser's Find Next function.

All tariff rates, rules and charges applicable to a given shipment will be those published and in effect when the cargo is received by the ocean carrier or its agent, including originating carriers in the case of rates for through transportation.

[Top](#) [Prev](#) Row 10 of 44 [Next](#) [Bottom](#)[Back](#) to [Rules](#)[Home](#) | [Rate Search](#) | [Item Search](#) | [Rate Analysis](#) | [Contract Search](#) | [Rules](#) | [Inland Rates](#) | [Currency Table](#)
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ALL INFORMATION CONTAINED WITHIN THIS TARIFF IS TRUE AND ACCURATE AND
NO UNLAWFUL ALTERATIONS WILL BE PERMITTED.

For Explanation of Abbreviations and Reference Marks, see rule 28 and 29

For Tariff Access Information see rule 30.

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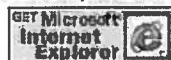
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MSC EU COMMITMENTS

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DESCARTES

Rule Detail

Organization: LAS FREIGHT SYSTEM LIMITED(013673)
 Tariff: OCEAN FREIGHT TARIFF NO. 002(013673-002)
 Rule: SCOPE(1)

Filing Information:

Filed: 17Jul2000
 Effective: 17Jul2000
 Expires:
 Thru:

Amendment Type: IR
 Status: Filed
 Special Case:

Rules and conditions named herein apply to the transportation of cargo between carrier's or their agent's terminal at Ports and Points listed in Paragraph A and carrier's or their agent's terminal listed in Paragraph B.

A) Between ALL PORTS/POINTS OF CALL in the following:

GROUP: USA includes;
 Puerto Rico
 US Virgin Islands
 United States
 US BASE PORTS

1) GROUP: US BASE PORTS includes; (See Note)

- a) GROUP: US ATLANTIC BASE PORTS includes;

Baltimore, MD	Norfolk
Boston, MA	Philadelphia, PA
Charleston, SC	Savannah, GA
Miami, FL	Wilmington, NC
New York, NY	
- b) GROUP: US GULF BASE PORTS includes;

Houston, TX	New Orleans, LA
Mobile, AL	Tampa, FL
- c) GROUP: US PACIFIC BASE PORTS includes;

Long Beach, CA	San Francisco, CA
Los Angeles, CA	Seattle, WA
Oakland, CA	Tacoma, WA
Portland, OR	
- d) GROUP: US GREAT LAKES BASE PORTS includes;

Chicago, IL	
-------------	--

B) AND ALL PORTS/POINTS OF CALL in the following countries

To/From which Rates Apply:
 GROUP: ASIA COUNTRIES includes;
 Bangladesh

China
 Hong Kong
 Indonesia
 Japan
 Korea
 Malaysia
 Philippines
 Singapore
 Taiwan
 Thailand
 ASIA BASE PORTS

- 1) GROUP: ASIA BASE PORTS includes; (See Note)
 - a) GROUP: BANGLADESH BASE PORTS includes;
Chittagong
 - b) GROUP: CHINA BASE PORTS includes;
Fuzhou, Huangpu, Dalian, Qingdao,
Shanghai, Zhanjiang
 - c) GROUP: HONG KONG BASE PORTS includes;
Hong Kong
 - d) GROUP: INDONESIA BASE PORTS includes;
Jakarta, Surabaya
 - e) GROUP: JAPAN BASE PORTS includes;
Kobe, Moji, Nagoya, Osaka, Tokyo, Yokohama
 - f) GROUP: KOREA BASE PORTS includes;
Busan
 - g) GROUP: MALAYSIA BASE PORTS includes;
Port Kelang, Pinang
 - h) GROUP: PHILIPPINES BASE PORTS includes;
Manila
 - i) GROUP: SINGAPORE BASE PORTS includes;
Singapore
 - j) GROUP: TAIWAN BASE PORTS includes;
Chilung (Keelung), Kaohsiung
 - k) GROUP: THAILAND BASE PORTS includes;
Bangkok

NOTE: Base Ports Groups also apply as Interchange Ports.

ALL INFORMATION CONTAINED WITHIN THIS TARIFF IS TRUE AND ACCURATE AND
 NO UNLAWFUL ALTERATIONS WILL BE PERMITTED.

For Explanation of Abbreviations and Reference Marks, see rule 28 and 29

For Tariff Access Information see rule 30.

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DESCARTES

Rule Detail

Organization: LAS FREIGHT SYSTEM LIMITED(013673)
Tariff: OCEAN FREIGHT TARIFF NO. 002(013673-002)
Rule: TERMINAL TARIFFS(34)

Filing Information:

Filed: 17Jul2000
Effective: 17Jul2000
Expires:
Thru:

Amendment Type: IR
Status: Filed
Special Case:

NOT APPLICABLE.

ALL INFORMATION CONTAINED WITHIN THIS TARIFF IS TRUE AND ACCURATE AND
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FLDR	CONT #	FREIGHT #	INVOICE	ARRIVED	DATE RECEIVED	DAYS OF DEMURR AGE	SBA DEMURRAGE ACTUAL
1	PCIU8685950	N612484	RR3555A	4/21/14	4/21/14	N/A	N/A
2	PCIU8352944	N612485	RR3555-2	5/19/14	5/23/14	1	\$ 425.00
3	MEDU3113127	N612525	HARBIN	5/28/14	6/11/14	11	\$ 1,905.00
5	N/A LCL	N770087	N/A	7/6/14	7/14/14	N/A	N/A
6	UACU5377170	N770461	CXINV140728	9/4/14	9/12/14	N/A	N/A
7	UACU8183883	N770506	RR3555&R143670	8/28/14	8/26/14	N/A	N/A
8	UACU8157328	N770519	R143704-1	9/5/14	9/9/14	N/A	N/A
9	MEDU2212151	N770553	FPINV140808	9/6/14	9/19/14	10	\$ 1,535.00
10	MSCU5926290	N770552	HXINV140808	9/18/14	9/26/14	5	\$ 250.00
11	UACU5502837	N770520	4941	9/9/14	9/12/14	N/A	N/A
13	TTNU5524101	N770647	HXINV140820	9/25/14	10/1/14	3	\$ 1,781.25
16	TTNU4343813	N770856	HXINV140920	11/1/14	11/13/14	9	\$ 2,206.25
17	MATU2315044	N770915	FPINV140926	10/12/14	11/24/14	40	\$ 3,740.00
19	CLHU8658659	B770924	INV5476	11/8/14	2/16/15	97	\$ 27,100.00
21	TCKU1771451	N771018	FPINV141010	12/5/14	12/12/14	4	\$ 950.00
25	TCLU4015624	B771043	HXINV141016	12/7/14	2/25/15	77	\$ 21,900.00
27	NYKU3251483	B771104	FPINV141023	12/19/14	2/18/15	58	\$ 14,300.00
29	TGHU1013740	N771189	FPINV141104	12/1/14	1/19/15	46	\$ 6,650.00
33	BMOU2709846	B771383	FPINV141128	2/14/15	3/17/15	31	\$ 9,600.00
36	GLDU9630402	B771501	FPINV141216	1/24/15	2/13/15	20	\$ 6,325.00
42	TTNU5206116	B771584	CXINV150105	2/22/15	3/26/15	32	\$ 9,900.00
43	TRIU5347886	B771645	CXINV150114	3/15/15	3/26/15	10	\$ 2,700.00
44	CAXU4049893	B771678	FPINV150118	3/19/15	6/8/15	81	\$ 6,650.00
46	MSCU4807147	B771716	SSINV150127	3/27/15	4/14/15	18	\$ 8,400.00
49	MSCU5881621	B771756	CXINV150130	3/27/15	4/17/15	21	\$ 4,200.00
50	MSCU4271080	B771762	SSINV15205	3/30/15	5/20/15	51	\$ 12,250.00
51	MSCU4867660	B771763	CXINV150205	4/3/15	4/17/15	14	\$ 3,600.00
52	TRHU3313918	B771769	FPINV150205	3/26/15	5/12/15	47	\$ 14,100.00
53	TRLU4651517	B771807	CXINV150213	3/31/15	5/26/15	56	\$ 8,735.00
54	MSCU4337608	B771910	HXINV150301	4/4/15	5/29/15	55	\$ 7,154.00
56	KKFU6726637	B851990	SSINV150301A	3/31/15	5/22/15	52	
58	MSCU5670932	B852112	SSINV150331	5/4/15	6/8/15	35	\$ 12,000.00
59	KKFU1167644	B852232	SSINV150402	4/29/15	7/22/15	84	\$ 8,326.00
60	KKFU1363499	B852230	CXINV150405	4/29/15	7/16/15	78	\$ 39,468.00
61	KKFU1614383		CXINV150408	4/29/15	7/9/15	71	
62	MSCU5915505	B852231	SSINV150404	5/7/15	6/12/15	36	\$ 12,600.00

Line No.	Container No.	NVOCC	VOCC	Route	Notes in Container docs.	Add. Notes
1	PCIU8685950					SBA Invoice "ship date 4/30/14"
3	MEDU3113127					Discrepancy in days on freight tech invoice
6	UACU5377170	Las Freight		Qingdao to Chicago (CY/CY)	ETA: Qingdao: 8/5/2014. ETA: Chicago: 8/31/2014 (Handwritten note 9/5 next to date)	
7	UACU8183883	Las Freight		Shanghai to Chicago (CY/CY)	ETA: Shanghai: 8/3/2014. ETA: Chicago: 8/24/2014.	
8	UACU8157328	Las Freight		Shanghai to Chicago (CY/CY)	ETA: Shanghai: 8/11/14. ETA: Chicago: (date striked out, handwritten "9/3)	SBA Invoice states "ship date 9/24/14"
9	MEDU2212151	Las Freight	MSC	Qingdao to Chicago (CY/CY)	ETA: Qingdao: 8/15/2014. ETA: Chicago: 9/14/2014.	SBA Invoice states " ship date 10/8/14." Discrepancy in days on freight tech invoice. SBA Airwaybill.
10	MSCU5926290	Las Freight	MSC	Qingdao to Birmingham, AL. (CY/CY)	ETA: Qingdao: 8/22/14. ETA: Birmingham:9/15/14.	SBA Invoice states "ship date 10/8/14"
11	UACU5502837			Qingdao to Chicago	ETA: Qingdao: 8/12/14. ETA: Chicago: 9/9/14.	SBA Invoice states "ship date 9/24/14"
13	TTNU5524101	Las Freight	MSC	Qingdao to Birmingham, AL. (CY/CY)	ETA: Birmingham :9/20/2014. Delivered to hercules: 10/13/2014	SBA Airway Bill. (2) Las Freight HBL's. One Marked "TLX Release." SBA Invoice "ship date 10/22/2014"
16	TTNU4343813	Las Freight	MSC	Qingdao to Birmingham, AL. (CY/CY)	ETA: Qingdao: 9/29/14. ETA: Birmingham:10/20/14.	SBA Invoice "ship date 11/26/14"
17	MATU2315044	Las Freight		Shanghai to Long Beach (CY/CY)	ETA: Shanghai: 10/2/14. ETA: Long beach 10/12/14.	Matson Notice of Private lien sale. Dated 11/11/14. SBA Invoice "ship date 9/29/14"
19	CLHU8658659	Las Freight System Ltd.	MSC	Qingdao to Chicago (CY/CY)	LFD: 11/12/2014	SBA Invoice "ship date 2/25/15"
21	TCKU1771451	Las Freight	MSC	Qingdao to Philadelphia (CY/CY)	ETA: QINGDAO: 10/19/14. ETA: Philadelphia: 11/14/14.	SBA Invoice "ship date 10/13/14."
25	TCLU4015624	Las Freight	NYK	Qingdao to Chicago (CY/CY)	LFD:12/11/2014	SBA Invoice "ship date 3/4/15."
27	NYKU3251483	Las Freight	NYK	Qingdao to Chicago (CY/CY)	LFD: 12/23/2014	SBA Invoice "ship date 2/23/15."
29	GHU1013740	Las Freight	MSC	Qingdao to Phoenix, AZ (CY/CY)	Note in AN- "12/1"	SBA Invoice "ship date 11/3/14"

33	BMOU2709846	Las Freight	MSC	Qingdao to Philadelphia (CY/CY)	LFD: 2/6/2015	Holt Terminals Invoice for terminal demurrage for \$500 (50 x10: 500) Freetime: 2/2-2/9. SBA issued two invoice with shipdate "2/20/15 & 3/2/15"
36	GLDU9630402	Las Freight		Qingdao to Chicago (CY/CY)		Discrepancy in days on freight tech invoice. SBA Invoice "ship date 2/24/15"
42	TTNU5206116	Las Freight	MSC	Qingdao to Chicago (CY/CY)	LFD: 2/25/2015	Per Freight Tech invoice-Chassis: 36 days; Demurrage: 30 days and yard storage: 31 days Why the discrepancy? SBA Invoice ship date 6/24/15
43	TRIU5347886	Las Freight	MSC	Qingdao to Chicago (CY/CY)	ETA: Qingdao: 1/17/2015. ETA: LA: 2/1/2015	Handwritten notes on AN States "In 3/17." Does this mean Chicago? Discrepancy in days on Freight Tech invoice. SBA issued to invoice with ship dates "4/1/15 & 3/18/15"
44	CAXU4049893	Las Freight	MSC	Qingdao to Edison, N.J. (CY/Door)	ETA: 3/10/2015 (NY Port)	Handwritten notes on AN States "In 3/18." SBA Invoice states "Ship Date 4/16/2015." Las Freight HBL States "TLX Release"
46	MSCU4807147 MSCU 4832324	Las Freight	MSC	Qingdao to Chicago (CY/CY)	Handwritten Note on AN-"In 3/30"	Discrepancy in days on freight tech invoice. SBA issued two invoices with "ship dates 4/1/15 & 4/22/15"
49	MSCU5881621	Las Freight	MSC	Qingdao to Las Vegas, NV (CY/door)	Note in AN- "In 4/6"	
50	MSCU4271080	Las Freight	MSC	Qingdao to Chicago (CY/CY)	Note in AN-"In 4/3"	SBA Invoice states "ship date 5/27/15". Days discrepancy in freight tech invoice
51	MSCU4867660	Las Freight	MSC	Qingdao to Las Vegas, NV (CY/door)	Note in AN-"In 4/8"	SBA Invoice states "ship date 4/1/15"
52	TRHU3313918	Las Freight	YMLU	Qingdao to Chicago (CY/CY)	LFD: 3/26/2015. Note in 2nd AN-"In 3/26)	SBA issued two invoice with "ship dates 2/6/15 & 5/13/15." Days discrepancy in freight tech invoice.

53	TRLU4651517	Las Freight	MSC	Qingdao to Las Vegas, NV (CY/door)	Note in AN- "In 3/31." ETA: Qingdao: 2/15/15. ETA: Long Beach 3/16/15.	SBA Invoice states "ship date 6/3/15."
54	MSCU4337608	Las Freight	MSC	Qingdao to Edison (CY/door)	Note in AN- "In 4/4"	SBA Invoice states "shipdate 5/28/15."
56	KKFU6726637					SBA Invoice states "shipdate 6/3/15."
58	MSCU5670932	Las Freight	MSC	Qingdao to Chicago(CY/CY)	ETA: Qingdao: 4/2/2015. ETA: Long Beach: 4/16/15. ETA: Chicago: (handwritten) 4/28/15	Discrepancy in days on freight tech invoice
59	KKFU1167644	Las Freight	KKLU	Qingdao to Las Vegas, NV (CY/door)	ETA: Qingdao: 4/11/2015. ETA: Las Vegas: 05/1/2015.	SBA Invoice states "ship date 5/13/15".
60	KKFU1363499	Las Freight	KKLU	Qingdao to Las Vegas, NV (CY/door)	ETA: Qingdao: 4/11/2015. ETA: Las Vegas: 05/1/2015.	SBA Invoice state "ship date 5/13/15"
61	KKFU1614383					
62	MSCU5915505	Las Freight	MSC	Qingdao to Chicago (CY-Ramp)	Note in AN-"In 5/5"	Discrepancy in days on freight tech invoice. SBA issued two invoices with "ship dates 5/6/15 & 6/24/15"
Not listed on Exhibit 1.						
	AKLU360007	Las Freight		Qingdao to Birmingham, AL. (CY/CY)	2ND AN "In 12/26"	
	KKFU1508648					
	DFSU1543562	Las Freight		Qingdao to Edison (CY/door)	ETA: Qingdao: 12/8/2014. ETA: NY,NY: 1/7/2015.	
	MSCU4337608	Las Freight		Qingdao to Edison (CY/door)		Invoice from Jewels Transportation. TLX Release
	MSCU4832324					Freight tech invoice. 16 days of demurrage 19 days Yard storage.
	TCKU3894500		CPRS			Freight Tech invoice. No demurrage listed.
	TEMU5582928					Freight Tech invoice. 13 days demurrage 15 days yard storage.
	TEXU7288541	Las Freight		Qingdao to Edison (CY/door)	ETA: Qingdao: 2/2/2015. ETA: NY,NY: 3/26/2015.	TLX Release
	TGHU4988750			Qingdao to Chicago		
	TRLU4651617	Las Freight	MSC	Qingdao to Las Vegas, NV (CY/door)		
	UACU5502837	Las Freight		Qingdao to Chicago(CY/CY)		

TRACK A SHIPMENT

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MSCUQY601828

Clear Search



Bill of lading: MSCUQY601828 (1 container)

Departure date	Vessel	Port of load
02/03/2015	MSC MELATILDE	QINGDAO, CN
Port of discharge	Transshipment	Price calculation date*
NEW YORK, US	NINGBO, CN	28/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

([HTTP://WCF.MSCGVA.CH/PUBLICASMX/TRACKING.ASMX/](http://wcf.mscgva.ch/publicasmx/tracking.asmx/))
VIEW RSS FEEDBILLNUMBER=MSCUQY601828)

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: MSCU4337608

Type	Final POD
40' DRY VAN	NEW YORK, US
Shipped to	Price calculation date*
NEW YORK, US	28/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
NEW YORK, NY, US	Empty in Container Yard ✓	23/04/2015		
NEW YORK, NY, US	Gate Out Full ✓	21/04/2015		
NEW YORK, NY, US	Carrier Release	20/04/2015	columbine maersk	511W
NEW YORK, NY, US	Customs Release	20/04/2015	columbine maersk	511W

Location	Description	Date	Vessel	Voyage
NEW YORK, NY, US	Discharged	14/04/2015	columbine maersk	511W
NEW YORK, NY, US	Carrier Release	09/04/2015	columbine maersk	511W
NINGBO, 33, CN	Transshipment Loaded	11/03/2015	COLUMBINE MAERSK	511W
NINGBO, 33, CN	Transshipment Discharged	06/03/2015	MSC MELATILDE	FJ510W
QINGDAO, 37, CN	Loaded	02/03/2015	MSC MELATILDE	FJ510W
QINGDAO, 37, CN	Gate In Full	28/02/2015		
QINGDAO, 37, CN	Empty to Shipper	25/02/2015		

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TRACK A SHIPMENT

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MSCUQY702634

Clear Search



Bill of lading: MSCUQY702634 (1 container)

Departure date	Vessel	Port of load
29/03/2015	MAERSK DENPASAR	QINGDAO, CN
Port of discharge	Transshipment	Price calculation date*
LONG BEACH, US		29/03/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: MSCU5670932

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
CHICAGO, US	29/03/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
CHICAGO, IL, US	Empty in Container Yard	09/06/2015		
CHICAGO, IL, US	Gate Out Full	01/05/2015		
LONG BEACH, CA, US	Customs Release	30/04/2015	MAERSK DENPASAR	513N
CHICAGO, IL, US	Arrived at rail ramp	29/04/2015		

CFD
5.5

26
+
35
D14J

460
160
4x 115
4x 165
27x 195
5205
#4385

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Carrier Release	28/04/2015	MAERSK DENPASAR	513N
LONG BEACH, CA, US	Rail departed Origin	25/04/2015		
LONG BEACH, CA, US	Loaded on Rail	24/04/2015		
LONG BEACH, CA, US	Discharged	17/04/2015	MAERSK DENPASAR	513N
QINGDAO, 37, CN	Loaded	02/04/2015	MAERSK DENPASAR	513N
QINGDAO, 37, CN	Gate In Full	26/03/2015		
QINGDAO, 37, CN	Empty to Shipper	25/03/2015		

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([HTTP://WCF.MSCGVA.CH/PUBLICASMX/TRACKING.ASMX/](http://wcf.mscgva.ch/publicasmx/tracking.asmx/))
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Type **Final POD**
40' **DRY VAN** LONG BEACH, US

Shipped to Price calculation date*

CHICAGO, US 12/04/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
CHICAGO, IL, US	Empty in Container Yard	17/06/2015	- IN	
CHICAGO, IL, US	Gate Out Full	06/05/2015	- out	
LONG BEACH, CA, US	Customs Release	04/05/2015	MAERSK DAMIETTA	515N
CHICAGO, IL, US	Arrived at rail ramp	04/05/2015		
LONG BEACH, CA, US	Rail departed Origin	30/04/2015		
LONG BEACH, CA, US	Loaded on Rail	29/04/2015		
LONG BEACH, CA, US	Carrier Release	27/04/2015	MAERSK DAMIETTA	515N
LONG BEACH, CA, US	Discharged	26/04/2015	MAERSK DAMIETTA	515N
QINGDAO, 37, CN	Loaded	12/04/2015	MAERSK DAMIETTA	515N
QINGDAO, 37, CN	Gate In Full	08/04/2015		
QINGDAO, 37, CN	Empty to Shipper	08/04/2015		

MSCU 5915505 - 12,600

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VIEW RSS FEEDCONTAINERNUMBER=MSCU59155

Det from

5/10 - 6/17

38 days

115
4 x 115 = 460
660
4 x 165
5850
30 x 195
5850
38
\$ 6,970 v. \$ 12,600

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MSCUQY776695



Clear Search

Bill of lading: MSCUQY776695 (1 container)

Departure date	Vessel	Port of load
12/04/2015	MAERSK DAMIETTA	QINGDAO, CN
Port of discharge	Transhipment	Price calculation date*
LONG BEACH, US		12/04/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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Container: MSCU5915505

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MSCUQY180351

Clear Search



Bill of lading: MSCUQY180351 (1 container)

Departure date	Vessel	Port of load
03/12/2014	MSC RAPALLO	QINGDAO, CN
Port of discharge	Transshipment	Price calculation date*
PHILADELPHIA, US	SHANGHAI, CN FREEPORT, GRAND BAHAMA, BS	29/11/2014

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

([HTTP://WCF.MSCGVA.CH/PUBLICASMX/TRACKING.ASMX/](http://wcf.mscgva.ch/publicasmx/tracking.aspx/?VIEW RSS FEEDBILLNUMBER=MSCUQY180351)
VIEW RSS FEEDBILLNUMBER=MSCUQY180351)

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: BMOU2709846

Type

20' DRY VAN

Shipped to

PHILADELPHIA, US

Final POD

PHILADELPHIA, US

Price calculation date*

29/11/2014

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
PHILADELPHIA, PA, US	Empty in Container Yard	26/02/2015		
PHILADELPHIA, PA, US	Gate Out Full	23/02/2015		
PHILADELPHIA, PA, US	Carrier Release	23/02/2015	MSC FEDERICA	501R
PHILADELPHIA, PA, US	Carrier Release	20/02/2015	MSC FEDERICA	501R

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Record

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MSCUQY354782

Clear Search



Bill of lading: MSCUQY354782 (1 container)

Departure date	Vessel	Port of load
10/01/2015	CMA CGM RIGOLETTO	QINGDAO, CN
Port of discharge	Transshipment	Price calculation date*
LONG BEACH, US		05/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

([HTTP://WCF.MSCGVA.CH/PUBLICASMX/TRACKING.ASMX/VIEW RSS FEEDBILLNUMBER=MSCUQY354782](http://wcf.mscgva.ch/publicasmx/tracking.asmx/viewrssfeedbillnumber=MSCUQY354782))

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: TTNU5206116

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
CHICAGO, US	05/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
CHICAGO, IL, US	Empty in Container Yard	01/04/2015		
CHICAGO, IL, US	Gate Out Full	25/02/2015		
CHICAGO, IL, US	Arrived at rail ramp	22/02/2015		
LONG BEACH, CA, US	Carrier Release	19/02/2015	CMA CGM RIGOLETTO	BH701

FD expim
STAR
MARCH 2

31 04/15

4x115 460
4x115 660
22x115 - 4290
\$ 5,410

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Rail departed Origin	19/02/2015		
LONG BEACH, CA, US	Loaded on Rail	19/02/2015		
LONG BEACH, CA, US	Loaded on Rail	19/02/2015		
LONG BEACH, CA, US	Discharged	17/02/2015	CMA CGM RIGOLETTO	BH701E

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MSCUQY368428

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Bill of lading: MSCUQY368428 (1 container)

Departure date	Vessel	Port of load
26/01/2015	MSC TARANTO	QINGDAO, CN
Port of discharge	Transshipment	Price calculation date*
NEW YORK, US	SINGAPORE, SG	21/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: CAXU4049893

Type	Final POD
40' DRY VAN	NEW YORK, US
Shipped to	Price calculation date*
NEW YORK, US	21/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
NEW YORK, NY, US	Empty in Container Yard	24/03/2015		
NEW YORK, NY, US	Gate Out Full	23/03/2015		
NEW YORK, NY, US	Discharged	17/03/2015	MAERSK SARNIA	1512
NEW YORK, NY, US	Customs Release	17/03/2015	MAERSK SARNIA	1512

Location	Description	Date	Vessel	Voyage
NEW YORK, NY, US	Discharged	16/03/2015	MAERSK SARNIA	1512
NEW YORK, NY, US	Carrier Release	13/03/2015	MAERSK SARNIA	1512
CHIWAN, 44, CN	Transshipment Loaded	15/02/2015	MAERSK SARNIA	1512

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MSCUQY427802

Clear Search



Bill of lading: MSCUQY427802 (2 containers)

Departure date	Vessel	Port of load
01/02/2015	MAERSK SYDNEY	QINGDAO, CN
Port of discharge	Transshipment	Price calculation date*
LONG BEACH, US		29/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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VIEW RSS FEEDBILLNUMBER=MSCUQY427802)

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: MSCU4807147

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
CHICAGO, US	29/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
CHICAGO, IL, US	Empty in Container Yard	16/04/2015		
CHICAGO, IL, US	Gate Out Full	28/03/2015		
LOS ANGELES, CA, US	Customs Release	26/03/2015	MAERSK SYDNEY	1502
CHICAGO, IL, US	Arrived at rail ramp	25/03/2015		

Location	Description	Date	Vessel	Voyage
LOS ANGELES, CA, US	Rail departed Origin	22/03/2015		
LOS ANGELES, CA, US	Loaded on Rail	21/03/2015		
LOS ANGELES, CA, US	Discharged	19/03/2015	MAERSK SYDNEY	1502
LOS ANGELES, CA, US	Carrier Release	19/03/2015	MAERSK SYDNEY	1502
LOS ANGELES, CA, US	Discharged	15/03/2015	MAERSK SYDNEY	1502

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VIEW RSS FEEDCONTAINERNUMBER=MSCU4807147)

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Container: MSCU4832324

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
CHICAGO, US	29/01/2015

15 48 15 480
 165 660
 195 - 1965

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
CHICAGO, IL, US	Empty In Container Yard	16/04/2015		
CHICAGO, IL, US	Gate Out Full	28/03/2015		
LOS ANGELES, CA, US	Customs Release	26/03/2015	MAERSK SYDNEY	1502
LOS ANGELES, CA, US	Rail departed Origin	22/03/2015		
LOS ANGELES, CA, US	Loaded on Rail	20/03/2015		
LOS ANGELES, CA, US	Carrier Release	19/03/2015	MAERSK SYDNEY	1502
LOS ANGELES, CA, US	Discharged	15/03/2015	MAERSK SYDNEY	1502

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MSCUQY456082

Clear Search



Bill of lading: MSCUQY456082 (1 container)

Departure date	Vessel	Port of load
01/02/2015	MAERSK SYDNEY	QINGDAO, CN
Port of discharge	Transhipment	Price calculation date*
LONG BEACH, US		29/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: MSCU5881621

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
LAS VEGAS, US	29/01/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Empty in Container Yard	07/04/2015		
LOS ANGELES, CA, US	Positioned Out	25/03/2015		
LOS ANGELES, CA, US	Customs Release	20/03/2015	MAERSK SYDNEY	1502
LOS ANGELES, CA, US	Discharged	19/03/2015	MAERSK SYDNEY	1502

9
4 x 115
4 x 115
195
460
660
195

Location	Description	Date	Vessel	Voyage
LOS ANGELES, CA, US	Carrier Release	16/03/2015	MAERSK SYDNEY	1502
LOS ANGELES, CA, US	Discharged	15/03/2015	MAERSK SYDNEY	1502

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MSCUQY454780

Clear Search



Bill of lading: MSCUQY454780 (1 container)

Departure date	Vessel	Port of load
07/02/2015	MSC PINA	QINGDAO, CN
Port of discharge	Transhipment	Price calculation date*
LONG BEACH, US		08/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: MSCU4271080

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
CHICAGO, US	08/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
CHICAGO, IL, US	Empty in Container Yard	22/05/2015		
CHICAGO, IL, US	Gate Out Full	02/04/2015		
LONG BEACH, CA, US	Customs Release	30/03/2015	MSC PINA	506N
CHICAGO, IL, US	Arrived at rail ramp	28/03/2015		

21 DAY,
4 x 115
4 x 165 + 460
138/25 92,535
\$3,155

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Rail departed Origin	25/03/2015		
LONG BEACH, CA, US	Loaded on Rail	23/03/2015		
LONG BEACH, CA, US	Discharged	22/03/2015	MSC PINA	506N
LONG BEACH, CA, US	Carrier Release	11/03/2015	MSC PINA	506N

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MSCUQY454798

Clear Search



Bill of lading: MSCUQY454798 (1 container)

Departure date	Vessel	Port of load
07/02/2015	MSC PINA	QINGDAO, CN
Port of discharge	Transhipment	Price calculation date*
LONG BEACH, US		08/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: MSCU4867660

4x 115' = 460
3x 165' = 495
460 + 495 = 955

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
LAS VEGAS, US	08/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Empty in Container Yard	09/04/2015		
LONG BEACH, CA, US	Positioned Out	30/03/2015		
LONG BEACH, CA, US	Discharged	24/03/2015	MSC PINA	506N
LONG BEACH, CA, US	Customs Release	17/03/2015	MSC PINA	506N

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Carrier Release	11/03/2015	MSC PINA	506N

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MSCUQY559315

Clear Search



Bill of lading: MSCUQY559315 (1 container)

Departure date	Vessel	Port of load
15/02/2015	MSC ROMA	QINGDAO, CN
Port of discharge	Transshipment	Price calculation date*
LONG BEACH, US		13/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

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B/L issued by MSC QINGDAO (BRANCH OFFICE)

Container: TRLU4651517

Type	Final POD
40' DRY VAN	LONG BEACH, US
Shipped to	Price calculation date*
LAS VEGAS, US	13/02/2015

* Price calculation date is indicative. Please contact your local MSC office to verify this information.

Movements

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Empty in Container Yard	31/03/2015		
LONG BEACH, CA, US	Positioned Out	25/03/2015		
LONG BEACH, CA, US	Positioned In	24/03/2015		
LONG BEACH, CA, US	Positioned Out	24/03/2015		

Location	Description	Date	Vessel	Voyage
LONG BEACH, CA, US	Discharged	21/03/2015	MSC ROMA	507N
LONG BEACH, CA, US	Customs Release	17/03/2015	MSC ROMA	507N
LONG BEACH, CA, US	Carrier Release	17/03/2015	MSC ROMA	507N
QINGDAO, 37, CN	Loaded	15/02/2015	MSC ROMA	FO507N
QINGDAO, 37, CN	Gate In Full	13/02/2015		

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EXHIBIT F1

FLDR	CONT #	FREIGHT #	INVOICE	ARRIVED	DATE RECEIVED	DAYS OF DEMURR AGE	SBA DEMURRAGE ACTUAL	Per MSC Tracking (gate out)	Per MSC Tracking (gate in)		
1	PCIU8685950	N612484	RR3555A	4/21/14	4/21/14	N/A	N/A				
2	PCIU8352944	N612485	RR3555-2	5/19/14	5/23/14	1	\$ 425.00				
3	MEDU3113127	N612525	HARBIN	5/28/14	6/11/14	11	\$ 1,905.00				
5	N/A LCL	N770087	N/A	7/6/14	7/14/14	N/A	N/A				
6	UACU5377170	N770461	CXINV140728	9/4/14	9/12/14	N/A	N/A				
7	UACU8183883	N770506	RR3555&R143670	8/28/14	8/26/14	N/A	N/A				
8	UACU8157328	N770519	R143704-1	9/5/14	9/9/14	N/A	N/A				
9	MEDU2212151	N770553	FPINV140808	9/6/14	9/19/14	10	\$ 1,535.00				
10	MSCU5926290	N770552	HXINV140808	9/18/14	9/26/14	5	\$ 250.00				
11	UACU5502837	N770520	4941	9/9/14	9/12/14	N/A	N/A				
13	TTNU5524101	N770647	HXINV140820	9/25/14	10/1/14	3	\$ 1,781.25				
16	TTNU4343813	N770856	HXINV140920	11/1/14	11/13/14	9	\$ 2,206.25				
17	MATU2315044	N770915	FPINV140926	10/12/14	11/24/14	40	\$ 3,740.00				
19	CLHU8658659	B770924	INV5476	11/8/14	2/16/15	97	\$ 27,100.00				
21	TCKU1771451	N771018	FPINV141010	12/5/14	12/12/14	4	\$ 950.00				
25	TCLU4015624	B771043	HXINV141016	12/7/14	2/25/15	77	\$ 21,900.00				
27	NYKU3251483	B771104	FPINV141023	12/19/14	2/18/15	58	\$ 14,300.00				
29	TGHU1013740	N771189	FPINV141104	12/1/14	1/19/15	46	\$ 6,650.00				
33	BMOU2709846	B771383	FPINV141128	2/14/15	3/17/15	31	\$ 9,600.00	2/23/15	2/26/15	\$0	
36	GLDU9630402	B771501	FPINV141216	1/24/15	2/13/15	20	\$ 6,325.00				
42	TTNU5206116	B771584	CXINV150105	2/22/15	3/26/15	32	\$ 9,900.00	2/25/15	4/1/2015	\$5410	
43	TRIU5347886	B771645	CXINV150114	3/15/15	3/26/15	10	\$ 2,700.00				
44	CAXU4049893	B771678	FPINV150118	3/19/15	6/8/15	81	\$ 6,650.00	3/23/15	3/24/15	\$0	
46	MSCU4807147	B771716	SSINV150127	3/27/15	4/14/15	18	\$ 8,400.00	3/28/15	4/16/15	\$4970	
49	MSCU5881621	B771756	CXINV150130	3/27/15	4/17/15	21	\$ 4,200.00	3/25/15	4/7/15	\$1315	
50	MSCU4271080	B771762	SSINV15205	3/30/15	5/20/15	51	\$ 12,250.00	4/2/15	5/22/15	\$3655	
51	MSCU4867660	B771763	CXINV150205	4/3/15	4/17/15	14	\$ 3,600.00	3/30/15	4/9/15	\$955	
52	TRHU3313918	B771769	FPINV150205	3/26/15	5/12/15	47	\$ 14,100.00				

53	TRLU4651517	B771807	CXINV150213	3/31/15	5/26/15	56	\$ 8,735.00	3/25/15	3/31/15	\$0	
54	MSCU4337608	B771910	HXINV150301	4/4/15	5/29/15	55	\$ 7,154.00	4/21/15	4/23/15	\$0	
56	KKFU6726637	B851990	SSINV150301A	3/31/15	5/22/15	52					
58	MSCU5670932	B852112	SSINV150331	5/4/15	6/8/15	35	\$ 12,000.00	5/1/15	6/9/15	\$6385	
59	KKFU1167644	B852232	SSINV150402	4/29/15	7/22/15	84	\$ 8,326.00				
60	KKFU1363499	B852230	CXINV150405	4/29/15	7/16/15	78	\$ 39,468.00				
61	KKFU1614383		CXINV150408	4/29/15	7/9/15	71					
62	MSCU5915505	B852231	SSINV150404	5/7/15	6/12/15	36	\$ 12,600.00	5/6/15	6/17/15	\$6970	

MSC original: \$95,089

Revised: \$29,660

EXHIBIT G

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,
COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

**DECLARATION OF MARIA T. VEGA IN SUPPORT OF JUDGMENT AGAINST LAS
FREIGHT SYSTEM LTD.**

1. My name is Maria T. Vega. I am the Financial Controller of CMI Distribution, Inc. ("CMI"). I have acted in that capacity since 2014. This Declaration is based upon my personal knowledge.

2. The total amount of damage for which relief is sought by CMI is \$276,050.50.

3. Las Freight issued bills of lading for the transportation at issue. Exh. G-1.

4. In some instances, Las Freight's bills of lading identified CMI as the consignee. Exh. G-1. In other instances, CMI was identified as the shipper on the Las Freight bill of lading. *Id.*

5. With the exception of one shipment (Folder No. 17, Exh. F-1), the Las Freight bills of lading were through bills of lading showing that the goods were to move from either Qingdao, China, Dalian, China or Shanghai, China through U.S. ports to inland door locations in the United States. Exh. G-1. Most of the inland door locations were in Chicago, Illinois but other door locations were in Alabama, Nevada, New Jersey, Pennsylvania, or Arizona. *Id.*

6. Whether CMI was the shipper or the consignee, SBA was identified as Las Freight's agent for delivery of the goods. Exh. G-1.

7. Whether CMI was the shipper or the consignee, the goods were withheld from delivery until CMI paid what was characterized as demurrage.

8. For Folder No. 17, the shipment was a container yard to container yard shipment. Exh. F-1. That shipment was not released to CMI until demurrage was paid.

9. The invoices issued to CMI by Las Freight's agent, Service by Air, Inc. ("SBA") were rife with errors and inconsistencies.

10. Throughout the time period when Las Freight was providing transportation services to CMI, CMI's employees repeatedly requested that Las Freight's agent, SBA provide CMI with details regarding the basis for the demurrage charges being assessed, the amount of demurrage or storage charges it was assessing against CMI, and what parties were actually providing the underlying services. Exh. A-8.

11. Las Freight's agent, SBA, consistently refused to provide accurate information and supporting documentation. To the extent that SBA provided documentation regarding the charges it was assessing against CMI, the documentation was varying and often incorrect.

12. The invoices issued by Las Freight's agent, SBA, to CMI were also often misleading, inconsistent and simply wrong.

13. It was standard practice for Las Freight's agent, SBA, to issue invoices that did not break down the cost of demurrage or specify the days of demurrage. Deposition of Ed Zasada ("Zasada Dep.") at 19:23-20:8; Exh. C.

14. The failure to include basic information regarding the charges being assessed made it impossible for CMI to determine the number of days involved and the rates per day for the demurrage for which CMI was being charged.

15. CMI was hindered in its ability to conduct an audit of the charges assessed by or on behalf of Las Freight based on the fact that Las Freight has not participated in this proceeding and has not provided documentation or information in its possession relevant to the shipments at issue in this proceeding and the damages claimed by CMI. The lack of documentation and information from Las Freight has hindered and foreclosed CMI's ability to ascertain the extent to which charges it was assessed had a lawful basis.

16. When CMI was able to determine the dates when specific containers at issue were gated out and gated in by reviewing MSC's automated container tracking system, the evidence reflects that the number of days for which charges were assessed against CMI were often incorrect and seriously inflated. *See* Ferreira Report, Exh. F. For example, for the shipment in Folder No. 33, CMI was assessed for 31 days of "demurrage." *Id.* MSC's automated container tracking system, however, reflects that the container at issue was gated out on February 23, 2015 and gated in, *i.e.*, returned to MSC, three days later on February 26, 2015. *Id.* Thus, even if Las Freight had a basis for the charges in its tariff, CMI should not have been charged for 31 days. *Id.* Indeed, because MSC's tariff allows for four days of free time under its detention rules, there should have been no charge – no matter how they are justified. *Id.*

17. Even presuming that Las Freight could charge CMI at all for detention – given that it incorrectly invoiced CMI for demurrage and that Las Freight does not have a detention rule in its tariff – the charges assessed are unjustified.

18. CMI was invoiced by SBA as Las Freight's agent. CMI paid SBA, \$276,060.50 in what SBA characterized as primarily demurrage charges, but also a small number of detention and storage charges.

19. SBA billed CMI for \$1,535 in detention charges. Exh A-15.

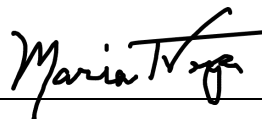
20. Steve Ferreira's Expert Report reflects that for some of the shipments that MSC moved the cargo, CMI was overcharged \$65,429. Exh. F.

21. CMI reviewed documents produced in discovery by SBA that consisted of demurrage, detention and storage charges assessed against SBA by drayage companies. (CMI did not duplicate the calculations made by Steve Ferreira). CMI then compared the amount that SBA had been charged for demurrage, detention and storage charges with the amount that SBA charged CMI for demurrage, detention and storage. These documents reflect that SBA marked up such charges by \$42,570.

22. For some of the demurrage charges at issue, CMI received invoices from SBA but no underlying invoice was provided by a drayage company. The total amount of the charges for SBA invoices falling in that category was \$91,096.50.

23. Adding the totals in paragraphs 20 to 22, CMI was overcharged by \$199,095.50.

Pursuant to 28 U.S.C. §1746, I declare under penalty of perjury that the foregoing is true and correct.

A handwritten signature in black ink, appearing to read "Maria T. Vega", is written over a horizontal line.

Maria T. Vega

EXHIBIT G1

Shipper

WEIFANG SUNSHINE PLASTIC CO., LTD.
ANQIU TOWN, WEIFANG CITY, SHANDONG, CHINA

Consignee

OMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090, USA

Notify Address

SAME AS CONSIGNEE

Pre-carriage by

MAERSK SYDNEY

*Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

MAERSK SYDNEY

Port of Loading

QINGDAO CHINA

Port of Discharge

1602

*Final destination of goods to be transhipped at port of discharge

Freight payable at

Number of original B(s)/L

LONG BEACH, CA

CHICAGO, IL

THANK

Marks & Nos. / Container Nos.

N/M

Number and kind of packages; description of goods

7820
CTNSPLASTIC BAGS
(COLONIAL CAN LINERS)

CY TO CY 2*40GP

SAY TOTAL SEVEN THOUSAND EIGHT
HUNDRED AND TWENTY CARTONS

"ORIGINAL" HBL REQUIRED

Gross weight kgs

Measurement m³

38850.0000

KGS

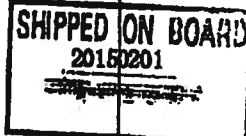
90.0000

CBM

MSCU4807147/FEX7120090 40GP
MSCU4832324/FEX7160396 40GP

TKS!

FOB QINGDAO



FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

7, 820 CTNS

Freight and charges

Place of B(s)/L issue

Date

FOR DELIVERY OF GOODS PLEASE APPLY TO:

QINGDAO CHINA 20160201

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSenville, IL 60106, USA
TEL: 630-618-1212
FAX: 630-618-1112

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

Original

BILL OF LADING

BL No.

QINCHI1502004

Nationality of Ocean Vessel

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27690055 Fax: 886-2-27639070

台北市光復北路11巷44號10樓
海運承運通運許可證字號: 海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely go and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Shipper
HEILONGJIANG LONGSHENG IMPORT & EXPORT CO., LTD
NO. 1 HENGSHAN ROAD, HARBIN CHINA

Original

BILL OF LADING

B/L No.	DLCXH11406001
Nationality of Ocean Vessel	

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090
TEL:001-874-947-7400 FAX:001-874-947-7418

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
 Tel:886-2-27690055 Fax:886-2-27639070
 台北市光復北路11巷44號10樓
 海運承攬運送業許可證字號：海運(基)字第555號

Notify Address

SAME AS CONSIGNEE

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by	*Place of Receipt by Pre-carrier
EMAZZAH	DALIAN, CHINA
Port of Discharge	*Final destination (if goods to be transhipped at port of discharge)
EMAZZAH	DALIAN, CHINA
0029V	Freight payable at
	Number of original B(s)/L

LOS ANGELES, USA

CHICAGO, USA

THREE

Mark & Nos. / Container Nos.	Number and kind of packages: description of goods	Gross weight kgs	Measurement m ³
CANDY APPLE STICKS CHAMFERED	102 CANDY APPLE STICKS CASES PO#0003258 (2013EG164) C/S 10 C/S SAY TOTAL ONE HUNDRED AND TWO CASES	1521.0000 KGS 3.4000 CBM	
	FOB DALIAN		
		SHIPPED ON BOARD 20140607	
	FREIGHT COLLECT		
TOTAL PACKAGE(S) (IN WORDS)	SHIPPER'S LOAD, COUNT AND SEAL.		

Freight and charges	102CASES	Place of B(s)/L issue	Dated
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FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60108, USA
TEL: 630-616-1212
FAX: 630-616-1112
ATTN: Mr. Bryan J. Tincher

Signed for the Carrier **DALIAN, CHINA 20140607**
LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT001949

Shipper

WEIPANG CHENXI PLASTIC PRODUCTS CO., LTD.
WEST OF LIJIAHE VILLAGE QIAOQUAN TOWN CHANGLE COUNTY
SHANDONG CHINA

Original

Bl. No. QINCH11601007

Nationality of Ocean Vessel

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Notify Address

SAME AS CONSIGNER

LAS FREIGHT SYSTEM LTD.
台遠運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27880055 Fax: 886-2-27839070
台北市光復北路11巷44號10樓
海運承攬運送業許可證字號：海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge by its crew there as the vessel may safely get and be always afloat.

The weight, measure, marks, numberings, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by

MAERSK SINGAPORE

Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

MAERSK SINGAPORE 1512

Port of Loading

QINGDAO CHINA

Port of Discharge

LONG BEACH, CA

Place of destination (if goods to be transhipped at port of discharge)

CHICAGO, IL

Freight payable at

Number of original Bill(s)

THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages; description of goods

4017

CTNS

PLASTIC BAGS
(COLONIAL BAGS)

CY TO CY 1*40GP

SAY TOTAL FOUR THOUSAND AND
SEVENTEEN CARTONS

Gross weight kg

19500 0000

25.0000

Measurement m³

KGS

CBM

"ORIGINAL" HBOL REQUIRED.

TRI05347886/FEK7120807 40GP

Tics!

FOB QINGDAO

SHIPPED ON BOARD
20150117

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

4, 017 CTNS

Freight and charges

Place of Bill of Lading

Date

QINGDAO CHINA 20150117

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 JENNIFER AVE
HAWTHORNE, IL 60106, USA
TEL: 830-818-1112

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

Shipper

WEIFANG CHENXI PLASTIC PRODUCTS CO., LTD.
WEST OF LIJIAHE VILLAGE QIAOGUAN TOWN CHANGLE COUNTY
SHANDONG CHINA

Original

BL No. QINCHI1501001
Nationality of Ocean Vessel

BILL OF LADING

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司
10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27890055 Fax: 886-2-27838070
台北市光復北路11巷44號10樓
海運承攬運送業許可證字號: 海撰(基)字第655號

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Notify Address

SAME AS CONSIGNEE

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by

Place of Receipt by Pre-carrier

CMA CGM RIGOLETTO

QINGDAO CHINA

CMA CGM RIGOLETTO

QINGDAO CHINA

Final destination of goods to be transhipped at port of discharge

Freight payable at

Number of original B/Ls

THREE

LONG BEACH CA

CHICAGO IL

Marks & Nos./Container Nos.

Number and kind of packages; Description of goods

Gross weight kgs

Measurement m³

N/M

3420
CTNS

PLASTIC BAGS
CY TO CY 1*40GP

SAY TOTAL THREE THOUSAND FOUR
HUNDRED AND TWENTY NINE CARTONS

19500.0000 KGS
45.0000 CBM

TTNU5206116/FEX6644638 40GP

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

3, 429CTNS

Freight and charges

Place of B/Ls issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SRA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 HENDREE AVE
BENSENVILLE, IL 60106, USA
TEL: 630-616-1212
FAX: 630-616-1112

QINGDAO CHINA 20150109
Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003442

Shipper

YANTAI FOODPACK PACKAGING PRODUCTS CO., LTD
INDUSTRIAL ZONE FUSHAN DISTRICT YANTAI
SHANDONG CHINA

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Notify Address

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Pre-carriage by

COSCO KOREA

Ocean Vessel

COSCO KOREA

035R

Port of Discharge

LONG BEACH, USA

*Place of Receipt by Pre-carrier

QINGDAO CHINA

Port of Loading

QINGDAO CHINA

*Final destination (if goods to be transhipped at port of discharge)

CHICAGO, USA

Freight payable at

Number of original B/Ls

THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages; description of goods

6180

CTNS

LDPE BAGS
PO#OS227

CY TO CY 2*20GP

SAY TOTAL SIX THOUSAND ONE
HUNDRED AND EIGHTY NINE CARTONS

Gross weight kgs

21200.0000

Measurement m³

58.0000 CBM

Copies Furnished by Merchants

GLDU9630402/YMLQ553759 20GP
TRMU5582928/YMLQ553758 20GP

-X. "ORIGINAL" HDOL REQUIRED
TICKS &

FOB QINGDAO

SHIPPED ON BOARD
20141222

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

6, 189CTNS

Freight and charges

Place of B/L issue

Dated

QINGDAO CHINA 20141222

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE BENSENVILLE, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport B/L of Lading

Original

BILL OF LADING

B/L No. QINCHI1412006

Nationality of Ocean Vessel

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27890055 Fax: 886-2-27839070
台北市光復北路11巷44號10樓
海運承運通達業許可證字號: 海廣(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

RADIANT003393

Shipper

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Original

BILL OF LADING

BL No. QINC11411009

Nationality of Ocean Vessel

Consignee

ULTA DISTRIBUTION CENTER
96 KRINER ROAD CHAMBERSBURG, PA 17202

Notify Address

ULTA DISTRIBUTION CENTER
96 KRINER ROAD CHAMBERSBURG, PA 17202

LAS FREIGHT SYSTEM LTD.

台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.

Tel: 886-2-27880065 Fax: 886-2-27889070

台北市光復北路11巷44號10樓

海運承運運業許可證字號: 海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by

MSC RAPALLO

Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

MSC RAPALLO

FT449R

Port of Loading

QINGDAO CHINA

Port of Discharge

PHILADELPHIA, PA

*Final destination of goods to be transhipped at port of discharge

PHILADELPHIA, PA

Freight payable at

Number of original B/Ls
THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages; description of goods

4600

LDPE BAGS

CTNS

POHOS216

CY TO CY 1*20GP

SAY TOTAL FOUR THOUSAND AND SIX
HUNDRED CARTONS

Gross weight kgs

13400.0000 KGS

Measurement m³

29.0000 CBM

Particulars furnished by Merchants

BMOU2709846/FRX6664596 20GP

* "ORIGINAL"

HYBOL

12 REQUIRED

FOB QINGDAO

SHIPPED ON BOARD
20141203

Tics!

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

4, 600 CTNS

Freight and charges

Place of B/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SRA (SERVICE BY AIR) GLOBAL LOGISTICS (ORD)
811 BOURDALE AVE BENSenville, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

QINGDAO CHINA 20141203

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003368

Shipper

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Consignee

ULTA DISTRIBUTION CENTER
4570 W LOWER BUCKEYE ROAD PHOENIX AZ 85043

Notify Address

ULTA DISTRIBUTION CENTER
96 KRINER ROAD CHAMBERSBURG, PA 17202

Pre-carriage by

CMA CGM MEDRA

Ocean Vessel

CMA CGM MEDRA

Port of Discharge

LONG BEACH, CA

*Place of Receipt by Pre-carrier

QINGDAO CHINA

Port of Loading

QINGDAO CHINA

*Final destination (if goods to be transhipped at port of discharge)

PHOENIX, AZ

Freight payable at

Number of original B/Ls

THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages; description of goods

4600
CTNSLDPE BAGS
PO#0005820

CY TO CY 1*20GP

SAY TOTAL FOUR THOUSAND AND SIX
HUNDRED CARTONS

Gross weight kgs

13900.0000

KGS

29.0000

CBM

GHU1013740/PEX6382062 20GP

BOB QINGDAO ...

SHIPPED ON BOARD

20141108

FREIGHT COLLECT

SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

4, 600CTNS

Freight and charges

Place of B/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE BENSenville IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

Signed for the carrier

QINGDAO CHINA 20141108

LAS FREIGHT SYSTEM LTD.

AS CARRIER

Original

BILL OF LADING

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.

Tel: 886-2-27690055 Fax: 886-2-27699070

台北市光復北路11巷44號10樓

海運承攬運送業許可證字號: 海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

B/L No.

QINCHL1411001

Nationality of Ocean Vessel

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003335

Shipper
YANTAI FOODPACK PACKAGING PRODUCTS CO., LTD
INDUSTRIAL ZONE FUSHAN DISTRICT YANTAI
SHANDONG CHINA

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Notify Address

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Pre-carriage by
HANOVER EXPRESS

Place of Receipt by Pre-carrier
QINGDAO CHINA

Ocean Vessel
HANOVER EXPRESS 052E

Port of Loading
QINGDAO CHINA

Port of Discharge
TACOMA, WA

Final destination if goods to be transhipped at port of discharge
CHICAGO, IL

Freight payable at

Number of original B/L
THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages: description of goods

4600
CTNS

LDPE BAGS
PO#0005819

CY TO CY 1*20GP

SAY TOTAL FOUR THOUSAND AND SIX
HUNDRED CARTONS

Gross weight kgs

13478.0000

29.0000

Measurements m³

KGS

CBM

"ORIGINAL" HBL REQUIRED. TICS!

NYKU3251483/CNO250392 20GP

FOB QINGDAO

SHIPPED ON BOARD
20141028

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

4, 600CTNS

Freight and charges

Place of B/L issue

Dated

QINGDAO CHINA 20141028

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE BENSENVILLE, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport B/L of Lading

Original

BILL OF LADING

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan
Tel: 886-2-27890055 Fax: 886-2-27899070
台北市光復北路11巷44號10樓
海運承攬運輸業許可證字號: 海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

BL QINCHIT1410013

Nationality of Ocean Vessel

RADIANT003305

Shipper
CHANGLE HUAXIN PLASTIC PRODUCTS CO., LTD
INDUSTRIAL ROAD 18#, BAOCHENG
PIONEER PARK, CHANGLE COUNTY SHANDONG CHINA

Original
BILL OF LADING

BL: QLNCH11410003
Nationality of Ocean Vessel

Consignee
CMU DISTRIBUTION, LLC
555 ALLENDALE DR
WHEELING, IL 60090 UNITED STATES

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司
 10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
 Tel: 886-2-27680055 Fax: 886-2-27639070
 台北市光復北路11巷44號10樓
 海運承運通運業許可證字號: 海農(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Notify Address

SAME AS CONSIGNEE

Pre-carriage by BUDAPEST EXPRESS	Place of Receipt by Pre-carrier QINGDAO CHINA
Ocean Vessel BUDAPEST EXPRESS 025E	Port of Loading QINGDAO CHINA
Port of Discharge TACOMA, WA	Final destination of goods to be transhipped at port of discharge CHICAGO, IL
Freight payable at	Number of original B/L's THREE

Mark & Nos. / Container Nos.	Number and kind of packages; description of goods	Gross weight kgs	Measurement m³
N/M	1003 HDPE BAGS	19500.0000	KGS
	CTNS POW0005815	50.0000	CBM
	CY TO CY 1*40GP		
	SAY TOTAL ONE THOUSAND NINE HUNDRED AND NINETY THREE CARTONS		
	FOB QINGDAO		
	"ORIGINAL" HBOL REQUIRED.		
	Ties?		
	SHIPPED ON BOARD		
	20141021		
	FREIGHT COLLECT		
	SHIPPER'S LOAD, COUNT AND SEAL		
TOTAL PACKAGE(S) (IN WORDS)	1,993CTNS		

Freight and charges

Place of B/L Issue

Date

QINGDAO CHINA 20141021

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
611 THORNDALE AVE Bensenville, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003267

Shipper
CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Original

BILL OF LADING

BL# QINCH11410001

Nationality of Ocean Vessel

Consignee

ULTA DISTRIBUTION CENTER
96 KRINER ROAD CHAMBERSBURG, PA 17202

Notify Address

ULTA DISTRIBUTION CENTER
96 KRINER ROAD CHAMBERSBURG, PA 17202

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27690055 Fax: 886-2-27639070
台北市光復北路11巷44號10樓
海運承運送業許可證字號：海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the Insurance upon their goods.

Pre-carriage by
MSC LUCIANA

Place of Receipt by Pre-carrier
QINGDAO CHINA

Ocean Vessel
MSC LUCIANA

FO442A

Port of Loading
QINGDAO CHINA

Port of Discharge
LONG BEACH, CA

Final destination (if goods to be transhipped at port of discharge)
PHILADELPHIA, PA

Freight payable at

Number of original B/Ls
THREE

Marks & Nos. / Container Nos.	Number and kind of packages; description of goods	Gross weight kgs	Measurement m³
N/M	8087 LDPE BAGS CTNS PO#0005398 CY TO CY 1*20GP SAY TOTAL FIVE THOUSAND AND EIGHTY SEVEN CARTONS	14400.0000 29.0000	KGS CBM
TOTAL PACKAGE(S) (IN WORDS)		5, 087 CTNS	

Particulars furnished by Merchants

X. "ORIGINAL" HBOL REQUIRED.

PKU1771451/FEX6379601 20GP

Ticsb

FOB QINGDAO

SHIPPED ON BOARD
20141019

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL.

Freight and charges

Place of B/L Issue

Dated

QINGDAO CHINA 20141019

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE BENSENVILLE, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003262

Shipper

ZIBO HONGYESHANGQIN PLASTIC AND RUBBER CO., LTD
THE INDUSTRIAL ZONE, FANGZHEN TOWN, ZIBO, CHINA

Original

B/L No. LINCH11410004

Nationality of Ocean Vessel

BILL OF LADING

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.

Tel: 886-2-27690055

Fax: 886-2-27639070

台北市光復北路11巷44號10樓

海運承運運送單許可證字號: 海運(基)字第555號

Consignee

CMI DISTRIBUTION LLC

555 ALLENDALE DR WHEELING, IL 60090

PHONE: 1 847 9477400

FAX: 1 847 9477418

Notify Address

CMI DISTRIBUTION LLC

555 ALLENDALE DR WHEELING, IL 60090

PHONE: 1 847 9477400

FAX: 1 847 9477418

Pre-carriage by

CMA CGM RIGOLETTO

Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

CMA CGM RIGOLETTO BH677E QINGDAO CHINA

Port of Loading

Port of Discharge

LONG BEACH, CA

Final destination of goods to be transhipped at port of discharge

CHICAGO, IL

Freight payable at

Number of original B/L

THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages: description of goods

3300
CTNSDISPOSABLE VINYL GLOVES
PO#0005476

CY TO CY 1*40HQ

SAY TOTAL THREE THOUSAND AND
THREE HUNDRED CARTONS

Gross weight kgs

17842.0000

KGS

65.0000

CBM

FOB QINGDAO

SHIPPED ON BOARD
20141009

ECLHU8658659/PEX6420127 40HQ

Freight and charges

Place of B/L issue

Dated

QINGDAO CHINA 20141009

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
555 ALLENDALE AVE
WHEELING, IL 60090, USA TEL: 630-616-1212
FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003251

Shipper
CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

DRAFT

BALNSHACHI1409009

Nationality of Ocean Vessel

BILL OF LADING

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27890055 Fax: 886-2-27839070
台北市光復北路11巷44號10樓
海運承攬運送業許可證字號：海運(基)字第555號

Consignee

ULTA DISTRIBUTION CENTER
4570 W LOWER BUCKEYE ROAD PHOENIX AZ 85043

Notify Address

ULTA DISTRIBUTION CENTER
4570 W LOWER BUCKEYE ROAD PHOENIX AZ 85043

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by MANUKAI	*Place of Receipt by Pre-carrier SHANGHAI, CHINA
Ocean Vessel MANUKAI	Port of Loading SHANGHAI, CHINA
Port of Discharge LONG BEACH, CA	*Final destination (if goods to be transhipped at port of discharge) LONG BEACH, CA
Freight payable at	Number of original B/L's THREE
Mark & Nos. / Container Nos. N/M	Number and kind of packages; description of goods 5515 LDPE BAGS PO#0005397 CTNS CY TO CY 1*40GP SAY TOTAL FIVE THOUSAND FIVE HUNDRED AND FIFTEEN CARTONS
Gross weight kgs 18800.0000	Measurement m ³ 45.3600 CBM
POB 20141001	
TOTAL PACKAGE(S) (IN WORDS) 5, 515 CTNS	

Freight and charges

Place of B/L issue

Dated

SHANGHAI, CHINA 20141001

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60106, USA
TEL: 630-616-1212
FAX: 630-616-1112

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003235

Shipper CMI DISTRIBUTION, LLC 555 ALLENDALE DR WHEELING IL 60090 PHONE: +1 847 9477400 FAX: +1 847 9477418		Original BILL OF LADING LAS FREIGHT SYSTEM LTD. 台運通股份有限公司 10F, No. 44 Lane 11, Xiang Fu N. Road, Taipei, Taiwan. Tel: 886-2-27698855 Fax: 886-2-27698870 台北市光復北路11巷44號10樓 海運承運通運新可國字號: 均廣 (高) 字號555號 Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein are to be discharged at the above mentioned port of discharge or at any other place as the vessel may safely get and be always afloat. The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof, one of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order. In witness whereof, the Carrier or its Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void. Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the Receipts upon their goods.	
Consignee HERCULAS POLY INC 701 INDUSTRIAL DR PERRYVILLE MO 63775		Notify Address SAME AS CONSIGNEE	
Place of Receipt by Pre-carrier CHA OCM NEIRA QINGDAO CHINA		Port of Loading CHA OCM NEIRA QINGDAO CHINA	
Port of Discharge LONG BEACH, CA		Place of Delivery of goods to be transported at port of discharge BIRMINGHAM, AL	
Number and kind of packages description of goods N/A 2440 CINS HEPS BAGS F00005088 F00003848 CY TO CY 1+40G' SAY TOTAL TWO THOUSAND FOUR HUNDRED AND FORTY CARTONS TTU04343813/FEX8367871 40CP		Weight Gross weight kg 19500.0000 KGS 50.0000 CRY FOB QINGDAO SHIPPED ON BOARD 20140928 TLX RELEASE FREIGHT COLLECT SHIPPER'S LOAD, COUNT AND SEAL	
TOTAL PACKAGE(S) (IN WORDS) 2, 440 CINS		Freight and charges Freight collect	
FOR DELIVERY OF GOODS PLEASE APPLY TO: SBA (SERVICE BY AIR) GLOBAL LOGISTICS/WRD 811 THORNDALE AVE BENSenville, IL 60106, USA TEL: 630-616-1212 FAX: 630-616-1112		Place of Issue QINGDAO CHINA 20140928 Signed for the Carrier LAS FREIGHT SYSTEM LTD. AS CARRIER	

发自我的 iPhone

在 2014年11月12日, 上午11:11, Mike Gallo <mikeg@cmipackaging.com> 写道:

David,

Why what's going on with this container. We paid please check

RADIANT000758

Shipper
CMI DISTRIBUTION, LLC
 555 ALLENDALE DR
 WHEELING IL 60090
 PHONE: +1 847 9477400 FAX: +1 847 9477418

Original

BILL OF LADING

BA. No.
QINCH11408007
 Nationality of Ocean Vessel

Consignee
HERCULES POLY INC
 315 MAIN STREET
 ECECTIC AL 38024

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司
 10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
 Tel: 886-2-27690055 Fax: 886-2-27639070
 台北市光復北路11巷44號10樓
 海運承攬運送業許可證字號：海運（基）字第555號

Notify Address

SAME AS CONSIGNEE

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by CMA CGM ORFEO Place of Receipt by Pre-carrier QINGDAO CHINA
 Consignee CMA CGM ORFEO Port of Loading QINGDAO CHINA
 Port of Discharge CMA CGM ORFEO DISCHGR QINGDAO CHINA
 Port of destination (if goods to be transhipped in part or discharge) QINGDAO CHINA Freight payable at QINGDAO CHINA Number of original B/Ls THREE

Mark & Nos. / Container Nos.	Number and kind of packages; description of goods	Gross weight kgs	Measurement m ³
LONG BEACH CA	BERMINGHAM AL	THREE	
N/M	2420 HDPE BAGS	19500.0000	KGS
	CINS CY TO CY 1*40GP	50.0000	CBM
	SAY TOTAL TWO THOUSAND FOUR HUNDRED AND TWENTY CARTONS		
X. "ORIGINAL" HBOL REQUIRED. Ties! FOR QINGDAO SHIPPED ON BOARD 20140822			
MSCU6926280/FEK5419069 40GP			
	FREIGHT COLLECT		
TOTAL PACKAGE(S) (IN WORDS)	SHIPPER'S LOAD, COUNT AND SEAL		
Freight and charges	2,420 CINS	Place of B/Ls issue	Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
 811 THORNDALE AVE
 BENSENVILLE, IL 60106, USA
 TEL: 630-616-1212 FAX: 630-616-1112

Signed for the Carrier **QINGDAO CHINA 20140822**
LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003733

Shanghai
YANTAI FOODPACK PACKAGING PRODUCTS CO., LTD
INDUSTRIAL ZONE FUSHAN DISTRICT YANTAI
SHANDONG CHINA

Original
BILL OF LADING

B/L No.	QINCRL1408008
Nationality of Ocean Vessel	

Consignee
CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司
10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27690055 Fax: 886-2-27639070
台北市光復北路11巷44號10樓
海運承攬運輸業許可證字號：海運（基）字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the Insurance upon their goods.

Notify Address

SAME AS CONSIGNEE

Pre-carriage by	Place of Receipt by Pre-carrier
CMA CGM MEDRA	QINGDAO CHINA
Ocean Vessel	Port of Loading
CMA CGM MEDRA	QINGDAO CHINA
Port of Discharge	Final destination (if goods to be transhipped at port of discharge)
LONG BEACH, CA	CHICAGO, USA
Freight payable at	Number of original B/Ls
	THREE

LONG BEACH, CA Marks & Nos./ Container Nos.	Number and kind of packages; description of goods	Gross weight kg	Measurement m³
N/M	1658 LDPE BAGS	10417.0000	KGS
	CTNS		
	CY TO CY 1*20GP	27.0000	CBM
	SAY TOTAL ONE THOUSAND SIX HUNDRED AND FIFTY EIGHT CARTONS		
X. "ORIGINAL" HBOL REQUIRED. TICS!			
		FOB-QINGDAO	
		SHIPPED ON BOARD 20140815	
MEDU2212151/FEX5809908 20CP			
FREIGHT COLLECT			
SHIPPER'S LOAD, COUNT AND SEAL			
TOTAL PACKAGE(S) (IN WORDS)			

Freight and charges

Place of B/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE BENSenville, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

QINGDAO CHINA 20140815
Signed for the Carrier
LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003715

RADIANT003688

Shipper

POLYWEI INTERNATIONAL TRADE CO., LIMITED
ROOM2107, 21/F. C C WU BUILDING, 308 HENNESSY RD
WANCHAI HK

Original

BILL OF LADING

B/L No.

SHACHI1408001

Nationality of Ocean Vessel

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

LAS FREIGHT SYSTEM LTD.

台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.

Tel: 886-2-27690055 Fax: 886-2-27690070

台北市光復北路11巷44號10樓

海運承運送業許可證字號：海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely go and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Notify Address

SAME AS CONSIGNEE

Pre-carriage by

*Place of Receipt by Pre-carrier

CNYC SUMMER

SHANGHAI, CHINA

Port of Discharge

CHICAGO, USA

Freight payable at

Number of original B/Ls

LOS ANGELES, USA

CHICAGO, USA

THREE

Marks & Nos. / Container Nos.

Number and kind of packages; description of goods

Gross weight kgs

Measurement m³

N/M

3100

HDPE BAGS

19840.0000

KGS

CTNS

CY TO CY 1*40GP

40.0000

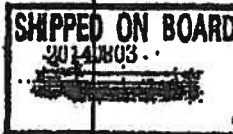
CBM

SAY TOTAL THREE THOUSAND AND ONE
HUNDRED CARTONS

X "ORIGINAL" HBOL REQUIRED
AT CHICAGO. TKS!

UACUR183883/4332869 40GP

FOB SHANGHAI



FREIGHT COLLECT

SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

Freight and charges

3,100.00

Place of B/L (date)

Date

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SHANGHAI, CHINA 20140803

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD

811 THORNDALE AVE

BENSENVILLE, IL 60108, USA

TEL: 630-616-1212

FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003677

SHIPFANG CHENXI PLASTIC PRODUCTS CO., LTD.
WEST OF LIJIAHE VILLAGE QIAOQUAN TOWN CHANGLE COUNTY
SHANDONG CHINA

Original
BILL OF LADING

SA No.	QINCHI1408102
Nationality of Ocean Vessel	

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27880055 Fax: 886-2-27830070
台北市光復北路11巷44號10樓
海運通運通營業許可證字號: 海運(經)字第555號

Consignee
CMU DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Notify Address
SAME AS CONSIGNEE

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods in packages specified herein and to be discharged at the above mentioned port of discharge or to any other port as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped particulars, descriptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed shall be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agent has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to state particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by	Place of Pre-carriage Pre-shipment
CSCI AUTUMN	QINGDAO CHINA
Ocean Vessel	Port of Loading
CSCI AUTUMN	QINGDAO CHINA
Part of Discharge	Final destination (if goods to be transhipped at port of discharge)
LOS ANGELES, USA	CHICAGO, USA
Freight payable at	Number of original B/L's

Mark & Nos. of Containers Nos.	Number and kind of packages; description of goods	Gross weight kgs	Measurement m³
N/M	3078 KATZSON ROLL BAGS	19565.0000	KGS
	CINS CY TO CY 1+40HC	60.0000	CBM
	SAY TOTAL THREE THOUSAND AND SEVENTY NINE CARTONS		
* "ORIGINAL" HBOL REQUIRED FOR QINGDAO Ties? SHIPPED ON BOARD 20140806			
TOTAL PACKAGE(S) (IN WORDS)			
SHIPPER'S LOAD, COUNT AND SEAL			
Freight and charges	AS DISCUSSED	Place of B/L's Issue	Date

FOR DELIVERY OF GOODS PLEASE APPLY TO:
SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60108, USA TEL: 630-616-1212

Signed for the QINGDAO CHINA 20140806
LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

SBA # N770461

RADIANT003667

Shipper

WEIFANG SUNSHINE PLASTIC CO., LTD.
ANQIU TOWN, WEIFANG CITY, SHANDONG, CHINA

Original

BILL OF LADING

BL No. QINCH11504003
Nationality of Ocean Vessel

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090, USA

Notify Address

SAME AS CONSIGNEE

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27690055 Fax: 886-2-27639070
台北市光復北路11巷44號10樓
海運承攬運送業許可證字號：海廣(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or at any other place as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the Insurance upon their goods.

Pre-carriage by

MAERSK DAMIETTA

Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

MAERSK DAMIETTA

Port of Loading

QINGDAO CHINA

Port of Discharge

LONG BEACH, CA

Final destination (if goods to be transhipped at port of discharge)

CHICAGO, IL

Freight payable at

Number of original B(s)/L

THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages, description of goods

2430

HDPE CAN LINER
(FAMILY DOLLAR CAN LINER)

Gross weight kg

19500.0000

KGS

Measurement m³

40.0000

CBM

CTNS

CY TO RAMP 1*40GP

SAY TOTAL TWO THOUSAND FOUR
HUNDRED AND THIRTY CARTONS

FOB QINGDAO

MSCU6915605/FEX7607464 40GP

"ORIGINAL" HBL REQUIRED.
TKS!

SHIPPED ON BOARD
20150412

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

2, 430 CTNS

Freight and charges

Place of B(s)/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60106, USA
TEL: 630-618-1212
FAX: 630-618-1112

QINGDAO CHINA 20150412

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

CMJ DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

BILL OF LADING

Nationality of Ocean Vessel

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-2769055 Fax: 886-2-2769070
台北市光復北路11巷44號10樓
海峽交流經濟發展許可證字號：海經（基）字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

DYNAMEX
6685 ESCONDIDO STREET
LAS VEGAS NV 89119
TEL: 702-814-1919

DYNAMEX
6646 ESCONDIDO STREET
LAS VEGAS NV 89119
TKL: 702-814-1919

'Place of Receipt by Pie-carrier'
QINGDAO CHINA

Part of Loading
QINGDAO CHINA

Port of Discharge
LONG BEACH, CA.

*Flow direction will usually be in a transition at port of discharge)

Freight payable is:

Number of critical life/

THREE

Marking & Nos. / Describing Nos.

N/M

Number and kind of packages; description of goods

1048
CTNS

**PLASTIC BAGS
(BRADY CAN LINERS)**

CY TO DOOR 1*40GP

SAY TOTAL ONE THOUSAND NINE
HUNDRED AND FORTY EIGHT CARTONS

Cross weight kgs

Monoculture mɒˈnɒkjʊlətʃ n.

19600.0000

KGS

40.0000 CEM

FOB DINGDAO

SHIPPED ON BOARD
20160411

KKFU1614383/CBF17041 40CP

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

1,948 TNS

Freight and charges

Place of BLN/L Issuance

Calend

QINGDAO CHINA 20150411

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Altered for the Currier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60106, USA
TEL: 830-818-1212
FAX: 830-818-1112

AS CARRIER

* Applicable only when document used as combined Transport Bill of Lading

Shipper

CAL DISTRIBUTION LLC
655 ALLENDALE DRIVE WHEELING, IL 60090

Consignee

DYNAMEX
6585 ESCONDIDO STREET
LAS VEGAS NV 89119
TEL: 702-814-1919

Notify Address

DYNAMEX
6585 ESCONDIDO STREET
LAS VEGAS NV 89119
TEL: 702-814-1919

Pre-carriage by

SONGYUNHE

Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

SONGYUNHE

0583E

Port of Loading

QINGDAO CHINA

Port of Discharge

LONG BEACH, USA

Final destination (if goods to be transhipped at port of discharge)

LAS VEGAS, USA

Freight payable at

Number of original B/Ls

THREE

Marks & Nos. / Container Nos.

N/M

Number and kind of packages; description of goods

3200
CTNSHDPE CAN LINER
(CHEESECAKE CAN LINER)

CY TO DOOR 1*40GP

SAY TOTAL THREE THOUSAND AND TWO
HUNDRED CARTONS

Gross weight kgs

19500.0000

KGS

40.0000

CBM

Particulars Furnished by Merchant

KKFU1167644/CBP34582 40GP

FOB QINGDAO

SHIPPED ON BOARD
20150411

FRIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

3,200 CTNS

Freight and charges

Place of B/Ls issue

Date

QINGDAO CHINA 20150411

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60108, USA
TEL: 630-616-1212
FAX: 630-616-1112

AS CARRIER

Original

BILL OF LADING

LAS FREIGHT SYSTEM LTD.

台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.

Tel: 886-2-27890055 Fax: 886-2-27890070

台北市光復北路11巷44號10樓

郵遞承運運送許可證字號: 海運(基)字第565號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

B/L No. QINCH11504002

Nationality of Ocean Vessel

*Applicable only when document used as combined Transport Bill of Lading

Shipper

WEIFANG SUNSHINE PLASTIC CO., LTD.
ANQIU TOWN, WEIFANG CITY, SHANDONG, CHINA

Consignee

CM1 DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090, USA

Notify Address

SAME AS CONSIGNEE

Pre-carriage by

*Place of Receipt by Pre-carrier

HERSK DENPASAR

QINGDAO CHINA

HERSK DENPASAR

QINGDAO CHINA

LONG BEACH, CA

CHICAGO, IL

Mark & Nos. / Container Nos.

Number and kind of packages; description of goods

Gross weight kgs

Measurement m³

N/A

3524
CTNS

PLASTIC BAGS
(COLONIAL CAN LINERS)

19500.0000 KGS
45.0000 CBM

CY TO CY 1*40GP

SAY TOTAL THREE THOUSAND FIVE
HUNDRED AND TWENTY FOUR CARTONS

FOB QINGDAO

MSCU5870932/PEX7177366 40GP

"ORIGINAL" HBL REQUIRED.

SHIPPED ON BOARD
20160402

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

3,524 CTNS

Freight and charges

Place of B/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the QINGDAO CHINA 20160402
LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60106, USA
TEL: 630-616-1212
FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport B/L of Lading

Original

BILL OF LADING

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27890066 Fax: 886-2-27839070
台北市光復北路11巷44號10樓
海運承攬運輸業許可證字號: 海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this B/L of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this B/L of Lading, including those on the back hereof. One of the B/Ls of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed B/Ls of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this B/L of Lading with reference to the validity of the insurance upon their goods.

B/L No.

QINCH11503007

Nationality of Ocean Vessel

Shipper

CML DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Original

BILL OF LADING

BL No.	QINCHI1503001
Nationality of Ocean Vessel	

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27890055 Fax: 886-2-27839070
台北市光復北路11巷44號10樓
海運承攬運送集許可證字號：海運(基)字第555號

Consignee

JOSHEN PAPER & PACKING
49 DISTRIBUTION BLVD, 168M BLDG, EDISON NJ 08817
UNITED STATES

Notify Address

JOSHEN PAPER & PACKING
49 DISTRIBUTION BLVD, 168M BLDG, EDISON NJ 08817
UNITED STATES

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

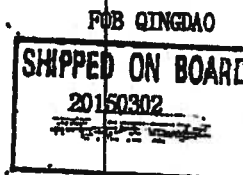
Pre-carriage by	MSC MELATILDE	Place of Receipt by Pre-carrier	QINGDAO CHINA
Ocean Vessel	MSC MELATILDE	Part of Loading	QINGDAO CHINA
Port of Discharge	NEW YORK, USA	Final destination (if goods to be transhipped at port of discharge)	EDISON, USA
		Freight payable at	Number of original B/Ls

Mark & Nos. / Container Nos.	Number and kind of packages; description of goods	Gross weight kgs	Measurement m ³
N/M	2006 HDPE BAGS CY TO DOOR 1*40GP SAY TOTAL TWO THOUSAND NINE HUNDRED AND SIX CARTONS	19500.0000 KGS 45.0000 CBM	
MSCU4337608/PEX7127182	40GP		
TOTAL PACKAGE(S) (IN WORDS)		2,906 CTNS	

"ORIGINAL" HBL REQUIRED.

TKS!

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL.



Freight and charges

Place of B/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SRA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
611 ALLENDALE AVE BENSenville, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

QINGDAO CHINA 20150302

LAS FREIGHT SYSTEM LTD.

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

Shipper

CML DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Original

BILL OF LADING

BL No.

QINCH116Y2008

Nationality of Ocean Vessel

Consignee

DYNAMEX
6585 ESCONDIDO STREET
LAS VEGAS NV 89119
TEL: 702-914-1919

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27690056 Fax: 886-2-27639070
台北市光復北路11巷44號10樓
海運承攬運送業許可證字號: 海運(基)字第655號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

DYNAMEX
6585 ESCONDIDO STREET
LAS VEGAS NV 89119
TEL: 702-914-1919

MSC ROMA

*Place of Receipt by Pre-carrier

QINGDAO CHINA

MSC ROMA

PO507N

QINGDAO CHINA

*Final destination of goods to be transhipped at port of discharge)

Freight payable at

Number of original B/L

LONG BEACH CA

LAS VEGAS NV

Marks & Nos. / Container Nos.

Number and kind of packages; description of goods

Gross weight kgs

Measurement m³

N/M

1658
CTNS

PLASTIC BAGS
(BRADY CAN LINERS)

15200.0000 KGS

46.0000 CBM

CY TO DOOR 1*40GP

SAY TOTAL ONE THOUSAND SIX
HUNDRED AND FIFTY EIGHT CARTONS

"ORIGINAL" HBL REQUIRED

FOB QINGDAO

TRLU4651517/PEX7154369 40GP

SHIPPED ON BOARD
20150215

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

1.65HCTNS

Freight and charges

Place of B/L Issue

Date

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the QINGDAO CHINA 20150215
LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSENVILLE, IL 60106, USA
TEL: 630-616-1212
FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

Shipper

YANTAI FOODPACK PACKAGING PRODUCTS CO., LTD
INDUSTRIAL ZONE FUSHAN DISTRICT YANTAI
SHANDONG CHINA

Consignee

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Notify Address

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Pre-carriage by

*Place of Receipt by Pre-carrier

COSCO KOREA

QINGDAO CHINA

COSCO KOREA

036E

QINGDAO CHINA

*Final destination of goods to be shipped at port of discharge

Freight payable at

Number of original B/L

LONG BEACH USA Marks & Nos. / Container Nos.	CHICAGO USA Number and kind of packages; description of goods	Gross weight kgs	Measurement m³
N/M	1575 LDPE BAGS CTNS CY TO CY 1*20GP SAY TOTAL ONE THOUSAND FIVE HUNDRED AND SEVENTY FIVE CARTONS "ORIGINAL" HBL REQUIRED TKS!	8500.0000 KGS 29.0000 CBM	
TRHU3313918/YMLQ555928 30GP			
			FOB QINGDAO SHIPPED ON BOARD 20160213
	FREIGHT COLLECT SHIPPER'S LOAD, COUNT AND SEAL		
TOTAL PACKAGE(S) (IN WORDS)	1. 575 CTNS		

Freight and charges

Place of B/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier QINGDAO CHINA 20160213
LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE BENSenville, IL 60106, USA
TEL: 630-616-1212 FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport B/L of Lading

Original

BILL OF LADING

LAS FREIGHT SYSTEM LTD.
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27690055 Fax: 886-2-27690070
台北市光復北路11巷44號10樓
海運承攬運送業許可證字號: 海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or on shore thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

B/L No.

QINGDAO CHINA 20160213

Nationality of Ocean Vessel

Shipper

CMI DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090

Original

BILL OF LADING

B/L No.

QINCH11502087

Nationality of Ocean Vessel

Consignee

DYNAMEX
6585 ESCONDIDO STREET
LAS VEGAS NV 89119

Notify Party 702-914-1919

DYNAMEX
6585 ESCONDIDO STREET
LAS VEGAS NV 89119

Notify Party 702-914-1919

Place of Receipt by Pre-carrier

MSC PINA

QINGDAO CHINA

MSC PINA

QINGDAO CHINA

Port of Discharge

PO50EN

Final destination of goods to be shipped at port of discharge

Freight payable at

Number of original B/Ls

LONG BEACH CA

LAS VEGAS NV

Marks & Nos. / Container Nos.

Number and kind of packages; description of goods

Gross weight kgs

Measurement m³

N/M

2154
CTNS

PLASTIC BAGS
(BRADY CAN LINERS)

1992.0000

KGS

CY TO DOOR 1*40GP

50.0000

CBM

SAY TOTAL TWO THOUSAND ONE
HUNDRED AND FIFTY FOUR CARTONS

"ORIGINAL" HBL REQUIRED

POB QINGDAO

MSCU4867660/PEY7168969 40GP

SHIPPED ON BOARD
20150208

FREIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

2.154CTNS

Freight and charges

Place of B/L issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier QINGDAO CHINA 20150208

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD
811 THORNDALE AVE
BENSenville, IL 60106, USA
TEL: 630-616-1212
FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading

RADIANT003499

Shipper

WEIFANG SUNSHINE PLASTIC CO., LTD.
ANQIU TOWN, WEIFANG CITY, SHANDONG, CHINA

Original

BILL OF LADING

BL No.	QINCH11502008
Nature of Ocean Vessel	

Consignee

CMU DISTRIBUTION LLC
555 ALLENDALE DRIVE WHEELING, IL 60090, USA

LAS FREIGHT SYSTEM LTD.
台遠運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.
Tel: 886-2-27880055 Fax: 886-2-27888070
台北市光復北路11巷44號10樓
海運承運通運承許可證字號：海運(基)字第555號

Notify Address

SAME AS CONSIGNEE

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or at any other port as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agent has signed Bills of Lading at this time and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-charge by

*Place of Receipt by Pre-charge

MSC PIMA

QINGDAO CHINA

Ocean Vessel

Port of Loading

MSC PIMA

QINGDAO CHINA

Port of Discharge

FOOYON

*Will discharge goods to the vessel upon all port of discharge

Freight payable at

Number of original B/L's

LONG BEACH CA

CHICAGO IL

THREE

Marks & Nos./ Containers Nos.

Number and kind of packages; description of goods

Gross weight kg

Measurement m³

N/M

3010

PLASTIC BAGS

19450.0000

KGS

CTNS

(COLONIAL CAN LINERS)

45.0000

CBM

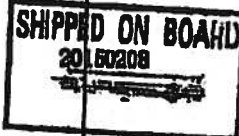
CY TO CY 1+40GP

SAY TOTAL THREE THOUSAND NINE
HUNDRED AND TEN CARTONS

"ORIGINAL" HBL REQUIRED

MSCU4271080/FEY7130650 40GP

FOB QINGDAO



WEIGHT COLLECT
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

3,910CTNS

Freight and charges

Place of B/L Issue

Date

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

QINGDAO CHINA 20150208

LAS FREIGHT SYSTEM LTD.

SEA SERVICE BY AIR GLOBAL LOGISTICS/ORD
511 HENDERSON AVE
HENDERSON, IL 60106, USA
TEL: 630-616-1212
FAX: 630-616-1112

AS CARRIER

*Applicable only when document used as combined Transport Bill of Lading